

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION**

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	:	
In re:	:	Chapter 11
	:	
OFFICE PROPERTIES INCOME TRUST, <i>et al.</i> ,	:	Case No. 25-90530 (CML)
	:	
Debtors. ¹	:	(Jointly Administered)
	:	
	X	

**NOTICE OF REVISED ORDER (I) APPROVING EQUITY RIGHTS OFFERING
PROCEDURES AND RELATED FORMS, (II) AUTHORIZING DEBTORS
TO CONDUCT EQUITY RIGHTS OFFERING IN CONNECTION WITH
DEBTORS' PLAN OF REORGANIZATION, (III) AUTHORIZING
DEBTORS' ENTRY INTO, AND PERFORMANCE UNDER,
EQUITY RIGHTS OFFERING BACKSTOP COMMITMENT
LETTER, AND (IV) GRANTING RELATED RELIEF**

The above-captioned debtors in possession (collectively, the “**Debtors**”) hereby provide notice of the following:

1. On March 6, 2026, the Debtors filed the *Motion of Debtors for Order (I) Approving Equity Rights Offering Procedures and Related Forms, (II) Authorizing Debtors to Conduct Equity Rights Offering in Connection with Debtors' Plan of Reorganization, (III) Authorizing Debtors' Entry Into, and Performance Under, Equity Rights Offering Backstop Commitment Letter, and (IV) Granting Related Relief* [Docket No. 982] (the “**Motion**”).
2. The deadline for parties in interest to file objections to entry of an order granting the Motion passed on March 27, 2026 (the “**Objection Deadline**”).

¹ A complete list of the Debtors in the Chapter 11 Cases may be obtained on the website of the Debtors' claims and noticing agent at <https://restructuring.ra.kroll.com/OPI>. The Debtors' mailing address is Two Newton Place, 255 Washington Street, Suite 300, Newton, Massachusetts 02458-1634.

3. Prior to the Objection Deadline, two individuals filed a formal objection and declaration: *Objection of Individual Unsecured Creditor to Debtors' Motion for Entry of an Order (I) Approving Equity Rights Offering Procedures, (II) Authorizing Equity Rights Offering, (III) Approving Backstop Commitment, and (IV) Granting Related Relief* [Docket No. 1055] (the “**Objection**”) filed by Mr. Gerald L. Eggleston and the *Declaration in Support of Objection of Gerald L. Eggleston to the Equity Rights Offering* [Docket No. 1065] (the “**Declaration**” and, together with the Objection, the “**Objections**”) filed by Mr. Jeffrey J. Zavattero (together with Mr. Eggleston, the “**Objecting Parties**”).

4. Certain stakeholders also provided informal comments to the proposed form of order (the “**Original Proposed Order**”) and each of the exhibits attached thereto.

5. The Debtors attach hereto (a) the fully-compiled revised proposed order (the “**Revised Proposed Order**”) with revised exhibits appended thereto, which incorporates revisions to the Original Proposed Order and exhibits based on the issues raised by the Objecting Parties and the informal comments received from other stakeholders, and (b) a redline of the Revised Proposed Order and exhibits marked against the Original Proposed Order and original exhibits.

6. As of the date hereof, the Debtors have not yet resolved the formal objections by the Objecting Parties. At the hearing on the Motion currently set for April 22, 2026, the Debtors will respectfully request that the Court overrule the Objections and grant the Motion by entering the Revised Proposed Order attached hereto.

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Dated: April 21, 2026
Houston, Texas

Respectfully submitted,

/s/ Timothy A. ("Tad") Davidson II

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*Attorneys for the Debtors
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CERTIFICATE OF SERVICE

I certify that on April 21, 2026, a true and correct copy of the foregoing document was served by the Electronic Case Filing System for the United States Bankruptcy Court for the Southern District of Texas on those parties registered to receive electronic notices.

/s/ Timothy A. ("Tad") Davidson II

Timothy A. ("Tad") Davidson II

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OFFICE PROPERTIES INCOME TRUST, <i>et al.</i> ,	:	Case No. 25-90530 (CML)
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Debtors. ¹	:	(Jointly Administered)
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**ORDER (I) APPROVING EQUITY RIGHTS OFFERING
PROCEDURES AND RELATED FORMS, (II) AUTHORIZING DEBTORS
TO CONDUCT EQUITY RIGHTS OFFERING IN CONNECTION WITH
DEBTORS' PLAN OF REORGANIZATION, (III) AUTHORIZING DEBTORS'
ENTRY INTO, AND PERFORMANCE UNDER, EQUITY RIGHTS OFFERING
BACKSTOP COMMITMENT LETTER, AND (IV) GRANTING RELATED RELIEF**

[Relates to Docket No. 982]

Upon the motion (the “***Motion***”),² of the above-captioned debtors and debtors in possession (collectively, the “***Debtors***”) for entry of an order (this “***Order***”): (a) approving the Equity Rights Offering Procedures, substantially in the form attached hereto as **Exhibit A**, and related Subscription Form, substantially in the form attached hereto as **Exhibit B**; (b) authorizing the Debtors to conduct the Equity Rights Offering; (c) authorizing the Debtors to enter into and perform under the Equity Rights Offering Backstop Commitment Letter attached hereto as **Exhibit C**; and (d) granting related relief, all as more fully set forth in the Motion; and upon consideration of the First Day Declaration; and the Court having determined that the relief requested in the Motion is in the best interests of the Debtors, their creditors, estates, and other parties in interest; and this Court having jurisdiction to consider the Motion and the relief requested therein pursuant

¹ A complete list of the Debtors in the Chapter 11 Cases may be obtained on the website of the Debtors’ claims and noticing agent at <https://restructuring.ra.kroll.com/OPI>. The Debtors’ mailing address is Two Newton Place, 255 Washington Street, Suite 300, Newton, Massachusetts 02458-1634.

² Capitalized terms used but not otherwise defined herein have the meaning assigned to them in the Motion.

to 28 U.S.C. § 1334; and the Court having found that this is a core proceeding pursuant to 28 U.S.C. § 157(b)(2) and that this Court may enter a final order consistent with Article III of the United States Constitution; and this Court having found that venue of this proceeding and the Motion in this district is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having found that the Debtors' notice of the Motion and opportunity for a hearing on the Motion were appropriate under the circumstances and no other notice need be provided; and this Court having heard statements in support of the relief requested therein at a hearing before this Court (the "**Hearing**"); and this Court having determined that the legal and factual bases set forth in the Motion and at the Hearing establish just cause for the relief granted herein; and upon all of the proceedings had before this Court; and after due deliberation and sufficient cause appearing therefor, it is hereby

ORDERED, ADJUDGED, AND DECREED THAT:

1. The Debtors are authorized to commence and conduct the Equity Rights Offering in accordance with the terms and conditions of the Equity Rights Offering Procedures.
2. The Equity Rights Offering Procedures, substantially in the form attached hereto as **Exhibit A**, and the Subscription Form, substantially in the form attached hereto as **Exhibit B**, are hereby approved. The Equity Rights Offering Procedures provide sufficient information to enable each Unsecured Noteholder to duly participate in the Equity Rights Offering.
3. The Debtors are authorized, but not directed, in consultation with counsel to the Committee, to modify the Equity Rights Offering Procedures or adopt any additional detailed procedures, consistent with the provisions of the Equity Rights Offering Procedures, to effectuate the Equity Rights Offering and to issue the Subscription Rights. The Debtors are authorized, but not directed, in consultation with counsel to the Committee, to make changes to the Equity Rights

Offering Procedures or the Subscription Form without further order of the Court, including formatting changes, changes to correct typographical and grammatical errors, if any, and conforming changes with respect to the Disclosure Statement, the Plan, and related materials.

4. For the avoidance of doubt, all questions concerning the timeliness, viability, form, and eligibility of any exercise of Subscription Rights shall be determined by the Debtors in accordance with the Equity Rights Offering Procedures. Pursuant to the Equity Rights Offering Procedures, the Debtors are authorized, but not directed, to waive any defect or irregularity, or permit a defect or irregularity to be corrected within such time frames as they may determine, or to reject the purported exercise of rights.

5. The timeline for the Equity Rights Offering as set forth in the Motion is hereby approved. The Subscription Commencement Date is hereby set as **April 23, 2026** (or as soon as reasonably practicable thereafter), and the Subscription Expiration Deadline is hereby set as **May 7, 2026 at 5:00 p.m. (prevailing Eastern Time)**, as may be modified in the Debtors' sole discretion in consultation with counsel to the September 2029 Ad Hoc Group, counsel to the Unsecured Notes Ad Hoc Group, and counsel to the Committee, or as required by law. The Subscription Period affords a reasonable period of time for Unsecured Noteholders to make an informed decision regarding whether to exercise their Subscription Rights and participate in the Equity Rights Offering.

6. Any Unsecured Noteholder, other than the Equity Rights Offering Backstop Parties, intending to participate in the Equity Rights Offering must affirmatively make a binding election to exercise its Subscription Rights and make the required payment by **5:00 p.m. prevailing Eastern Time, on May 7, 2026**, and must otherwise timely satisfy each of the terms and conditions set forth in the Equity Rights Offering Procedures. Unsecured Noteholders will be

deemed to have relinquished and waived all rights to participate in the Equity Rights Offering to the extent such holders fail to timely satisfy each of the terms and conditions set forth in the Equity Rights Offering Procedures.

7. Within **three (3) Business Days following the Subscription Expiration Deadline**, the Debtors shall send the Funding Notice to each Equity Rights Offering Backstop Party or as soon as reasonably practicable thereafter, in consultation with counsel to the September 2029 Ad Hoc Group, counsel to the Unsecured Notes Ad Hoc Group, and counsel to the Committee. The Equity Rights Offering Backstop Parties must tender their underlying Unsecured Notes in accordance with the Equity Rights Offering Procedures and make the required payment by **the second (2nd) business day before the Effective Date**.

8. The Equity Rights Offering Procedures and the provisions of this Order, including all findings herein, shall be effective and binding upon all parties in interest in these Chapter 11 Cases, the Debtors, their estates, and all successors and assigns thereof, including any chapter 11 trustee appointed in any of these cases.

9. The Debtors are authorized to distribute the Equity Rights Offering Procedures to Unsecured Noteholders.

10. The Debtors are authorized to enter into the Equity Rights Offering Backstop Commitment Letter attached hereto as **Exhibit C** and any and all instruments, documents, and papers contemplated thereunder, to fully perform all of their obligations thereunder, to implement any actions contemplated thereby, and to take any and all actions reasonably necessary or appropriate to perform all obligations provided for in the Equity Rights Offering Backstop Commitment Letter. The Equity Rights Offering Backstop Commitment Letter shall be binding and enforceable against the Debtors and other parties thereto in accordance with its terms.

11. The Equity Rights Offering Backstop Commitment Letter and the terms and provisions included therein are approved in their entirety. The terms and conditions of the Equity Rights Offering Backstop Commitment Letter are fair, reasonable, and the best available to the Debtors under the circumstances, reflect the Debtors' exercise of prudent business judgment consistent with their fiduciary duties, are based on good, sufficient, and sound business purposes and justifications, and are supported by reasonably equivalent value and consideration. The Equity Rights Offering Backstop Commitment Letter was negotiated in good faith and at arm's length among the Debtors, the Equity Rights Offering Backstop Parties, and their respective professional advisors. The failure to describe specifically or include any particular provision of the Equity Rights Offering Backstop Commitment Letter or related documents in the Motion or this Order shall not diminish or impair the effectiveness of such provision, it being the intent of this Court that the Equity Rights Offering Backstop Commitment Letter be approved in its entirety.

12. The Debtors are authorized to execute, deliver, and perform under one or more amendments, waivers, consents, or other modifications to and under the Equity Rights Offering Backstop Commitment Letter, from time to time as necessary, in each case subject to the terms and provisions of the Equity Rights Offering Backstop Commitment Letter and to the extent such amendments are consistent with the Plan, without further order of this Court.

13. The Equity Rights Offering Backstop Obligations are hereby approved as reasonable, and shall not be subject to any avoidance, reduction, setoff, recoupment, offset, recharacterization, subordination (whether contractual, equitable, or otherwise), counterclaims, cross-claims, defenses, disallowance, impairment, or any other challenges under any applicable law or regulation by any person or entity. The Debtors are authorized to provide and perform their Equity Rights Offering Backstop Obligations set forth in the Equity Rights Offering Backstop

Commitment Letter in accordance with the terms and conditions thereof, and without further application to or order of this Court.

14. The Equity Rights Offering Backstop Premium is an actual and necessary cost of preserving the Debtors' estates and shall constitute an allowed administrative expense claim against each of the Debtors under sections 503(b) and 507 of the Bankruptcy Code.

15. The Debtors' designation of Kroll Restructuring Administration, LLC as the Subscription Agent for the Equity Rights Offering is hereby approved.

16. Notice of the Motion as provided therein shall be deemed good and sufficient notice of such Motion and the requirements of Bankruptcy Rule 6004(a) and the Bankruptcy Local Rules are satisfied by such notice.

17. Notwithstanding the provisions of Bankruptcy Rule 6004(h), this Order shall be immediately effective and enforceable upon its entry.

18. This Court shall retain jurisdiction to hear and determine all matters arising from or related to the implementation, interpretation and/or enforcement of this Order.

Signed: _____, 2026
Houston, Texas

UNITED STATES BANKRUPTCY JUDGE

Exhibit A

Equity Rights Offering Procedures

**OFFICE PROPERTIES INCOME TRUST (“OPI”)
EQUITY RIGHTS OFFERING PROCEDURES¹**

- Each holder of an Allowed Unsecured Notes Claim is being granted the right (collectively, the “*Subscription Rights*”) to participate in the Equity Rights Offering (as defined below).
- Holders of Unsecured Notes (the “*Unsecured Noteholders*”) are *not* required to exercise any of their Subscription Rights, but they may if they wish to do so and they follow the required procedures.
- If you are an Unsecured Noteholder and you exercise your Subscription Rights, you will have to PAY the aggregate Purchase Price (as defined below) for such exercise as described further below.
- If the Equity Rights Offering is consummated, Unsecured Noteholders who have timely and validly exercised their applicable Subscription Rights, including payments therefor, will receive the corresponding number of Equity Rights Offering Shares (as defined below) that were purchased.
- Notwithstanding whether Unsecured Noteholders have exercised any of their Subscription Rights, consummation of the Equity Rights Offering is subject to, among other things, (a) the confirmation of the Plan (as defined below) and (b) the simultaneous occurrence of the Effective Date.
- Additional information is provided in this document and in the Subscription Form enclosed herewith.

The Subscription Rights and the Equity Rights Offering Shares are being distributed and issued by OPI without registration under the U.S. Securities Act of 1933, as amended (the “*Securities Act*”), in reliance on section 1145 of the Bankruptcy Code (as defined below) to the maximum extent available by law or, if section 1145 of the Bankruptcy Code is not available, then otherwise pursuant to another exemption from registration under the Securities Act and any other applicable securities laws. None of the Subscription Rights or the Equity Rights Offering Shares have been, nor is it anticipated that they will be, registered under the Securities Act or any state or local law requiring registration for offer and sale of a security.

Except as provided herein, the Subscription Rights will not be detachable or separately transferable from the Allowed Unsecured Notes Claim. Any purported transfer shall be

¹ Capitalized terms used and not defined herein shall have the meaning assigned to them in the Plan (as defined below) or the *Motion of Debtors for Order (I) Approving Equity Rights Offering Procedures and Related Forms, (II) Authorizing Debtors to Conduct Equity Rights Offering in Connection with Debtors’ Plan of Reorganization, (III) Authorizing Debtors’ Entry Into, and Performance Under, the Equity Rights Offering Commitment Letter, and (IV) Granting Related Relief* [Docket No. 982] (filed on March 6, 2026 and incorporated herein by reference), as applicable.

void and without effect, and neither the transferor nor the purported transferee will receive any Equity Rights Offering Shares otherwise purchasable on account of such transferred Subscription Rights.

Each Equity Rights Offering Share issued upon exercise of a Subscription Right may, unless issued to an entity that is an “underwriter” as that term is defined for purposes of section 1145 of the Bankruptcy Code, be resold in reliance on section 1145 of the Bankruptcy Code and pursuant to Section 4(a)(1) of the Securities Act and shall not be restricted securities under the Securities Act.

A Disclosure Statement (as defined below) has been filed and distributed in connection with the Debtors’ solicitation of votes to accept or reject the Plan. The Disclosure Statement sets forth important information, including risk factors, that should be carefully read and considered by each Unsecured Noteholder prior to making a decision to participate in the Equity Rights Offering. An electronic copy of the Disclosure Statement is available on the Debtors’ restructuring website at <https://restructuring.ra.kroll.com/OPI> and additional copies of the Disclosure Statement are available upon request from Kroll Restructuring Administration LLC, the subscription agent for the Equity Rights Offering (the “*Subscription Agent*”), at the following address:

**OPI Ballot Processing Center
c/o Kroll Restructuring Administration LLC
850 Third Avenue, Suite 412
Brooklyn, New York 11232
(877) 418-2778 (U.S./Canada, toll-free)
+1 (646) 825-3871 (international, toll)
Email: OPIinfo@ra.kroll.com**

The Equity Rights Offering is being conducted by the Debtors in good faith and in compliance with chapter 11 of title 11 of the United States Code (the “*Bankruptcy Code*”). In accordance with section 1125(e) of the Bankruptcy Code, a debtor or any of its agents that participate, in good faith and in compliance with the applicable provisions of the Bankruptcy Code, in the offer, issuance, sale, or purchase of a security offered or sold under the plan of the debtor, of an affiliate participating in a joint plan with the debtor, or of a newly organized successor to the debtor under the plan is not liable, on account of such participation, for violation of any applicable law, rule, or regulation governing the offer, issuance, sale, or purchase of securities.

Unsecured Noteholders should note the following times relating to the Equity Rights Offering:

Date	Calendar Date	Event / Notes
Subscription Commencement Date	April 23, 2026 (or as soon as reasonably practicable thereafter)	Commencement of the Equity Rights Offering and the first date on which Unsecured Noteholders are eligible to exercise Subscription Rights.
Subscription Expiration Deadline	5:00 p.m. prevailing Eastern Time on May 7, 2026	The deadline for Unsecured Noteholders (including Equity Rights Offering Backstop Parties in their capacity as Unsecured Noteholders) to exercise Subscription Rights and subscribe for Equity Rights Offering Shares. Any Subscription Rights not exercised immediately prior to this deadline shall be deemed forfeited to the Equity Rights Offering Backstop Parties as described herein and exercised by the Equity Rights Offering Backstop Parties on a <i>pro rata</i> basis (such rights, “Forfeited Rights”). An Unsecured Noteholder must instruct its Nominees (as defined below) to tender such Unsecured Noteholder’s Unsecured Notes, and its Nominees must tender such Unsecured Noteholder’s Unsecured Notes, via DTC’s ATOP system (each as defined below) by the Subscription Expiration Deadline. An Unsecured Noteholder’s completed Subscription Form with (a) an accompanying IRS Form W-9 or appropriate IRS Form W-8, as applicable, and any other information and materials required to be submitted in accordance with the Subscription Form and (b) the “VOI” reference number generated by the previous tender of the Unsecured Notes into ATOP and applicable supporting documentation must be received by the Subscription Agent by the Subscription Expiration Deadline.
Non-Backstop Funding Deadline	By 5:00 p.m. prevailing Eastern Time on May 7, 2026	The deadline for Unsecured Noteholders (other than Equity Rights Offering Backstop Parties) to deliver the payment of the aggregate Purchase Price.

Date	Calendar Date	Event / Notes
Backstop Funding Deadline	By the second (2nd) Business Day before the Effective Date of the Plan	The deadline for Equity Rights Offering Backstop Parties to deliver their aggregate Purchase Price pursuant to the Equity Rights Offering Backstop Commitment Letter. Within three (3) Business Days following the Subscription Expiration Deadline (or as soon as reasonably practicable thereafter), the Debtors shall send a funding notice (the “ Funding Notice ”) to each Equity Rights Offering Backstop Party pursuant to the Equity Rights Offering Backstop Commitment Letter.
Settlement Date	Effective Date of the Plan	The date by which the Equity Rights Offering is settled.
* The Subscription Expiration Deadline and any applicable funding deadline may be modified in the Debtors’ sole discretion in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law.		

To Unsecured Noteholders and Nominees of Unsecured Noteholders:

On April 21, 2026, the Debtors filed the *Fourth Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates* [Docket No. 1223] (as may be amended, modified, or supplemented from time to time, the “**Plan**”) with the United States Bankruptcy Court for the Southern District of Texas, Houston Division (the “**Bankruptcy Court**”), and the *Disclosure Statement for Second Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates* [Docket No. 1017] (as may be amended, modified, or supplemented from time to time, the “**Disclosure Statement**”). On April [●], 2026, the Bankruptcy Court entered the *Order Confirming the Fourth Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates* [Docket No. [●]].

Subject to the terms and conditions set forth in these Equity Rights Offering Procedures and the Plan, each holder of an Allowed Unsecured Notes Claim is entitled to subscribe for its *pro rata* share of Reorganized Common Equity to be issued as of the Effective Date in an aggregate amount of \$35,000,000 (the “**Equity Rights Offering**,” and the Reorganized Common Equity issued pursuant to the Equity Rights Offering, the “**Equity Rights Offering Shares**”).² Unsecured Noteholders who timely and validly elect to participate in the Equity Rights Offering by exercising their Subscription Rights for their corresponding share of the Equity Rights Offering Shares shall purchase such shares at a price per share of \$17 (the “**Purchase Price**”), which represents a 15% discount to the plan equity value.

To participate in the Equity Rights Offering, each Unsecured Noteholder must have instructed its broker, bank, commercial bank, transfer agent, trust company, dealer, or other agent or nominee, as applicable (each, a “**Nominee**”), to tender its Unsecured Notes into the account established by the Subscription Agent at The Depository Trust Company (“**DTC**”) in accordance with each Unsecured Note’s assigned denominations, and such tender must have occurred prior to the Subscription Expiration Deadline. Each such Unsecured Note tendered shall be frozen from trading unless and until the Equity Rights Offering is terminated.

The amount of time necessary for a Nominee to process and deliver the underlying Unsecured Notes via DTC’s Automated Tender Offer Program (“**ATOP**”) system is variable, and Unsecured Noteholders are urged to consult with their Nominees to determine the necessary deadline to return their beneficial holder subscription instructions. Failure to submit such

² For the avoidance of doubt, (a) any unsubscribed Reorganized Common Equity purchased by an Equity Rights Offering Backstop Party pursuant to its Equity Rights Offering Backstop Commitment (as defined in the Equity Rights Offering Backstop Commitment Letter) shall be purchased at \$17.00 per share, (b) the total plan enterprise value shall be in a range between \$2,050,000,000 and \$2,250,000,000 with a midpoint of \$2,150,000,000, (c) the total plan equity value shall be in a range between \$342,680,000 and \$542,680,000 with a midpoint of \$442,680,000, (d) the total plan equity value used to determine the allocation of equity shall be \$427,680,000, and (e) inclusive of the 15% discount to Plan value and the Equity Rights Offering Backstop Commitment Premium, the equity value for the Equity Rights Offering Shares shall be approximately \$43,517,332, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date. For the avoidance of doubt, the Equity Rights Offering Shares shall represent approximately 10.2% of the total Reorganized Common Equity to be issued on the Effective Date, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date.

beneficial holder subscription instructions on a timely basis may result in forfeiture of an Unsecured Noteholder's rights to participate in the Equity Rights Offering.

No Unsecured Noteholder shall be entitled to participate in the Equity Rights Offering unless the aggregate Purchase Price for the Equity Rights Offering Shares it subscribes for is received by the Subscription Agent (a) in the case of an Unsecured Noteholder that is not an Equity Rights Offering Backstop Party, by the Non-Backstop Funding Deadline, and (b) in the case of the Equity Rights Offering Backstop Parties, by the Backstop Funding Deadline. Each Unsecured Noteholder must deliver the payment of the aggregate Purchase Price at the relevant deadline.

No interest is payable on any advanced funding of the Purchase Price. If the Equity Rights Offering is terminated for any reason, then the applicable Purchase Price previously received by the Subscription Agent will be returned promptly to Unsecured Noteholders as provided in Section 6 hereof. No interest will be paid on any returned Purchase Price.

The rights and obligations of the Equity Rights Offering Backstop Parties in the Equity Rights Offering shall be governed by the Equity Rights Offering Backstop Commitment Letter, including to the extent the rights or obligations set forth therein differ from the rights and obligations set forth in these Equity Rights Offering Procedures.

To participate in the Equity Rights Offering, an Unsecured Noteholder must complete all of the steps outlined below. If an Unsecured Noteholder does not complete all of the steps outlined below by the applicable deadline, such Unsecured Noteholder's Subscription Rights shall be deemed forfeited to the Equity Rights Offering Backstop Parties, and such Unsecured Noteholder shall be deemed to have forever and irrevocably relinquished and waived its right to participate in the Equity Rights Offering.

1. Equity Rights Offering

Unsecured Noteholders have the right, but not the obligation, to participate in the Equity Rights Offering.

During the period beginning on the Subscription Commencement Date and ending on the Subscription Expiration Deadline, Unsecured Noteholders are eligible to subscribe for up to their *pro rata* share of the Equity Rights Offering Shares.

Subject to the terms and conditions set forth in the Plan and these Equity Rights Offering Procedures, each Unsecured Noteholder may timely and validly elect to participate in the Equity Rights Offering and to subscribe for up to its *pro rata* share of the Equity Rights Offering Shares. Unsecured Noteholders who timely and validly elect to participate in the Equity Rights Offering by exercising their Subscription Rights for their corresponding Equity Rights Offering Shares shall pay the aggregate Purchase Price for such shares. **For the avoidance of doubt, holders should use the principal amount of their Unsecured Notes when calculating their allotted number of Equity Rights Offering Shares on their Subscription Form.**

To the extent the aggregate amount subscribed for by all Unsecured Noteholders through the Equity Rights Offering is less than the total Equity Rights Offering amount of \$35,000,000, all unexercised Subscription Rights as of immediately prior to the Subscription

Expiration Deadline shall be deemed forfeited to the Equity Rights Offering Backstop Parties and exercised by the Equity Rights Offering Backstop Parties on a *pro rata* basis, as set forth in the Equity Rights Offering Backstop Commitment Letter.

The Subscription Rights and the corresponding Equity Rights Offering Shares issued in the Equity Rights Offering will be issued in reliance on section 1145 of the Bankruptcy Code and, unless such Unsecured Noteholder is an “underwriter,” as that term is defined for purposes of section 1145 of the Bankruptcy Code, may be resold in reliance on section 1145 of the Bankruptcy Code and pursuant to Section 4(a)(1) of the Securities Act and shall not be restricted securities under the Securities Act. To the extent any portion is not eligible for section 1145 treatment, such uncovered portion shall be exempted from registration pursuant to Section 4(a)(2) of the Securities Act, the safe harbor of Regulation D promulgated thereunder, or such other exemption from registration as may be available under the Securities Act and any other applicable securities laws. Any Unsecured Noteholder who receives such shares shall be subject to restriction under the Securities Act and other applicable securities laws on its ability to resell those securities.

Resale restrictions and securities law exemptions are discussed in more detail in Article 5.8 of the Plan, entitled “Exemption from Registration Under Securities Laws.”

SUBJECT TO THE TERMS AND CONDITIONS OF THESE EQUITY RIGHTS OFFERING PROCEDURES, AND THE EQUITY RIGHTS OFFERING BACKSTOP COMMITMENT LETTER IN THE CASE OF THE EQUITY RIGHTS OFFERING BACKSTOP PARTIES, ALL SUBSCRIPTIONS SET FORTH IN THE SUBSCRIPTION FORM ARE IRREVOCABLE UNLESS APPROVED IN WRITING (EMAIL BEING SUFFICIENT) BY THE DEBTORS SOLELY TO CURE ADMINISTRATIVE DEFECTS OR IN THE CASE OF INPUT ERROR WITHIN DTC’S ATOP PLATFORM.

2. Rights Exercise Period

The Equity Rights Offering will commence, and the Subscription Rights will be deemed to be delivered, on the Subscription Commencement Date and will expire at the Subscription Expiration Deadline. Each Unsecured Noteholder intending to purchase Equity Rights Offering Shares in the Equity Rights Offering must (a) tender the relevant portion of such Unsecured Noteholder’s Unsecured Notes into DTC’s ATOP system by the Subscription Expiration Deadline, (b) affirmatively elect to exercise its Subscription Rights in the manner set forth in the applicable Subscription Form by the Subscription Expiration Deadline, and (c) pay the aggregate Purchase Price for its Equity Rights Offering Shares, by (i) in the case of an Unsecured Noteholder that is not an Equity Rights Offering Backstop Party, the Non-Backstop Funding Deadline, or (ii) in the case of the Equity Rights Offering Backstop Parties, the Backstop Funding Deadline.

Any exercise of the Subscription Rights to purchase the Equity Rights Offering Shares by an Unsecured Noteholder after the Subscription Expiration Deadline or payment after the applicable funding deadline will not be allowed and any purported exercise or payment received by the Subscription Agent after such applicable deadline, regardless of when the documents or payment relating to such exercise were sent, will not be honored.

The Subscription Expiration Deadline and any applicable funding deadline may be modified in the Debtors' sole discretion in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law.

3. Delivery of Subscription Documents

In order to facilitate the exercise of the Subscription Rights, beginning on the Subscription Commencement Date, the Subscription Form and these Equity Rights Offering Procedures will be sent to each eligible Unsecured Noteholder as of the Subscription Commencement Date, together with appropriate instructions for the proper completion, due execution, and timely delivery of the executed Subscription Form and the payment of the applicable aggregate Purchase Price for its Equity Rights Offering Shares.

Copies of the Subscription Form and these Equity Rights Offering Procedures may also be obtained by contacting the Subscription Agent or visiting the Debtors' case website at <https://restructuring.ra.kroll.com/OPI> under the Quick Links section on the left-hand side of the Subscription Agent's website.

4. Exercise of Subscription Rights

- (a) In order for an Unsecured Noteholder to validly exercise its Subscription Rights:
- i. such Unsecured Noteholder must instruct its Nominee to electronically deliver the Unsecured Notes through DTC's ATOP system and its Nominee's tender of the Unsecured Notes through ATOP must be **completed** prior to the Subscription Expiration Deadline;
 - ii. such Unsecured Noteholder must return a duly completed and executed Subscription Form (with an accompanying IRS Form W-9 or appropriate IRS Form W-8, as applicable, and any other information and materials required to be submitted in accordance with the Subscription Form) **to its Nominee** (or otherwise follow the directions of its Nominee), and such documents must be **actually received** by the Subscription Agent by clicking on "Submit Equity Rights Offering Subscription Form" under the Quick Links section on the left-hand side of their website at <https://restructuring.ra.kroll.com/OPI> by the Subscription Expiration Deadline. **This is the only method of delivery.** Please do not follow up with hard copies or emailed copies of the documentation; and
 - iii. such Unsecured Noteholder must pay, or arrange for the payment by its Nominee of, the aggregate Purchase Price to the Subscription Agent by wire transfer of immediately available funds in accordance with the instructions included in the Subscription Form, and such Purchase Price must be **actually received** by the Subscription Agent by, (1) in the case of an Unsecured Noteholder that is not an Equity Rights Offering Backstop Party, the Non-Backstop Funding Deadline, or (2) in the case of the Equity Rights Offering Backstop Parties, the Backstop Funding Deadline.

- (b) Except with respect to the Equity Rights Offering Backstop Parties, in the event that the funds received by the Subscription Agent from any Unsecured Noteholder do not correspond to the aggregate Purchase Price payable for the Equity Rights Offering Shares elected to be purchased by such Unsecured Noteholder, the number of the Equity Rights Offering Shares deemed to be purchased by such Unsecured Noteholder will be the lesser of (1) the number of the Equity Rights Offering Shares elected to be purchased by such Unsecured Noteholder as evidenced by the relevant ATOP submission(s) and (2) a number of the Equity Rights Offering Shares determined by dividing the amount of the funds received by the Purchase Price, in each case up to such Unsecured Noteholder's *pro rata* share of Equity Rights Offering Shares. In the event any excess funds remain following the adjustment described in the foregoing sentence, such amounts will be returned, without interest, to the applicable Unsecured Noteholder (or its Nominee, as applicable) as soon as reasonably practicable.
- (c) The cash paid to the Subscription Agent in accordance with these Equity Rights Offering Procedures will be deposited and held by the Subscription Agent in a segregated account until released to the Debtors in connection with the settlement of the Equity Rights Offering on the Effective Date or in accordance with the Plan. The Subscription Agent may not use such cash for any other purpose prior to the Effective Date and may not encumber or permit such cash to be encumbered with any lien or similar encumbrance. The cash held by the Subscription Agent hereunder shall not be deemed part of the Debtors' bankruptcy estates.
- (d) Each Unsecured Noteholder that participates in the Equity Rights Offering is deemed to have made the following representations and acknowledgments:
 - i. Each Unsecured Noteholder recognizes and understands that, except as described herein, the Subscription Rights are not transferrable and that the benefits of the Subscription Rights are not separable from the claim or securities with respect to which the Subscription Rights have been granted.
 - ii. Each Unsecured Noteholder represents and warrants that it will not accept a distribution of Equity Rights Offering Shares if at such time it does not hold all of the Unsecured Notes associated with its Subscription Rights (or, in the case of each Equity Rights Offering Backstop Party, represents and warrants that it will not accept a distribution of Equity Rights Offering Shares if at such time it does not hold the Forfeited Rights) and, by accepting a distribution of Equity Rights Offering Shares, such Unsecured Noteholder will be deemed to be the owner thereof.
 - iii. Each Unsecured Noteholder represents and warrants that it is the beneficial owner of, or the authorized signatory of such beneficial owner of, the Unsecured Notes as of the date such Unsecured Noteholder exercises its Subscription Rights.

5. Transfer Restriction

Once an Unsecured Noteholder has tendered its Unsecured Notes through DTC's ATOP, such Unsecured Notes shall be frozen from trading unless and until the Equity Rights Offering is terminated.

Except as described herein, the Subscription Rights are not detachable or separately transferable from the Allowed Unsecured Notes Claim. Any purported transfer of the Subscription Rights (other than as described herein) shall be void and without effect, and the purported transferee will not receive any Equity Rights Offering Shares otherwise purchasable on account of such purported transfer of Subscription Rights.

Once an Unsecured Noteholder has properly exercised its Subscription Rights, subject to the terms and conditions contained in these Equity Rights Offering Procedures, and the Equity Rights Offering Backstop Commitment Letter in the case of the Equity Rights Offering Backstop Parties, such exercise will be irrevocable, unless in the case of an input error within DTC's ATOP platform. In such cases, Unsecured Noteholders must coordinate with their Nominee to submit an electronic withdrawal in accordance with DTC's withdrawal procedures.

6. Termination/Return of Payment

Unless the Effective Date has occurred, the Equity Rights Offering will be deemed automatically terminated without any action of any party upon the earliest date and time when the Debtors revoke or withdraw the Plan. In the event the Equity Rights Offering is terminated, any payments received pursuant to these Equity Rights Offering Procedures will be returned, without interest, to the applicable Unsecured Noteholder as soon as reasonably practicable, which is expected to be no later than the later of the date that is ten (10) Business Days after the date on which the Equity Rights Offering is terminated and the date the Subscription Agent receives the applicable refund information.

7. Settlement of the Equity Rights Offering and Distribution of the Equity Rights Offering Shares

The settlement of the Equity Rights Offering is conditioned on (a) confirmation of the Plan by the Bankruptcy Court and (b) the simultaneous occurrence of the Effective Date. The Equity Rights Offering Shares will be issued in book-entry form through DTC or, if not DTC-eligible, directly on the books and records of Reorganized Parent or its transfer agent.

8. Fractional Shares

No fractional Equity Rights Offering Shares will be issued in the Equity Rights Offering. All share allocations will be calculated and rounded down to the nearest whole share, at the beneficial holder level. The total number of Equity Rights Offering Shares that may be purchased pursuant to the Equity Rights Offering shall be adjusted as necessary to account for the rounding described in this **Section 8**. No compensation shall be paid, whether in cash or otherwise, in respect of any rounded-down amounts.

9. Registration Details

The Debtors intend that, to the extent practicable, the Equity Rights Offering Shares will be DTC-eligible and issued in book-entry form in accordance with the practices and procedures of DTC, and that DTC, or its nominee, will be the holder of record of such Equity Rights Offering Shares. Pursuant to the Plan, DTC and any participants and intermediaries shall fully cooperate and take all actions to facilitate DTC book-entry delivery, settlement, and depository services for the Equity Rights Offering Shares. If for any reason the Equity Rights Offering Shares are not DTC-eligible or cannot be issued in book-entry form in accordance with the practices and procedures of DTC, the Debtors will coordinate the issuance of the Equity Rights Offering Shares directly on the books and records of Reorganized Parent or its transfer agent. To that end, as part of completing a subscription, each Unsecured Noteholder will be required to provide the information needed for the registration of such Unsecured Noteholder's Equity Rights Offering Shares and the applicable tax form.

10. Validity of Exercise of Subscription Rights

All questions concerning the timeliness, viability, form, and eligibility of any exercise of Subscription Rights will be determined in good faith by the Debtors, in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law, and, if necessary, subject to a final and binding determination by the Bankruptcy Court. The Debtors may waive or reject any defect or irregularity in, or permit such defect or irregularity to be corrected within such time as they may determine in good faith, the purported exercise of any Subscription Rights. Subscriptions will be deemed not to have been received or accepted until all irregularities have been waived or cured within such time as the Debtors determine in good faith. In addition, the Subscription Agent shall have no obligation to notify parties of or cure any defects to the forms returned in exercising the Subscription Rights.

Before exercising any Subscription Rights, Unsecured Noteholders should read the Disclosure Statement and the Plan for information relating to the Debtors and the risk factors to be considered.

All calculations shall be made in good faith by the Debtors and in accordance with any Allowed Unsecured Notes Claim amounts included in the Plan, and any disputes regarding such calculations shall be subject to a final and binding determination by the Bankruptcy Court.

11. Modification of Procedures

The Debtors reserve the right to modify these Equity Rights Offering Procedures, or adopt additional procedures consistent with these Equity Rights Offering Procedures to effectuate the Equity Rights Offering and to issue the Equity Rights Offering Shares, each in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law; *provided, however*, to the extent that any modification to these Equity Rights Offering Procedures or adoption of additional procedures is made after the Subscription Commencement Date and such modification directly, adversely, and materially impacts the Unsecured Noteholders, the Debtors shall provide prompt written notice

to each Unsecured Noteholder by posting a notice with respect to such material modification or adoption of additional procedures on the Debtors' case website at <https://restructuring.ra.kroll.com/OPI/>. In so doing, the Debtors, in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law, may execute and enter into agreements and take further action that the Debtors determine in good faith is necessary and appropriate to effectuate and implement the Equity Rights Offering and the issuance of the Equity Rights Offering Shares. The Debtors are not obligated to deliver any notice to the Unsecured Noteholders in connection with any reduction in the size of the Equity Rights Offering, other than to the Equity Rights Offering Backstop Parties.

12. Inquiries and Transmittal of Documents; Subscription Agent

The Equity Rights Offering Instructions for Unsecured Noteholders attached hereto should be carefully read and strictly followed by the Unsecured Noteholders.

Questions relating to the Equity Rights Offering should be directed to the Subscription Agent via email to: OPIIssuerServices@is.kroll.com (with "***OPI Equity Rights Offering Inquiry***" in the subject line); or at the following phone number: (877) 418-2778 (U.S./Canada, toll-free) or +1 (646) 825-3871 (international, toll). Please note that the Subscription Agent is only able to respond to procedural questions regarding the Equity Rights Offering, and cannot provide any information beyond that included in these Equity Rights Offering Procedures and the Subscription Form. An Unsecured Noteholder must follow the directions included herein with respect to providing instructions in connection with the Equity Rights Offering.

The risk of non-delivery of any instructions, documents, and payments to the Subscription Agent is on the Unsecured Noteholder electing to exercise its Subscription Rights and not the Debtors or the Subscription Agent.

13. Failure to Exercise Subscription Rights

Subscription Rights that are not properly and timely exercised in accordance with these Equity Rights Offering Procedures shall be deemed forfeited to the Equity Rights Offering Backstop Parties and shall be forever and irrevocably relinquished by the applicable Unsecured Noteholder. None of the Debtors, Reorganized Debtors, or any of their respective employees, Affiliates, or professionals shall have any liability for any failure by an Unsecured Noteholder to properly and timely exercise its Subscription Rights. Any attempt to exercise Subscription Rights other than in accordance with these Equity Rights Offering Procedures (including after the Subscription Expiration Deadline) shall be null and void and the Debtors shall not be obligated to honor any such purported exercise received by the Subscription Agent.

The method of delivery of the Subscription Form or any other required documents is at each Unsecured Noteholder's option and sole risk. In all cases, you should allow sufficient time to ensure timely delivery of (a) your Unsecured Notes by ATOP and (b) your Subscription Form, the accompanying applicable IRS Form, and any other information and materials required to be submitted in accordance with the Subscription Form, in each case, at or prior to the Subscription Expiration Deadline.

**OFFICE PROPERTIES INCOME TRUST
EQUITY RIGHTS OFFERING INSTRUCTIONS FOR UNSECURED NOTEHOLDERS**

Terms used and not defined herein shall have the meaning assigned to them in the Plan.

To elect to participate in the Equity Rights Offering, you must follow the instructions set out below:

- **Provide your instructions to your Nominee** to submit the applicable portion of your Unsecured Notes via ATOP such that the tender of your Unsecured Notes is **completed** at or prior to the Subscription Expiration Deadline. **Review** the worksheets in Items 1a and 1b of your Subscription Form, which calculates the amount of Unsecured Notes your Nominee has delivered electronically via ATOP and the maximum number of Equity Rights Offering Shares available for you to purchase, respectively. Such number of Equity Rights Offering Shares must be rounded down to the nearest whole share.
- **Review and complete** the worksheet in Item 2 of your Subscription Form to specify the number of Equity Rights Offering Shares you elect to purchase.
- **Review** Item 3 of your Subscription Form to determine the aggregate Purchase Price for such Equity Rights Offering Shares you have elected to purchase.
- **Review** the payment instructions in Item 4 for such Equity Rights Offering Shares you have elected to purchase.
- **Read, complete, and sign** the certification in Item 5 of your Subscription Form. Participation shall indicate your acceptance and approval of the terms and conditions set forth in these Equity Rights Offering Procedures.
- **Review and/or complete, as applicable,** Sections A, B, and C of Exhibit A of your Subscription Form (in the case of Section C, such information will be used to properly register the Equity Rights Offering Shares on the books of Reorganized Parent or its transfer agent if the Equity Rights Offering Shares are not DTC-eligible).
- **Return** your completed and signed Subscription Form and the accompanying applicable IRS Form (and any other information and materials required to be submitted in accordance with the Subscription Form) **to your Nominee** (or as otherwise directed by your Nominee). **Do not return your Subscription Form or any of the related documents to the Subscription Agent** (unless otherwise directed to do so by your Nominee). Nominees (or Unsecured Noteholders that are instructed by their Nominees to return the completed and signed Subscription Form directly to the Subscription Agent) must return the completed and signed Subscription Form and the appropriate IRS tax form such that the Subscription Form and the appropriate IRS tax form (and any other information and materials required to be submitted in accordance with the Subscription Form) are **actually received** by the Subscription Agent by clicking on “Submit Equity Rights Offering Subscription Form” under the Quick Links section on the left-hand side of their website at <https://restructuring.ra.kroll.com/OPI> by the Subscription Expiration Deadline. **This is the**

only method of delivery. Please do not follow up with hard copies or emailed copies of the documentation.

- **Arrange for full payment** by wire transfer of immediately available funds of the aggregate Purchase Price, calculated in accordance with Item 3 of your Subscription Form by (a) the Non-Backstop Funding Deadline (in the case of an Unsecured Noteholder that is not an Equity Rights Offering Backstop Party) or (b) the Backstop Funding Deadline (in the case of the Equity Rights Offering Backstop Parties), in each case, such that the payment is **actually received** by the Subscription Agent by no later than the Non-Backstop Funding Deadline or the Backstop Funding Deadline, as applicable.
- Timely submission of (a) your Unsecured Notes via ATOP and (b) your duly completed and executed Subscription Form (with the accompanying applicable IRS form and any other information and materials required to be submitted in accordance with the Subscription Form) is the only valid method to participate in the Equity Rights Offering.

The Subscription Expiration Deadline and the Non-Backstop Funding Deadline are 5:00 p.m. prevailing Eastern Time on May 7, 2026, as may be modified in the Debtors' sole discretion in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law.

Please note that (a) the tender of your Unsecured Notes via ATOP must be completed by the Subscription Expiration Deadline, (b) your Subscription Form (with the accompanying applicable IRS form and any other information and materials required to be submitted in accordance with the Subscription Form) must be received by the Subscription Agent at the Subscription Expiration Deadline, and (c) your payment of the aggregate Purchase Price must be received by the Subscription Agent no later than (i) in the case of an Unsecured Noteholder that is not an Equity Rights Offering Backstop Party, the Non-Backstop Funding Deadline, or (ii) in the case of the Equity Rights Offering Backstop Parties, the Backstop Funding Deadline.

If your Subscription Form (with the accompanying applicable IRS form and any other information and materials required to be submitted in accordance with the Subscription Form) is not received by the Subscription Expiration Deadline or your payment of the aggregate Purchase Price is not received by the Non-Backstop Funding Deadline or Backstop Funding Deadline, as applicable, your Subscription Form will not be processed, and your Subscription Rights shall be deemed forfeited to the Equity Rights Offering Backstop Parties and forever and irrevocably relinquished. As a result, you will lose the right to participate in the Equity Rights Offering.

Exhibit B

Subscription Form

**OFFICE PROPERTIES INCOME TRUST (“OPI”)
SUBSCRIPTION FORM
IN CONNECTION WITH DEBTORS’ DISCLOSURE STATEMENT**

SUBSCRIPTION EXPIRATION DEADLINE

The Subscription Expiration Deadline is 5:00 p.m. prevailing Eastern Time on May 7, 2026, as may be modified in the Debtors’ sole discretion in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law (the “*Subscription Expiration Deadline*”).

Capitalized terms used but not defined herein shall have the meaning assigned to them in the Equity Rights Offering Procedures enclosed herewith (the “*Equity Rights Offering Procedures*”) or the *Fourth Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates* [Docket No. 1223], dated April 21, 2026 (as may be amended, modified, or supplemented from time to time, the “*Plan*”), as applicable.

This Subscription Form is used for Unsecured Noteholders who wish to participate in the Equity Rights Offering.

Please note that (a) your broker, bank, commercial bank, transfer agent, trust company, dealer, or other agent or nominee, as applicable, that holds your Unsecured Notes in “street name” (each, a “*Nominee*”) must tender your applicable Unsecured Notes via the Automated Tender Offer Program (“*ATOP*”) of the Depository Trust Company (“*DTC*”) prior to the Subscription Expiration Deadline, (b) your duly completed and executed Subscription Form and accompanying IRS Form W-9 or appropriate IRS Form W-8, as applicable, must be received by the Subscription Agent no later than the Subscription Expiration Deadline via their E-Portal, and (c) for Unsecured Noteholders participating in the Equity Rights Offering the payment of the aggregate Purchase Price must be received by the Subscription Agent no later than either (i) in the case of Unsecured Noteholders that are not Equity Rights Offering Backstop Parties, the Subscription Expiration Deadline (the “*Non-Backstop Funding Deadline*”), or (ii) in the case of Unsecured Noteholders that are Equity Rights Offering Backstop Parties, the second (2nd) Business Day prior to the Effective Date (the “*Backstop Funding Deadline*”).

If you wish to participate in the Equity Rights Offering and you do not comply with all of the Subscription Steps (as defined below) by the applicable deadlines, your Subscription Rights shall be deemed forfeited to the Equity Rights Offering Backstop Parties, and you shall be deemed to have forever and irrevocably relinquished and waived your right to participate in the Equity Rights Offering.

Please allot sufficient time to coordinate with your Nominee, so that your completed Subscription Form includes the applicable ATOP numbers and wire detail and is actually received by the Subscription Agent on or before the Subscription Expiration Deadline. Please note your Nominee may establish their own cut-off date and time for the tender of your applicable Unsecured Notes.

The Subscription Rights and the Equity Rights Offering Shares are being distributed and issued by OPI without registration under the U.S. Securities Act of 1933, as amended (the “*Securities Act*”), in reliance on section 1145 of the Bankruptcy Code to the maximum extent available by law or, if section 1145 of the Bankruptcy Code is not available, then otherwise pursuant to another

exemption from registration under the Securities Act and any other applicable securities laws. None of the Subscription Rights or the Equity Rights Offering Shares have been, nor is it anticipated that they will be, registered under the Securities Act or any state or local law requiring registration for offer and sale of a security.

Please consult the Plan, the Disclosure Statement, and the Equity Rights Offering Procedures (including the Equity Rights Offering Instructions for Unsecured Noteholders attached thereto) for additional information with respect to this Subscription Form.

If you have any questions, please contact the Subscription Agent via email at OPIIssuerServices@is.kroll.com (with “*OPI Equity Rights Offering Inquiry*” in the subject line), or at one of the following phone numbers: (877) 418-2778 (U.S./Canada, toll-free) or +1 (646) 825-3871 (international, toll).

Subscription Steps

In order to exercise the Subscription Rights and subscribe for the Equity Rights Offering Shares, you must follow the subscription steps listed below (the “*Subscription Steps*”):

1. **Submit your Unsecured Notes via ATOP:** You must instruct your Nominee to electronically deliver any Unsecured Notes you wish your Nominee to deliver via DTC’s ATOP platform, and, to the extent you are participating in the Equity Rights Offering, the Nominee’s delivery of the Unsecured Notes through ATOP must be completed by the Subscription Expiration Deadline. In order to complete Step 2 below, you must retrieve the Voluntary Offer Instruction number(s) from the Nominee that tendered your Unsecured Notes for inclusion on this Subscription Form.
2. **Provide Registration Details and Other Required Information:** You must return a duly completed and executed Subscription Form with all relevant details (including those listed on Exhibit A hereto) and the IRS Form W-9 or appropriate IRS Form W-8, as applicable (these forms may be obtained from www.irs.gov), to your Nominee (or otherwise follow the directions of your Nominee), and such documents must be actually received by the Subscription Agent by clicking on “Submit Equity Rights Offering Subscription Form” under the Quick Links section on the left-hand side of their website at <https://restructuring.ra.kroll.com/OPI> by the Subscription Expiration Deadline. **This is the only method of delivery.** Please do not follow up with hard copies or emailed copies of the documentation.
3. **Deliver Payment of the Aggregate Purchase Price (for Unsecured Noteholders Participating in the Equity Rights Offering Only):**
 - a. Unsecured Noteholders who are not Equity Rights Offering Backstop Parties must deliver full payment of the aggregate Purchase Price no later than the Non-Backstop Funding Deadline, in accordance with the wire instructions provided in Item 4 below; and
 - b. Unsecured Noteholders who are Equity Rights Offering Backstop Parties must deliver full payment of the aggregate Purchase Price pursuant to the Equity Rights Offering Backstop Commitment Letter no later than the Backstop Funding Deadline, in accordance with the wire instructions provided in Item 4 below.

Payment of the aggregate Purchase Price must be *actually received* by the Subscription Agent by no later than the Non-Backstop Funding Deadline or the Backstop Funding Deadline, as applicable.

Equity Rights Offering Backstop Party Status:

☐ Check this box if you are an “Equity Rights Offering Backstop Party” pursuant to the Equity Rights Offering Backstop Commitment Letter.

If checked, please provide the name of the Equity Rights Offering Backstop Party as it appears in Schedule I to the Equity Rights Offering Backstop Commitment Letter: _____

(ONLY CHECK THE ABOVE BOX IF YOU ARE CERTAIN THIS APPLIES TO YOU. IF YOU ARE UNSURE, DO NOT CHECK THIS BOX AND PLEASE CONTACT THE SUBSCRIPTION AGENT.)

BY FILLING IN THE DETAILS IN ITEM 1, YOU ARE INDICATING THAT THE UNSECURED NOTEHOLDER IS THE BENEFICIAL HOLDER OF THE UNSECURED NOTES.

Item 1. Nominee Instructions and Subscription Rights Calculation Worksheet.

IMPORTANT NOTE: YOU MUST COMPLETE THE TABLE IN ITEM 1A BELOW TO ESTABLISH YOUR UNSECURED NOTES HOLDINGS. THIS INFORMATION IS REQUIRED TO CALCULATE YOUR EQUITY RIGHTS OFFERING SHARES.

1a. Nominee Instructions.

In order to exercise your Subscription Rights and subscribe for the Equity Rights Offering Shares, you must have instructed your Nominee to electronically deliver your Unsecured Notes into ATOP and, in the case of Unsecured Noteholders participating in the Equity Rights Offering, such tender must have occurred prior to the Subscription Expiration Deadline.

By tendering (or causing to be tendered) the Unsecured Notes into ATOP, the Unsecured Noteholder is certifying that it holds the Unsecured Notes as of the Subscription Expiration Deadline, and, if participating in the Equity Rights Offering: (x) that it is eligible to participate in the Equity Rights Offering and (y) that it agrees to be bound by the terms of the Equity Rights Offering. Nominees must submit instructions on account of each of their Unsecured Noteholder clients separately. “Bulk tenders” into ATOP will not be permitted.

IMPORTANT NOTE: IF YOU HOLD YOUR UNSECURED NOTES THROUGH MORE THAN ONE NOMINEE, YOU MUST GIVE INSTRUCTIONS TO EACH APPLICABLE NOMINEE BY SUBMITTING SEPARATE SUBSCRIPTION FORMS.

Use the worksheet below to list the amount of Unsecured Notes your Nominee has delivered electronically via ATOP. Please include the principal (face) amount of your Unsecured Notes only—do not include any accrued or unmatured interest. If you do not know the principal amount of your Unsecured Notes held, please contact your Nominee immediately. **The Subscription Agent will not deliver any of your Unsecured Notes via ATOP. Only your Nominee can deliver your Unsecured Notes via ATOP on your behalf.**

<i>Description of Unsecured Notes:</i>	<i>CUSIP/ISIN</i>	<i>Principal Amount Tendered into DTC ATOP</i>	<i>DTC ATOP Confirmation Number (VOI or Euroclear/Clearstream Reference Number) (one ATOP Confirmation Number per CUSIP)</i>	<i>DTC Participant Number</i>	<i>DTC Participant Name</i>
2.650% Senior Notes due 2026	67623CAD1 / US67623CAD11				
2.400% Senior Notes due 2027	67623CAE9 / US67623CAE93				
3.450% Senior Notes due 2031	67623CAF6 / US67623CAF68				

<i>Description of Unsecured Notes:</i>	<i>CUSIP/ISIN</i>	<i>Number of Notes Tendered into DTC ATOP*</i>	<i>DTC ATOP Confirmation Number (VOI or Euroclear/Clearstream Reference Number) (one ATOP Confirmation Number per CUSIP)</i>	<i>DTC Participant Number</i>	<i>DTC Participant Name</i>
6.375% Senior Notes due 2050	67623C208 / US67623C2089				

1b. Subscription Calculation Worksheet.

Use the worksheet below to determine the number of Equity Rights Offering Shares which you may subscribe for based on the principal amount of your Unsecured Notes electronically delivered through ATOP. Please include the principal (face) amount of your Unsecured Notes only—do not include any accrued or unmatured interest. If you do not know the principal amount of your Unsecured Notes held, please contact your Nominee immediately.

The principal amount of Unsecured Notes you instruct your Nominee to deliver via ATOP and (if calculated correctly) the corresponding number of Equity Rights Offering Shares for which you wish to subscribe are shown below and should be used to calculate the aggregate Purchase Price in **Item 3** below.

If there is a discrepancy between the amount set forth in this **Item 1** below and the amount(s) delivered via ATOP, the amount delivered through ATOP shall control. Moreover, please note that if your calculations are incorrect, the amount of Unsecured Notes tendered into ATOP will control the amount of Equity Rights Offering Shares that you are committed to purchase pursuant to this Equity Rights Offering.

Each Unsecured Noteholder is entitled to subscribe for: (a) 4.313 Equity Rights Offering Shares per \$1,000 amount of 2.650% Senior Notes due 2026; (b) 4.296 Equity Rights Offering Shares per \$1,000 amount of

2.400% Senior Notes due 2027; (c) 4.350 Equity Rights Offering Shares per \$1,000 amount of 3.450% Senior Notes due 2031; and (d) 4.315 Equity Rights Offering Shares per \$1,000 amount of 6.375% Senior Notes due 2050, in each case subject to dilution by the (i) Initial Equity Compensation, (ii) the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares,¹ and (iii) exercise of the New Warrants.

IMPORTANT NOTE: You must instruct your Nominee to deliver your Unsecured Notes via ATOP to exercise your Subscription Rights. You may exercise any portion of your principal amount of Unsecured Notes, up to the total amount you hold. If you do not wish to exercise 100% of your Subscription Rights, you should instruct your Nominee to only submit the principal amount of Unsecured Notes associated with the number of Subscription Rights you wish to exercise. For example, if you only wish to exercise 50% of your Subscription Rights, you should instruct your Nominee to only deliver 50% of your principal amount of Unsecured Notes via ATOP. Once your Nominee has tendered your Unsecured Notes through ATOP, such Unsecured Notes shall be frozen from trading unless and until the Equity Rights Offering is terminated.

The maximum number of Equity Rights Offering Shares for which you may subscribe, based on the principal amount shown below, is calculated as follows:

<i>Description of Unsecured Notes:</i>	<i>CUSIP/ISIN</i>	<i>Principal Amount*</i>		<i>Price Per Notes</i>		<i>Subscription Rate **</i>		<i>The maximum Equity Rights Offering Shares based on your Unsecured Notes (the "Maximum Participation Amount") is:</i>
2.650% Senior Notes due 2026	67623CAD1 / US67623CAD11	\$ _____ (Taken from the above table)	/	1,000	x	4.313518	=	1a. _____ (Round down to nearest whole share)
2.400% Senior Notes due 2027	67623CAE9 / US67623CAE93	\$ _____ (Taken from the above table)	/	1,000	x	4.296416	=	1b. _____ (Round down to nearest whole share)
3.450% Senior Notes due 2031	67623CAF6 / US67623CAF68	\$ _____ (Taken from the above table)	/	1,000	x	4.35089	=	1c. _____ (Round down to nearest whole share)

* For a holder with \$4,000,000 of principal outstanding, the number of notes held is determined by dividing the principal amount by \$1,000, resulting in 4,000 notes. Applying the applicable series-specific ratio for the 2.650% Senior Notes due 2026 (i.e., 4.313518), for example, yields 17,254.072 Equity Rights Offering Shares (i.e., 4,000 × 4.313518). This figure is rounded down to the nearest whole share

¹ "Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares" means an aggregate amount of Reorganized Common Equity to be issued to Holders of Allowed September 2029 Senior Secured Notes Claims as shall be necessary so that, after giving effect to the issuance of both the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares pursuant to the Plan, the aggregate Reorganized Common Equity to be held by Holders of Allowed September 2029 Senior Secured Notes Claims shall equal the same percentage of the total issued and outstanding Reorganized Common Equity, on a fully diluted basis, as such Holders would have held immediately prior to giving effect to the issuance of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares.

resulting in 17,254 Equity Rights Offering Shares.

**** Rate to convert the principal amount into the number of Equity Rights Offering Shares (includes accrued interest where applicable), subject to dilution by the (a) Initial Equity Compensation, (b) the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares, and (c) exercise of the New Warrants.**

<i>Description of Unsecured Notes:</i>	<i>CUSIP/ISIN</i>	<i>Number of Notes Tendered*</i>		<i>Subscription Rate **</i>		<i>The maximum Equity Rights Offering Shares based on your Unsecured Notes (the "Maximum Participation Amount") is:</i>
6.375% Senior Notes due 2050	67623C208 / US67623C2089	<u> </u> (Taken from the above table)	x	0.107892	=	1d. <u> </u> (Round down to nearest whole share)

* For a holder with \$4,000,000 of principal outstanding, the number of notes held is determined by dividing the principal amount by \$25, resulting in 160,000 notes. Applying the applicable series-specific ratio for the 6.375% Senior Notes due 2050 (i.e., 0.107892) yields 17,262.720 Equity Rights Offering Shares (i.e., 160,000 × 0.107892). This figure is rounded down to the nearest whole share resulting in 17,262 Equity Rights Offering Shares.

**** Rate to convert the principal amount into the number of Equity Rights Offering Shares (includes accrued interest where applicable), subject to dilution by the (a) Initial Equity Compensation, (b) the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares, and (c) exercise of the New Warrants.**

Item 2. Subscription Rights Exercise

Please note that the amount shown in this **Item 2** must be no greater than the Maximum Participation Amount of Unsecured Notes as calculated in **Item 1**.

<i>Description of Unsecured Notes:</i>	<i>CUSIP/ISIN</i>	<i>Number of Equity Rights Offering Shares you are electing to subscribe for</i>
2.650% Senior Notes due 2026	67623CAD1 / US67623CAD11	2a _____ (Round down to nearest whole share) (Insert into Item 3a below)
2.400% Senior Notes due 2027	67623CAE9 / US67623CAE93	2b _____ (Round down to nearest whole share) (Insert into Item 3b below)
3.450% Senior Notes due 2031	67623CAF6 / US67623CAF68	2c _____ (Round down to nearest whole share) (Insert into Item 3c below)
6.375% Senior Notes due 2050	67623C208 / US67623C2089	2d _____ (Round down to nearest whole share) (Insert into Item 3d below)

Item 3. Calculation of Aggregate Purchase Price for Equity Rights Offering Shares

By filling in the following blanks, you are indicating that the Unsecured Noteholder is interested in purchasing the number of Equity Rights Offering Shares specified in **Item 2** above (which does not exceed the Maximum Participation Amount calculated in **Item 1**), on the terms and subject to the conditions set forth in the Equity Rights Offering Procedures.

	<i>Equity Rights Offering Shares</i>		<i>Price per share of Equity Rights Offering Shares²</i>		<i>Aggregate Purchase Price</i>
3a.	Total number of shares of Equity Rights Offering Shares you elect to purchase from 2a above	X	\$17	=	3a. Total Amount (rounded down to nearest cent)
3b.	Total number of shares of Equity Rights Offering Shares you elect to purchase from 2b above	X	\$17	=	3b. Total Amount (rounded down to nearest cent)
3c.	Total number of shares of Equity Rights Offering Shares you elect to purchase from 2c above	X	\$17	=	3c. Total Amount (rounded down to nearest cent)
3d.	Total number of shares of Equity Rights Offering Shares you elect to purchase from 2d above	X	\$17	=	3d. Total Amount (rounded down to nearest cent)
	Total number of shares of Equity Rights Offering Shares you elect to purchase (sum of 3a – 3d above)	X	\$17	=	Total Amount (sum of 3a – 3d above)

For the avoidance of doubt, the exercise of your Subscription Rights will be based solely on the principal amount of Unsecured Notes tendered through ATOP and for which payment of the aggregate Purchase Price must be received.

Item 4. Payment Instructions

Payment of the aggregate Purchase Price calculated pursuant to **Item 3** above shall be made by wire transfer of immediately available funds. Unsecured Noteholders who are not Equity Rights Offering Backstop Parties must deliver full payment of the aggregate Purchase Price by the Non-Backstop Funding Deadline. Equity Rights Offering Backstop Parties must deliver full payment of the aggregate Purchase Price pursuant to the Equity Rights Offering Backstop Commitment Letter by the Backstop Funding Deadline.

² For the avoidance of doubt, (a) any unsubscribed Reorganized Common Equity purchased by an Equity Rights Offering Backstop Party pursuant to its Equity Rights Offering Backstop Commitment (as defined in the Equity Rights Offering Backstop Commitment Letter) shall be purchased at \$17.00 per share, (b) the total plan enterprise value shall be in a range between \$2,050,000,000 and \$2,250,000,000 with a midpoint of \$2,150,000,000, (c) the total plan equity value shall be in a range between \$342,680,000 and \$542,680,000 with a midpoint of \$442,680,000, (d) the total plan equity value used to determine the allocation of equity shall be \$427,680,000, and (e) inclusive of the 15% discount to Plan value and the Equity Rights Offering Backstop Commitment Premium, the equity value for the Equity Rights Offering Shares shall be approximately \$43,517,332, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date. For the avoidance of doubt, the Equity Rights Offering Shares shall represent approximately 10.2% of the total Reorganized Common Equity to be issued on the Effective Date, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date.

Any Unsecured Noteholder that is submitting payment via its Nominee must coordinate such payment with its Nominee in sufficient time to ensure such payment is ***actually received*** by the Subscription Agent on or prior to the Non-Backstop Funding Deadline (in the case of Unsecured Noteholders that are not Equity Rights Offering Backstop Parties), or the Backstop Funding Deadline (in the case of Unsecured Noteholders that are Equity Rights Offering Backstop Parties).

Participating Unsecured Noteholders must comply with all the Subscription Steps.

Wire Instructions:

Account Name:	<i>Kroll Restructuring Administration LLC as Subscription Agent for OPI Trust Subscription Account</i>
Bank Account No.:	[●]
ABA/Routing No.:	<i>021000089</i>
SWIFT:	<i>CITIUS33</i>
Bank Name:	<i>Citibank NA</i>
Bank Address:	<i>153 East 53rd Street, 23rd Floor, New York, New York 10022</i>
Reference:	<i>[Please reference the Unsecured Noteholder name and/or the confirmation number you received when you submitted your e-form to Kroll]</i>

Item 5. Certification.

The following Certifications are automatically incorporated into any ATOP instruction, regardless of how the Unsecured Noteholder requested to submit its instructions to its Nominee. By electing to subscribe for the amount of Equity Rights Offering Shares, the Unsecured Noteholder hereby certifies that (a) the Unsecured Noteholder is the beneficial owner of the Unsecured Notes set forth in **Item 1** above, or the authorized signatory (the “***Authorized Signatory***”) of such Unsecured Noteholder acting on behalf of the Unsecured Noteholder, (b) the Unsecured Noteholder has reviewed the Plan, the Disclosure Statement, and, if participating in the Equity Rights Offering, the Equity Rights Offering Procedures (including the Equity Rights Offering Instructions for Unsecured Noteholders attached thereto) and other applicable materials, and (c) if participating in the Equity Rights Offering, the Unsecured Noteholder understands that the exercise of the rights under the Equity Rights Offering is subject to all the terms and conditions set forth in the Plan and the Equity Rights Offering Procedures.

For participants in the Equity Rights Offering, by electing to subscribe for the amount of Equity Rights Offering Shares shown in **Item 2** above, the Unsecured Noteholder (or the Authorized Signatory on behalf of the Unsecured Noteholder) acknowledges that payment of the aggregate Purchase Price associated with such election must be made by the Non-Backstop Funding Deadline (in the case of Unsecured Noteholders that are not Equity Rights Offering Backstop Parties), or the Backstop Funding Deadline (in the case of Unsecured Noteholders that are Equity Rights Offering Backstop Parties).

The Unsecured Noteholder (or the Authorized Signatory on behalf of such Unsecured Noteholder) participating in the Equity Rights Offering acknowledges that, by executing this Subscription Form,

the Unsecured Noteholder named below: (i) has elected to subscribe for the number of Equity Rights Offering Shares shown in Items 2 and 3 above, (ii) will be bound to pay the aggregate Purchase Price for the Equity Rights Offering Shares, and (iii) may be liable to the Debtors to the extent of any nonpayment.

Exhibit A

A. Unsecured Noteholder Certification:

Name of Unsecured Noteholder: _____

Signature: _____

Name of Signatory: _____

Title: _____

Address: _____

Telephone Number: _____

Fax: _____

Email: _____

B. Wire Information in the Event a Refund is Needed:

Domestic Account:

Account Name: _____

Beneficiary Address: _____

Bank Account No.: _____

ABA/Routing No.: _____

Bank Name: _____

Bank Address: _____

Reference: _____

International Account:

Intermediary Account Name: _____

Intermediary Beneficiary Address: _____

Intermediary Bank SWIFT Code/BIC: _____

Beneficiary Bank Name: _____

Beneficiary Bank Address: _____

Beneficiary Bank SWIFT Code/BIC: _____

Beneficiary Bank IBAN/Account Number: _____

Reference: _____

C. Registration Details for all Equity Rights Offering Shares to Be Issued (In the event that the Equity Rights Offering Shares are not DTC-Eligible):³

Name of Registered Party: _____

Address 1: _____

Address 2: _____

City/State/Zip: _____

Contact Name: _____

Telephone Number: _____

Email: _____

U.S. Federal Tax EIN/SSN: _____

If Non-U.S. person, check here and attach appropriate IRS Form W-8 ☐

If U.S. person, check here and attach IRS Form W-9 ☐

Account Type:

Please indicate the “account type” into which the Unsecured Noteholder will have its entitlements issued in the event such entitlements are not DTC-eligible. Below are the options for “account types” that may be used in connection with registration of your non-DTC eligible entitlements.

Please check only one box:

☐ **INDIVIDUAL ACCOUNT**

☐ **INDIVIDUAL IRA ACCOUNT OR 401K ACCOUNT**

☐ **INDIVIDUAL FIDUCIARY/TRUST ACCOUNT**

☐ **JOINT TENANTS IN COMMON**

☐ **JOINT TENANTS WROS**

☐ **COMMUNITY PROPERTY**

³ In the event the Equity Rights Offering Shares are not made DTC eligible, we will use the provided registration information to issue your Equity Rights Offering Shares on the books and records of the transfer agent.

☐ **PARTNERSHIP**

☐ **S-CORPORATION**

☐ **BANK**

☐ **BROKER**

☐ **NOMINEE**

☐ **CORPORATION**

☐ **NON-PROFIT ORGANIZATION**

For Backstop Parties to receive Equity Rights Offering Shares on account of the Forfeited Rights:⁴

DTC Participant Name:_____

DTC Participant Number:_____

Beneficial Holder Account Number:_____

DTC Participant Contact Name:_____

DTC Participant Contact Telephone:_____

DTC Participant Contact Email:_____

Signature:_____

Name of Signatory:_____

Title:_____

Address:_____

Telephone Number:_____

Email:_____

⁴ To be used in the event that the Equity Rights Offering Shares, on account of the Forfeited Rights, cannot be allocated via the tendered positions at DTC.

Exhibit C

Equity Rights Offering Backstop Commitment Letter

April [●], 2026

Office Properties Income Trust
Two Newton Place, 255 Washington Street, Suite 300
Newton, MA 02458-1634

Re: Equity Rights Offering Backstop Commitment Letter

Ladies and Gentlemen:

Office Properties Income Trust (“**OPI**”) and its debtor affiliates (together with OPI, the “**Debtors**”) have filed for relief under chapter 11 of title 11 of the United States Code (the “**Bankruptcy Code**”) in the United States Bankruptcy Court for the Southern District of Texas (the “**Bankruptcy Court**”) (collectively, the “**Chapter 11 Cases**”). Capitalized terms used and not otherwise defined herein have the meaning set forth in the *Fourth Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and Its Debtor Affiliates* [Docket No. 1223], dated as of April 21, 2026 (including all exhibits, annexes, schedules, and supplements thereto, as may be amended, supplemented, or modified from time to time in accordance with the terms thereof, the “**Plan**”).

The equity rights offering (the “**Equity Rights Offering**” and, such Reorganized Common Equity issued pursuant to the Equity Rights Offering, including pursuant to Forfeited Rights and the Equity Rights Offering Backstop Commitment Premium (each as defined below), the “**Equity Rights Offering Shares**”) shall be implemented consistent with the terms of this backstop commitment letter (this “**Equity Rights Offering Backstop Commitment Letter**”), the terms of the Plan, and the terms contained in that certain term sheet attached to the *Notice of Settlement Term Sheet by and among the Debtors, Official Committee of Unsecured Creditors, September 2029 Ad Hoc Group, and RMR with Regards to the Plan* [Docket No. 855], dated as of February 24, 2026 (the “**Committee Settlement Term Sheet**”), which sets forth, among other things, certain terms and conditions of the Equity Rights Offering. For the avoidance of doubt, the Committee Settlement Term Sheet is incorporated by reference as if set forth fully herein.

This Equity Rights Offering Backstop Commitment Letter shall be effective upon the execution and delivery by the Debtors and each party hereto listed as a “Commitment Party” on the signature pages hereto (each, a “**Commitment Party**” and collectively, the “**Commitment Parties**”), which Commitment Parties shall provide an aggregate commitment to purchase, pursuant to Forfeited Rights (as defined in Section 1(b) hereof) or otherwise, \$35.0 million of Reorganized Common Equity less the amount to be subscribed for by the Commitment Parties in the Equity Rights Offering in accordance with Section 1(b)(ii) hereof in their respective capacities as Unsecured Noteholders (as defined below in Section 1(a) hereof) and not as Commitment Parties (the “**Equity Rights Offering Backstop Commitment**”), subject to entry of an order of the Bankruptcy Court authorizing the Debtors to, among other things, enter into and perform under this Equity Rights Offering Backstop Commitment Letter (the “**Equity Rights Offering Backstop Order**”). As used herein, the term “**Required Commitment Parties**” means the Commitment Parties representing at least seventy-five percent (75%) of the aggregate Equity Rights Offering Backstop Commitment Percentage (as defined in Section 1(b) hereof) at such time (excluding any Defaulting

Commitment Party (as defined in **Section 9(a)** hereof) or Breaching Commitment Party (as defined in **Section 2(b)** hereof) and their respective Equity Rights Offering Backstop Commitments).

1. Equity Rights Offering and Equity Rights Offering Backstop Commitment.

(a) Subject to the terms and conditions set forth herein, in the Committee Settlement Term Sheet, and pursuant to the Plan, among other things, the Debtors shall conduct the Equity Rights Offering by providing each holder of Unsecured Notes (including the Commitment Parties) (collectively, the “**Unsecured Noteholders**”) subscription rights to purchase Reorganized Common Equity issued pursuant to the Plan and available to be purchased in connection with the Equity Rights Offering, in an aggregate amount consistent with the Committee Settlement Term Sheet. All Unsecured Noteholders shall have the right to participate in the Equity Rights Offering.

(b) Subject to the terms and conditions set forth herein and in the Committee Settlement Term Sheet, each Commitment Party hereby severally, and not jointly, commits to: (i) not sell its Unsecured Notes (other than as provided herein); (ii) exercise in full the subscription rights it receives in its capacity as Unsecured Noteholder pursuant to the Plan; (iii) exercise in full the subscription rights forfeited to such Commitment Party by Unsecured Noteholders that do not exercise such rights by the Subscription Expiration Deadline (as defined in the Equity Rights Offering Procedures) (the “**Forfeited Rights**”) or otherwise purchase, in each case, on the Effective Date, such Commitment Party’s percentage (its “**Equity Rights Offering Backstop Commitment Percentage**”), as set forth on **Schedule I** hereto opposite such Commitment Party’s name, as such percentage may be adjusted from time to time pursuant to **Section 2(b)** or **Section 9** hereof, of any unsubscribed Reorganized Common Equity in an amount consistent with the Committee Settlement Term Sheet;¹ (iv) timely vote, or cause to be voted, all of its Claims entitled to vote on the Plan to accept the Plan and not change or withdraw (or cause to be changed or withdrawn) any such vote or not opt out of the releases set forth in Article 10.6(b) of the Plan; and (v) not take any action that would, or would reasonably be expected to, delay, prevent, or impede the solicitation, confirmation, or consummation of the Plan.

(c) Within three (3) business days following the Subscription Expiration Deadline, the Debtors shall send to each Commitment Party a funding notice (the “**Funding Notice**”) providing:

¹ For the avoidance of doubt, (a) any unsubscribed Reorganized Common Equity purchased by a Commitment Party pursuant to its Equity Rights Offering Backstop Commitment shall be purchased at \$17.00 per share, (b) the total plan enterprise value shall be in a range between \$2,050,000,000 and \$2,250,000,000 with a midpoint of \$2,150,000,000, (c) the total plan equity value shall be in a range between \$342,680,000 and \$542,680,000 with a midpoint of \$442,680,000, (d) the total plan equity value used to determine the allocation of equity shall be \$427,680,000, and (e) inclusive of the 15% discount to Plan value and the Equity Rights Offering Backstop Commitment Premium (as defined in **Section 3(a)** hereof), the equity value for the Equity Rights Offering Shares shall be approximately \$43,517,332, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date (the “**Equity Rights Offering Equity Value**”). For the avoidance of doubt, the Equity Rights Offering Shares shall represent approximately 10.2% of the total Reorganized Common Equity to be issued on the Effective Date, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date (the “**Equity Rights Offering Share Percentage**”).

(i) the aggregate number of shares of Reorganized Common Equity subscribed for in the Equity Rights Offering and the aggregate Purchase Price (as defined in the Equity Rights Offering Procedures) therefor; (ii) the aggregate number of unsubscribed shares of Reorganized Common Equity in the Equity Rights Offering, if any, pursuant to the Forfeited Rights and the aggregate Purchase Price therefor; (iii) each Commitment Party's Equity Rights Offering Backstop Commitment Percentage and number of shares of Reorganized Common Equity to be issued and sold to such Commitment Party, if any, forfeited to the Commitment Parties pursuant to its Equity Rights Offering Backstop Commitment, and the aggregate Purchase Price therefor; and (iv) the number of shares of Reorganized Common Equity such Commitment Party subscribed for in the Equity Rights Offering, if any, that such Commitment Party had not yet funded, and the aggregate Purchase Price therefor; *provided* that any Commitment Party shall be entitled to request backup calculations for the figures enclosed in the Funding Notice, and the Debtors shall provide such backup calculations promptly and, in any event, not less than four (4) business days before the Funding Date (as defined below). On or by the second (2nd) business day before the Effective Date (the "**Funding Date**"), each Commitment Party shall fund to an escrow account (the "**Escrow Account**") (1) the amount that each Commitment Party is required to fund pursuant to its Equity Rights Offering Backstop Commitment, including pursuant to Forfeited Rights (the "**Equity Rights Offering Backstop Funding Amount**"), as set forth in the Funding Notice, and (2) without duplication, the amount each Commitment Party is required to fund pursuant to the exercise of its subscription rights in the Equity Rights Offering, excluding pursuant to Forfeited Rights (the "**Subscription Rights Funding Amount**"). If (i) the Equity Rights Offering is terminated or is not consummated for any reason other than a breach of this Equity Rights Offering Backstop Commitment Letter by any Commitment Party, (ii) any of the conditions precedent in Section 7 hereof have not been satisfied or waived within one (1) week following the Funding Date, or (iii) any portion of the Equity Rights Offering Backstop Commitments are unused, each Commitment Party's Subscription Rights Funding Amount and Equity Rights Offering Backstop Funding Amount that have been funded, if any, shall be refunded to the applicable Commitment Party in full, in the case of termination, or in full or in part, in the case of unused Equity Rights Offering Backstop Commitments, in each case, without interest, as soon as practicable, but no later than three (3) business days following such termination, failure to satisfy all conditions precedent, or completion of the Equity Rights Offering, as applicable.

(d) The Equity Rights Offering will be made pursuant to, and the Equity Rights Offering Shares will be issued and sold in reliance upon, an exemption from registration under the U.S. Securities Act of 1933, as amended (the "**Securities Act**"), as a result of section 1145 of the Bankruptcy Code to the maximum extent available by law or, if section 1145 of the Bankruptcy Code is not available, then otherwise pursuant to another exemption from registration under the Securities Act and any other applicable securities laws, and the Equity Rights Offering Procedures, the Equity Rights Offering Subscription Form, and the further amended Plan shall provide or continue to provide, as applicable, for such treatment.

2. Termination.

(a) This Equity Rights Offering Backstop Commitment Letter may be terminated at any time prior to the Effective Date by mutual written consent of the Debtors and the Required Commitment Parties.

(b) The Debtors may terminate this Equity Rights Offering Backstop Commitment Letter as to any Commitment Party by written notice to the Commitment Parties if any Commitment Party materially breaches any representation, warranty, covenant, or other agreement made by such Commitment Party in this Equity Rights Offering Backstop Commitment Letter, other than pursuant to Section 9 hereof (any such event, a “**Commitment Party Breach**” and, such Commitment Party, a “**Breaching Commitment Party**”), and such breach (if susceptible to cure) remains uncured for a period of five (5) business days after the receipt by such Commitment Party of written notice of such breach; *provided* that, upon the occurrence of a Commitment Party Breach, the non-breaching Commitment Parties shall have the right, but not the obligation, within three (3) business days after receipt of written notice from the Debtors to all Commitment Parties of such Commitment Party Breach, which notice shall be given as promptly as practicable following the occurrence of such Commitment Party Breach, to elect, by written notice to the Debtors, to make arrangements for one or more of the non-breaching Commitment Parties to subscribe for (or, as applicable, assume such Breaching Commitment Party’s obligation to subscribe for) all or any portion of the Breaching Commitment Party’s Equity Rights Offering Backstop Commitment in accordance with the Replacement Procedures (as defined and set forth in Section 9 hereof); *provided further* that, in the event of a Commitment Party Breach followed by an Optional Replacement Purchase (as defined in Section 9(a) hereof) election, this Equity Rights Offering Backstop Commitment Letter shall terminate solely with respect to such Breaching Commitment Party, in which case (1) this Equity Rights Offering Backstop Commitment Letter shall continue in full force and effect with respect to the Debtors and any non-breaching Commitment Parties and (2) such Breaching Commitment Party shall have no further rights or obligations under this Equity Rights Offering Backstop Commitment Letter (other than those that expressly survive termination).

(c) The Debtors may terminate this Equity Rights Offering Backstop Commitment Letter in its entirety by written notice to the Commitment Parties upon the occurrence of any of the following:

- (i) a Commitment Party Breach occurs and the remaining Equity Rights Offering Backstop Commitments, including any Optional Replacement Purchase(s) are equal to or less than 90% of the aggregate Equity Rights Offering Backstop Commitments as of the execution of this Equity Rights Offering Backstop Commitment Letter;
- (ii) the issuance by any governmental authority, including any regulatory authority or court of competent jurisdiction, of any ruling, judgment, or order enjoining the consummation of, or rendering illegal, the Equity Rights

Offering or the transactions contemplated by this Equity Rights Offering Backstop Commitment Letter;

- (iii) the Bankruptcy Court denies entry of the Equity Rights Offering Backstop Order or the Confirmation Order;
- (iv) the board of trustees, directors, or similar governing body of the Debtors reasonably determines in good faith, after consulting with, and receiving written advice from, outside counsel, that taking or failing to take any action required under this Equity Rights Offering Backstop Commitment Letter would be inconsistent with the exercise of its fiduciary duties under applicable law;
- (v) the Equity Rights Offering Backstop Order or the Confirmation Order is reversed, dismissed, or vacated; or
- (vi) the Chapter 11 Cases are dismissed or converted to cases under chapter 7 of the Bankruptcy Code, or a trustee or examiner with expanded powers (beyond those set forth in sections 1106(a)(3) and (4) of the Bankruptcy Code) is appointed with respect to all or substantially all of the Debtors, or any Commitment Party files a motion requesting any of the foregoing.

(d) The Required Commitment Parties may terminate this Equity Rights Offering Backstop Commitment Letter by written notice to the Debtors upon the occurrence of any of the following (the “***Required Commitment Party Termination Events***”):

- (i) any Debtor shall have materially breached any representation, warranty, covenant, or other agreement made by the Debtors in this Equity Rights Offering Backstop Commitment Letter, and such breach (if susceptible to cure) remains uncured for a period of five (5) business days after receipt by the Debtors of written notice of such breach; *provided* that the Required Commitment Parties shall not have the right to terminate this Equity Rights Offering Backstop Commitment Letter pursuant to this **Section 2(d)(i)** if any Required Commitment Party is then in material breach of this Equity Rights Offering Backstop Commitment Letter unless such Required Commitment Party’s material breach results from the Debtors’ material breach, in which case the Required Commitment Parties shall have the right to terminate this Equity Rights Offering Backstop Commitment Letter pursuant to this **Section 2(d)(i)**;
- (ii) the Debtors amend the Plan, file a Plan Supplement, enter into a settlement, or perform any act, in each case, that (1) is in any material respect inconsistent with the terms of the Committee Settlement Term Sheet or this Equity Rights Offering Backstop Commitment Letter or (2) will result in a *non-de minimis* decrease to the Equity Rights Offering Share Percentage;

- (iii) the Debtors amend the Plan, file a Plan Supplement, enter into a settlement, or perform any act in a manner that (1) materially and adversely affects the recoveries of holders of Unsecured Notes taken as a whole or (2) will result in a non-*de minimis* decrease to the Equity Rights Offering Equity Value;
- (iv) any Debtor takes actions, or fails to take actions required by the Committee Settlement Term Sheet, in any manner inconsistent with the terms of the Committee Settlement Term Sheet in any material respect (or declares an intention to do so);
- (v) the Bankruptcy Court denies entry of the Equity Rights Offering Backstop Order or the Confirmation Order;
- (vi) the Equity Rights Offering Backstop Order or the Confirmation Order is reversed, dismissed, or vacated;
- (vii) there is an acceleration hereafter of all or any portion of the Debtors' funded indebtedness with a principal amount exceeding \$20 million; or
- (viii) the Chapter 11 Cases are dismissed or converted to cases under chapter 7 of the Bankruptcy Code, a trustee or examiner with expanded powers (beyond those set forth in sections 1106(a)(3) and (4) of the Bankruptcy Code) is appointed with respect to all or substantially all of the Debtors, or the Debtors file a motion requesting any of the foregoing.

(e) Unless waived or extended pursuant to the terms hereof, this Equity Rights Offering Backstop Commitment Letter shall terminate automatically upon the earlier of (i) the Maturity Date (as defined in, and as may be extended in accordance with, the DIP Credit Agreement) and (ii) July 2, 2026 (the "***Outside Date***").

(f) Upon termination of this Equity Rights Offering Backstop Commitment Letter pursuant to this **Section 2**, this Equity Rights Offering Backstop Commitment Letter shall forthwith become void and of no further force or effect and there shall be no further obligations or liabilities on the part of the parties hereto; *provided* that (i) the obligations of the Debtors to satisfy their indemnification obligations pursuant to **Section 5** hereof shall survive the termination of this Equity Rights Offering Backstop Commitment Letter and shall remain in full force and effect until such obligations have been satisfied, (ii) this **Section 2(f)**, **Section 12**, **Section 13**, and **Section 16** shall survive the termination of this Equity Rights Offering Backstop Commitment Letter in accordance with their terms, and (iii) no such termination shall relieve any party from liability for its willful breach of this Equity Rights Offering Backstop Commitment Letter prior to such termination.

3. Equity Rights Offering Backstop Commitment Premium.

(a) The Debtors shall pay to the Commitment Parties on the Effective Date a premium in an aggregate amount equal to \$3.5 million, payable in Reorganized Common Equity valued at

a price per share of \$20.00 (the “**Equity Rights Offering Backstop Commitment Premium**”), pursuant to the allocations set forth on **Schedule I** hereto and subject to the terms hereof; *provided* that such amount may be reduced to the extent that a Defaulting Commitment Party fails to fund its Equity Rights Offering Backstop Funding Amount, and the remaining Commitment Parties elect not to make an Optional Replacement Purchase in the full amount of the Defaulting Commitment Party’s Equity Rights Offering Backstop Funding Amount, but any such reduction to the Equity Rights Offering Backstop Commitment Premium shall only apply to the Defaulting Commitment Party’s share of the Equity Rights Offering Backstop Commitment Premium, as set forth on **Schedule I** hereto, and shall not have the effect of reducing the respective amounts of the Equity Rights Offering Backstop Commitment Premium to be allocated to non-Defaulting Commitment Parties. The Equity Rights Offering Backstop Commitment Premium shall be deemed fully earned by the Commitment Parties upon entry of the Equity Rights Offering Backstop Order, and shall be payable on the Effective Date and allocated among the Commitment Parties in an amount as adjusted pursuant to the immediately preceding sentence and based on each non-Defaulting Commitment Party’s Equity Rights Offering Backstop Commitment allocation as provided on **Schedule I** hereto, which allocation may be increased with respect to any Optional Replacement Purchase by any Optional Replacing Commitment Party. The payment of the Equity Rights Offering Backstop Commitment Premium is an integral part of the transactions contemplated by this Equity Rights Offering Backstop Commitment Letter and, without the Equity Rights Offering Backstop Commitment Premium, the Commitment Parties would not have entered into this Equity Rights Offering Backstop Commitment Letter.

(b) The Equity Rights Offering Backstop Commitment Premium, to the extent earned and not paid (except to the extent subject to forfeiture pursuant to **Section 9** hereof), is intended to and shall constitute an allowed administrative expense of the Debtors’ estates under sections 503(b) and 507 of the Bankruptcy Code and under the Equity Rights Offering Backstop Order. If, following the entry of the Equity Rights Offering Backstop Order, this Equity Rights Offering Backstop Commitment Letter is terminated, nothing contained herein shall limit or restrict the Commitment Parties (other than any Defaulting Commitment Party or Breaching Commitment Party) from seeking allowance and payment of any unpaid Equity Rights Offering Backstop Commitment Premium, to the extent earned and not paid (except to the extent subject to forfeiture pursuant to **Section 9** hereof), as an administrative expense of the Debtors’ estates under the Bankruptcy Code, including under sections 503(b) and 507 thereof.

4. Expense Reimbursement.

Subject to any applicable fee letters acceptable to the Debtors and the September 2029 Ad Hoc Group (each such letter, a “**Fee Letter**”), whether or not the transactions contemplated under this Equity Rights Offering Backstop Commitment Letter are consummated, the Debtors agree to pay all of the reasonable and documented fees and out-of-pocket expenses incurred by the Commitment Parties, before, on, or after the date hereof until the termination of this Equity Rights Offering Backstop Commitment Letter, including the reasonable and documented fees and expenses of Glenn Agre Bergman & Fuentes LLP, Seward & Kissel LLP, and Province, LLC, as advisors to the Commitment Parties, incurred in connection with the transactions contemplated by this Equity Rights Offering Backstop Commitment Letter. Subject to any applicable Fee Letters,

such expense reimbursement shall be paid on the Effective Date. In the event that this Equity Rights Offering Backstop Commitment Letter is terminated for any reason prior to the Effective Date, each of Glenn Agre Bergman & Fuentes LLP, Seward & Kissel LLP, and Province, LLC reserve its rights to file applications seeking allowance of administrative expense claims under section 503(b) of the Bankruptcy Code on account of substantial contributions made to the Debtors' Chapter 11 Cases in connection with the transactions contemplated by this Equity Rights Offering Backstop Commitment Letter.

5. Indemnification.

(a) Subject to entry of the Equity Rights Offering Backstop Order, the Debtors, including as reorganized pursuant to the Plan (each, an “**Indemnifying Party**”), shall jointly and severally indemnify, defend, and hold harmless each Commitment Party and each Commitment Party’s affiliates and each of its respective officers, directors, managers, partners, stockholders, members, employees, advisors, agents, and other representatives and any affiliate of the foregoing, and each of their respective successors and assigns (each, an “**Indemnified Party**”) from and against, and shall promptly reimburse each Indemnified Party for, all losses, damages, liabilities, and reasonable and documented out-of-pocket costs and expenses (other than taxes of the Commitment Parties) (collectively, “**Losses**”), including, without limitation, reasonable and documented out-of-pocket attorneys’ fees and expenses and, solely in the case of a conflict of interest, one additional counsel in each applicable jurisdiction to each group of affected Indemnified Parties similarly situated (taken as a whole), arising or resulting from or in connection with any action, suit, proceeding, claim, challenge, litigation, investigation, or demand (collectively, “**Claims**”), in each case, brought by a third-party, related to or arising from this Equity Rights Offering Backstop Commitment Letter (the “**Indemnification Obligations**”) up to the dollar amount of each Commitment Party’s Equity Rights Offering Backstop Commitment (as may be decreased with respect to any Defaulting Commitment Party or increased with respect to any Optional Replacing Commitment Party), which shall be no more than \$35.0 million in the aggregate for all Commitment Parties; *provided* that the Indemnification Obligations shall exclude any Losses found by a final judgment of a court of competent jurisdiction to arise from an Indemnified Party’s bad faith, gross negligence, fraud, willful misconduct, or a material breach of the obligations of such Commitment Party under this Equity Rights Offering Backstop Commitment Letter. In addition, the Indemnification Obligations shall exclude any Claim by (i) one Commitment Party against another Commitment Party and (ii) a Defaulting Commitment Party or its respective officers, directors, managers, partners, stockholders, members, employees, advisors, agents, and other representatives or any affiliate of the foregoing.

(b) Each Indemnified Party entitled to indemnification hereunder shall (i) give prompt written notice to the Indemnifying Party of any Claim with respect to which it intends to seek indemnification or contribution pursuant to this Equity Rights Offering Backstop Commitment Letter and (ii) permit such Indemnifying Party to assume the defense of such Claim with counsel selected by the Indemnified Party and reasonably satisfactory to the Indemnifying Party; *provided* that the failure to so notify any Indemnifying Party will not relieve any Indemnifying Party from any liability that any Indemnifying Party may have hereunder except to the extent such Indemnifying Party has been materially prejudiced by such failure; *provided further* that, any

Indemnified Party entitled to indemnification hereunder shall have the right to employ separate counsel and to participate in the defense of such Claim, but the fees and expenses of such counsel shall be at the expense of such Indemnified Party unless (x) the Indemnifying Party has agreed in writing to pay such fees and expenses, (y) the Indemnifying Party shall have failed to assume the defense of such Claim within a reasonable time following delivery of the written notice of the Indemnified Party with respect to such Claim or failed to employ counsel reasonably satisfactory to such Indemnified Party or (z) in the reasonable judgment of such Indemnified Party, based upon advice of its counsel, a conflict of interest may exist between such Indemnified Party and the Indemnifying Party with respect to such Claim (in which case, if the Indemnified Party notifies the Indemnifying Party in writing that it elects to employ separate counsel at the expense of the Indemnifying Party, the Indemnifying Party shall not have the right to assume the defense of such Claim on behalf of such Indemnified Party). In connection with any settlement negotiated by an Indemnifying Party, no Indemnifying Party shall, and no Indemnified Party shall be required by an Indemnifying Party to, (i) enter into any settlement which does not include as an unconditional term thereof the giving by the claimant or plaintiff to the Indemnified Party of a full and unconditional release from all liability in respect to such Claim or litigation, (ii) enter into any settlement that attributes or admits liability or fault to the Indemnified Party, or (iii) consent to the entry of any judgment that does not include as a term thereof a full dismissal of the litigation or proceeding with prejudice. In addition, without the consent of the Indemnified Party, no Indemnifying Party shall be permitted to consent to entry of any judgment or enter into any settlement which provides for any action or restriction on the part of the Indemnified Party other than the payment of money damages which are to be paid in full by the Indemnifying Party. If an Indemnifying Party fails (following the delivery of the written notice described below) or elects not to assume the defense of a Claim or is not entitled to assume or continue the defense of such Claim pursuant to the foregoing, the Indemnified Party shall have the right (without prejudice to its right of indemnification hereunder), in its discretion, to contest, defend, and litigate such Claim and may settle such Claim, either before or after the initiation of litigation, at such time and upon such terms as the Indemnified Party deems fair and reasonable; *provided that*, at least thirty (30) business days prior to any settlement, written notice of its intention to settle is given to the Indemnifying Party. If requested by the Indemnifying Party, the Indemnified Party agrees (at the expense of the Indemnifying Party) to reasonably cooperate with the Indemnifying Party and its counsel in contesting any Claim that the Indemnifying Party elects to contest; *provided further that*, such cooperation shall not include the provision of any information to the extent that the provision thereof would violate any attorney-client privilege, law, rule, or regulation, or any obligation of confidentiality binding on such Indemnified Party. If such indemnification is for any reason not available or is insufficient to hold an Indemnified Party harmless, each Indemnifying Party agrees to contribute the Indemnification Obligations to which the Indemnified Party may be subject in such proportion as is appropriate to reflect the relative benefits received (or anticipated to be received) by each Indemnifying Party and each Indemnified Party with respect to the Equity Rights Offering Backstop Commitments or, if such allocation is judicially determined to be unavailable, in such proportion as is appropriate to reflect other equitable considerations such as the relative fault of each Indemnifying Party on the one hand and of each Indemnified Party on the other hand. Relative benefits to an Indemnifying Party, on the one hand, and an Indemnified Party, on the other hand, with respect to the Equity Rights Offering Backstop Commitments shall be

deemed to be in the same proportion as (1) the total value paid or received or proposed to be paid or received by the Indemnifying Party pursuant to the issuance and sale of the Reorganized Common Equity contemplated by this Equity Rights Offering Backstop Commitment Letter bears to (2) the value of the Reorganized Common Equity and all premiums and fees actually received by the Indemnified Parties in connection with the Equity Rights Offering Backstop Commitments, including, without limitation, the Equity Rights Offering Backstop Commitment Premium. Subject to entry of the Equity Rights Offering Backstop Order, the terms set forth in this **Section 5** shall survive termination of this Equity Rights Offering Backstop Commitment Letter and shall remain in full force and effect regardless of whether the transactions contemplated hereby are consummated.

6. Representations and Warranties.

(a) The Debtors hereby represent and warrant to the Commitment Parties, subject to any limitations or approvals arising from or required in connection with the Chapter 11 Cases, as set forth below:

- (i) the Debtors are validly existing and in good standing under the laws of their respective jurisdiction of incorporation or organization, and have all requisite organizational power and authority to execute this Equity Rights Offering Backstop Commitment Letter, carry out the transactions contemplated hereby and perform the obligations contemplated hereunder, and the execution and delivery of this Equity Rights Offering Backstop Commitment Letter and the performance of the Debtors' obligations hereunder have been duly authorized by the Debtors;
- (ii) the execution and delivery of and performance under this Equity Rights Offering Backstop Commitment Letter does not and will not (1) violate any provision of law, rule or regulation applicable to the Debtors, (2) violate any of the Debtors' charter or bylaws (or other similar governing documents), (3) conflict with, result in a breach of, or constitute (with due notice or lapse of time or both) a default under any material contractual obligation to which the Debtors are a party, or (4) require any consent, approval, or similar authorization by any federal, state, or governmental authority or regulatory body, except (A) such filings that may be necessary in connection with the Chapter 11 Cases and (B) such filings as may be necessary or required for disclosure by the U.S. Securities and Exchange Commission ("**SEC**") or other securities regulatory authorities under applicable securities laws, except, with respect to clauses (1), (3), and (4) above, as would not, individually or in the aggregate, reasonably be expected to (x) be materially adverse to the Debtors, taken as a whole, and (y) adversely affect in any material respect the Debtors' ability to perform their obligations under this Equity Rights Offering Backstop Commitment Letter;

- (iii) this Equity Rights Offering Backstop Commitment Letter is the legally valid and binding obligation of the Debtors, enforceable against the Debtors in accordance with its terms, except as enforcement may be limited by bankruptcy, insolvency, reorganization, moratorium, or other similar laws relating to or limiting creditors' rights generally or by equitable principles relating to enforceability or a ruling of a court;
- (iv) the Reorganized Common Equity to be issued to the Commitment Parties in connection with the Equity Rights Offering and the Equity Rights Offering Backstop Commitment will, when delivered, be duly and validly authorized, issued, and delivered;
- (v) the Debtors acknowledge and agree that the transactions contemplated hereunder are arm's-length and each Commitment Party is acting solely in the capacity of an arm's-length contractual counterparty to the Debtors in respect thereof;
- (vi) none of the Debtors is an "investment company" as defined in the Investment Company Act of 1940;
- (vii) none of the Debtors are party to any contract with any person that would give rise to a valid claim against the Commitment Parties for a brokerage commission, finder's fee, or like payment in connection with the Equity Rights Offering;
- (viii) except as disclosed in the required reports filed with the SEC (the "***SEC Filed Documents***") and other than the Chapter 11 Cases and any adversary proceedings or contested matters commenced in connection therewith or related thereto, none of the Debtors are party to, nor their property the subject of, any pending or threatened material legal, governmental, administrative, judicial, or regulatory investigations, actions, claims, or similar proceedings, which, if adversely determined, would be reasonably expected to have, individually or in the aggregate, a material adverse effect on the business, operations, financial condition or prospects of the Debtors;
- (ix) in each case solely to the extent that the failure of the following such representation to be true would result in a material liability of the Debtors for taxes following the Effective Date, the Debtors (1) have filed or caused to be filed all material tax returns required to have been filed and each such tax return is true and correct in all material respects, (2) have timely paid or caused to be timely paid all material taxes or assessments due and payable with respect to all periods or portions thereof ending on or before the date hereof, (3) have complied in all material respects with all applicable laws, rules, and regulations relating to the payment and withholding of taxes, and (4) other than in connection with the Chapter 11 Cases or to the extent the

Debtors are sufficiently reserved in accordance with U.S. generally accepted accounting principles (“*GAAP*”), are not subject to any asserted claims with respect to any material taxes, no presently effective waivers or extensions of statutes of limitation with respect to material taxes have been given or requested, and no material tax returns are being audited or examined by a taxing authority;

- (x) except as disclosed in the SEC Filed Documents, the Debtors have established and maintain a system of internal controls over financial reporting (as such term is defined in Rule 13a-15(f) under the Securities Exchange Act of 1934, as amended (the “*Exchange Act*”)) that (1) complies with the requirements of the Exchange Act and (2) has been designed by the Debtors’ principal executive officer and principal financial officer, or under their supervision, to provide reasonable assurance regarding the reliability of financial reporting and the preparation of financial statements for external purposes in accordance with GAAP, and the Debtors are not aware of any material weaknesses in the Debtors’ internal control over financial reporting as of the date hereof; and
- (xi) except as disclosed in the SEC Filed Documents, the Debtors have established and maintain disclosure controls and procedures (as such term is defined in Rule 13a-15(e) under the Exchange Act) designed to ensure that material information relating to the Debtors and their subsidiaries is made known to the Debtors’ principal executive officer and principal financial officer by others within those entities.

(b) Each Commitment Party, severally and not jointly, represents and warrants as to itself only as set forth below:

- (i) such Commitment Party is validly existing and in good standing under the laws of its jurisdiction of incorporation or organization, and has all requisite organizational power and authority to execute this Equity Rights Offering Backstop Commitment Letter, carry out the transactions contemplated hereby and perform the obligations contemplated hereunder, and the execution and delivery of this Equity Rights Offering Backstop Commitment Letter and the performance of such Commitment Party’s obligations hereunder have been duly authorized;
- (ii) the execution and delivery of and performance under this Equity Rights Offering Backstop Commitment Letter does not and will not (1) violate any provision of law, rule or regulation applicable to such Commitment Party, (2) violate such Commitment Party’s charter or bylaws (or other similar governing documents), (3) conflict with, result in a breach of or constitute (with due notice or lapse of time or both) a default under any material contractual obligation to which such Commitment Party is a party, or

- (4) require any consent, approval or similar authorization by any federal, state, or governmental authority or regulatory body, except, with respect to clauses (1), (3), and (4) above, as would not, individually or in the aggregate, reasonably be expected to adversely affect in any material respect such Commitment Party's ability to perform its obligations under this Equity Rights Offering Backstop Commitment Letter;
- (iii) this Equity Rights Offering Backstop Commitment Letter is the legally valid and binding obligation of such Commitment Party, enforceable in accordance with its terms, except as enforcement may be limited by bankruptcy, insolvency, reorganization, moratorium, or other similar laws relating to or limiting creditors' rights generally or by equitable principles relating to enforceability or a ruling of a court;
 - (iv) such Commitment Party understands that (1) the issuance of the Reorganized Common Equity issued on account of the Equity Rights Offering Backstop Commitments has not been registered under the Securities Act by reason of a specific exemption from the registration provisions of the Securities Act and (2) such Reorganized Common Equity cannot be sold unless subsequently registered under the Securities Act or an exemption from registration is available;
 - (v) such Commitment Party is acquiring Reorganized Common Equity in respect of its Equity Rights Offering Backstop Commitment for its own account or accounts or funds over which it holds voting discretion, not otherwise as a nominee or agent, and not otherwise with the view to, or for resale in connection with, any distribution thereof not in compliance with applicable securities laws, and such Commitment Party has no present intention of selling, granting any other participation in, or otherwise distributing the same, except in compliance with applicable securities laws;
 - (vi) such Commitment Party is either (1) a "qualified institutional buyer," as such term is defined in Rule 144A under the Securities Act or (2) an "accredited investor" within the meaning of Rule 501 of the Securities Act;
 - (vii) such Commitment Party (1) has independently evaluated the merits and risks of its investment in the Reorganized Common Equity attributable to its Equity Rights Offering Backstop Commitment and (2) acknowledges that it (A) has been furnished with or has had full access to all the information that it considers necessary or appropriate to make an informed investment decision with respect to the unsubscribed Reorganized Common Equity and (B) has had an opportunity to discuss with management of the Debtors the intended business and financial affairs of the Debtors and to obtain information necessary to verify any information furnished to it or to which it had access;

- (viii) such Commitment Party will have sufficient immediately available funds to perform all of its obligations under this Equity Rights Offering Backstop Commitment Letter, including the ability to timely make and complete the payment of the aggregate Purchase Price for such Commitment Party's Equity Rights Offering Backstop Commitment; and
- (ix) no such Commitment Party, its affiliates, or any person acting on its or any of their behalf has engaged, or will engage, in any form of general solicitation or general advertising (within the meaning of Rule 502(c) of the Securities Act) in connection with the offering of the Reorganized Common Equity.

7. Conditions Precedent to Funding and Release of Funds from the Escrow Account.

The Commitment Parties' obligation to fund all or any portion of their obligations under the Equity Rights Offering and their respective Equity Rights Offering Backstop Commitments and the release of funds held in the Escrow Account shall be subject to the following conditions precedent, *provided* that any of the following conditions precedent may be waived by the Required Commitment Parties:

- (a) no Required Commitment Party Termination Events shall have occurred regardless of whether any termination notice has been delivered;
- (b) the satisfaction (or waiver or removal) of each of the conditions precedent to the Effective Date as set forth in the Plan (other than any condition precedent relating to the Equity Rights Offering Backstop Commitment or consummation of the Equity Rights Offering or any condition that by its nature can be satisfied only by deliveries made on the Effective Date);
- (c) the Confirmation Order providing for treatment under section 1145 of the Bankruptcy Code as provided for in **Section 1(d)** hereof in respect of the Equity Rights Offering Shares;
- (d) the Confirmation Order shall have been entered, and such Confirmation Order shall approve the Plan without any material changes and with terms and conditions (i) consistent in all material respects with the terms of this Equity Rights Offering Backstop Commitment Letter (including the terms set forth in the Committee Settlement Term Sheet), the Equity Rights Offering Equity Value and the Equity Rights Offering Share Percentage (subject to *de minimis* changes), and (ii) providing that the Equity Rights Offering Shares shall be validly issued and outstanding, and free and clear of all taxes, liens, preemptive rights, rights of first refusal, subscription, and similar rights, except as set forth herein and other than transfer restrictions pursuant to applicable securities and tax laws, as of the Effective Date;
- (e) the Debtors shall have delivered a Funding Notice to the Commitment Parties;

(f) no judgment, injunction, decree or other legal restraint or applicable law shall be in effect that prohibits the consummation of the Plan, the Equity Rights Offering, or related documents;

(g) the only legal restrictions on trading of the Equity Rights Offering Shares are described herein and in the *Disclosure Statement for Second Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates* [Docket No. 1017], dated March 16, 2026; and

(h) the Plan shall provide that, on and following the Effective Date, the Reorganized Debtors will use commercially reasonable efforts to comply with all reporting requirements of the Securities Exchange Act of 1934, as amended, applicable to the Reorganized Debtors, including, but not limited to, any such requirements presently outstanding.

8. Transfer and Assignment; Third-Party Beneficiaries.

No Debtor may assign its rights, interests or obligations hereunder without the prior written consent of the Required Commitment Parties and any purported assignment by the Debtors in violation of this **Section 8** shall be void *ab initio*. Prior to delivery of the Funding Notice, each Commitment Party may transfer or assign all or any portion of its respective Equity Rights Offering Backstop Commitment hereunder, and its respective Unsecured Notes proportionate to such transferred or assigned Equity Rights Offering Backstop Commitment to: (a) any other Commitment Party; (b) any of its Affiliates, *provided* that such Affiliate executes a joinder to this Equity Rights Offering Backstop Commitment Letter in form and substance acceptable to the Debtors; or (c) any other person approved in advance in writing by the Debtors; *provided* that such person executes a joinder to this Equity Rights Offering Backstop Commitment Letter in form and substance reasonably acceptable to the Debtors; *provided further* that any transfer or assignment of all or any portion of a Commitment Party's obligation to fund the Subscription Rights Funding Amount shall require the prior written consent of the Debtors (any such transferee, a "**Permitted Transferee**"); *provided further* that such transferee and the transferring Commitment Party shall have delivered to the Notice Parties (as defined in **Section 17** hereof) written notice of such transfer; *provided further* that the transferor shall remain liable for (and shall continue to have the financial wherewithal to satisfy) the full amount of its Equity Rights Offering Backstop Commitment (including the portion so transferred in the event that the transferee defaults on its obligation) until the transferee's funding of the transferred Equity Rights Offering Backstop Commitment. Upon the effectiveness of any transfer of all or a portion of an Equity Rights Offering Backstop Commitment following the Permitted Transferee's funding of the transferred Equity Rights Offering Backstop Commitment: (i) the transferor shall be deemed to relinquish its rights under this Equity Rights Offering Backstop Commitment Letter to the extent of such transferred rights and obligations; (ii) the Permitted Transferee shall be fully bound with respect to the transferred Equity Rights Offering Backstop Commitment; (iii) the transferor shall have no right to receive its Equity Rights Offering Backstop Commitment Premium with respect to the transferred Equity Rights Offering Backstop Commitment; and (iv) the Debtors shall update **Schedule I** hereto to reflect such transfer, and such update(s) shall not constitute an amendment to this Equity Rights Offering Backstop Commitment Letter. Except as provided in **Section 5**

hereof with respect to the Indemnified Parties, this Equity Rights Offering Backstop Commitment Letter is not intended to and does not confer upon any person other than the parties hereto (including any Permitted Transferee who has funded the transferred Equity Rights Offering Backstop Commitment) any rights or remedies under this Equity Rights Offering Backstop Commitment Letter.

9. Funding Default.

(a) Upon the occurrence of the failure by any Commitment Party to timely pay the applicable Purchase Price in respect of its Equity Rights Offering Backstop Commitment (such failure, a “**Funding Default**”) in accordance with Section 1(c) herein, the Commitment Parties (other than any Commitment Party that causes a Funding Default (a “**Defaulting Commitment Party**”)) shall have the right, but not the obligation, within three (3) business days after receipt of written notice from the Debtors to all Commitment Parties of such Funding Default, which notice shall be given as promptly as practicable following the occurrence of such Funding Default (such three (3) business day period, the “**Replacement Period**”), to elect, by written notice to the Debtors, to purchase all or any portion of the Reorganized Common Equity attributable to such Defaulting Commitment Party’s Equity Rights Offering Backstop Commitment, including such Defaulting Commitment Party’s Equity Rights Offering Backstop Commitment Premium (such purchase, an “**Optional Replacement Purchase**”), on the terms and subject to the conditions set forth in this Equity Rights Offering Backstop Commitment Letter (such Commitment Parties, the “**Optional Replacing Commitment Parties**” and, the procedures outlined in this Section 9, the “**Replacement Procedures**”); *provided that*, notwithstanding any Optional Replacement Purchase, the Defaulting Commitment Party shall immediately forfeit its Equity Rights Offering Backstop Commitment Premium in full upon the occurrence of the Funding Default, and, for the avoidance of doubt, such forfeited Equity Rights Offering Backstop Commitment Premium shall be transferred *pro rata* to the Optional Replacing Commitment Party(ies) pursuant to this paragraph. If the Debtors receive more than one (1) written notice of an Optional Replacement Purchase election, the Debtors will accept such Optional Replacement Purchases on a *pro rata* basis to the Commitment Parties’ original Equity Rights Offering Backstop Commitment Percentages until the Funding Default is replaced in whole or such Optional Replacement Purchases are otherwise exhausted, subject to paragraph (d) of this Section 9. The purchase price paid by any Optional Replacing Commitment Party in connection with an Optional Replacement Purchase shall be equal to the applicable Purchase Price in respect of such Defaulting Commitment Party’s Equity Rights Offering Backstop Commitment.

(b) If a Commitment Party is a Defaulting Commitment Party, or is otherwise in breach of its obligations hereunder, it shall not be entitled to any of the Equity Rights Offering Backstop Commitment Premium hereunder (in which case, for the avoidance of doubt, such Equity Rights Offering Backstop Commitment Premium shall be forfeited and shall not be payable to any other Commitment Parties other than Optional Replacing Commitment Parties making a corresponding Optional Replacement Purchase), even if such Defaulting Commitment Party subsequently funds the applicable Purchase Price with respect to its Equity Rights Offering Backstop Commitment, nor shall it qualify for an Optional Replacement Purchase hereunder; *provided that*, for the avoidance of doubt, this Section 9(b) shall not be deemed to limit any Commitment Party’s obligations under Section 1(b)(iii).

(c) Nothing in this Equity Rights Offering Backstop Commitment Letter shall require any Commitment Party to fund more than its Equity Rights Offering Backstop Commitment; *provided that*, upon a Commitment Party electing to make an Optional Replacement Purchase, such election shall be binding, and failure to fund any such cover amount in accordance with this **Section 9** shall constitute a Funding Default.

(d) Notwithstanding anything to the contrary set forth in **Section 2** but subject to **Section 12**, no provision of this Equity Rights Offering Backstop Commitment Letter shall relieve any Defaulting Commitment Party from liability hereunder, including for liability for the consequences of its breach, or limit the availability of the remedies available to the Debtors or non-Defaulting Commitment Parties hereto, and the Debtors and such non-Defaulting Commitment Parties can enforce rights or damages and/or specific performance upon the failure to timely fund by the Defaulting Commitment Party.

(e) Upon a Funding Default, the Debtors may seek emergency relief from the Bankruptcy Court seeking an order compelling any and all Defaulting Commitment Parties to fund their respective Equity Rights Offering Backstop Funding Amounts, as required herein, and the Commitment Parties, including any Defaulting Commitment Party, shall not object to such relief being heard on an emergency basis.

(f) The remedies available to the Debtors to enforce performance of any Defaulting Commitment Party are not mutually exclusive and the Debtors may utilize any and all remedies available to them to enforce this Equity Rights Offering Backstop Commitment Letter against any Defaulting Commitment Party.

10. **Registration Rights.**

If applicable, the Debtors shall agree to use commercially reasonable efforts to register, as soon as reasonably practicable following the Effective Date, the resale of any restricted shares of Reorganized Common Equity received by such Commitment Party on the Effective Date.

11. **Tax Forms.**

Each Commitment Party shall deliver to the Debtors a properly completed and duly executed IRS Form W-9 or appropriate Form W-8, as applicable.

12. **Governing Law; Jurisdiction.**

This Equity Rights Offering Backstop Commitment Letter shall be governed and construed in accordance with the laws of the State of New York, without giving effect to any rules, policies or principles that would compel the application of a jurisdiction other than the State of New York. The parties hereto consent and agree that any action to enforce this Equity Rights Offering Backstop Commitment Letter or any dispute, whether such dispute arises in law or equity, arising out of or relating to this Equity Rights Offering Backstop Commitment Letter and the agreements, instruments, and documents contemplated hereby and thereby shall be brought exclusively in the Bankruptcy Court, or if the Bankruptcy Court does not have jurisdiction to hear such action or

dispute, any state or federal court located in the City and County of New York (the “***Chosen Courts***”). Each of the parties hereto (a) irrevocably submits to the exclusive jurisdiction of the Chosen Courts; (b) waives any objection to laying venue in any such action or proceeding in the Chosen Courts; and (c) waives any objection that the Chosen Courts are an inconvenient forum or do not have jurisdiction over any party hereto or constitutional authority to finally adjudicate the matter. Without limiting the rights of any party hereto, each party acknowledges and agrees that the Debtors are entitled to seek damages from any Commitment Party that breaches its obligations under this Equity Rights Offering Backstop Commitment Letter; *provided* that, each party hereto hereby waives, to the maximum extent not prohibited by law, any right it may have to claim or recover in any legal action or proceeding any special, exemplary, punitive, or consequential damages. EACH PARTY HERETO IRREVOCABLY WAIVES ANY AND ALL RIGHT TO TRIAL BY JURY IN ANY LEGAL PROCEEDING ARISING OUT OF OR RELATING TO THIS EQUITY RIGHTS OFFERING BACKSTOP COMMITMENT LETTER OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY.

13. Amendments.

This Equity Rights Offering Backstop Commitment Letter and the Committee Settlement Term Sheet incorporated herein represent the final agreement and the entire understanding among the parties hereto with respect to the subject matter hereof and may not be contradicted by evidence of prior or contemporaneous agreements and understandings of the parties hereto. There are no unwritten oral agreements or understandings between the parties hereto relating to the subject matter hereof. This Equity Rights Offering Backstop Commitment Letter may only be modified, amended, or supplemented by an agreement signed by the Debtors and the Required Commitment Parties; *provided* that: (a) the prior written consent of each Commitment Party adversely affected thereby shall be required for any amendment that would (i) modify such Commitment Party’s Equity Rights Offering Backstop Commitment Percentage, (ii) alter the pricing terms set forth in the Committee Settlement Term Sheet and/or this Equity Rights Offering Backstop Commitment Letter with respect to such Commitment Party, or (iii) have a material, adverse, and disproportionate effect on such Commitment Party; (b) each Commitment Party’s prior written consent shall be required for any amendment that would increase its or the aggregate Equity Rights Offering Backstop Commitment amount; and (c) each Commitment Party’s prior written consent shall be required to amend this proviso with respect to itself. Notwithstanding the foregoing, the Committee Settlement Term Sheet shall be revised as necessary without requiring a written instrument signed by the Debtors and the Required Commitment Parties to reflect changes in the composition of the Commitment Parties and Equity Rights Offering Backstop Commitment Percentages as a result of transfers permitted in accordance with the terms and conditions of this Equity Rights Offering Backstop Commitment Letter.

14. Counterparts.

This Equity Rights Offering Backstop Commitment Letter may be executed in several counterparts, each of which will be deemed to be an original, and all of which together will be deemed to be one and the same agreement. Execution copies of this Equity Rights Offering

Backstop Commitment Letter may be delivered by electronic mail or DocuSign, which will be deemed to be an original for the purposes of this **Section 14**.

15. **No Fiduciary Duties.**

Notwithstanding anything to the contrary herein, the entry into this Equity Rights Offering Backstop Commitment Letter and the transactions contemplated hereby shall not create any fiduciary duties between and among the Commitment Parties or other duties or responsibilities to each other, the Debtors, or any of the Debtor's creditors or other stakeholders. Nothing in this Equity Rights Offering Backstop Commitment Letter shall require the Debtors, nor the Debtors' directors, managers, or officers, to take or refrain from taking any action (including terminating this Equity Rights Offering Backstop Commitment Letter under **Section 2**), to the extent such person or persons determines, based on the advice of counsel, that taking, or refraining from taking, such action, as applicable, would be inconsistent with applicable law or its fiduciary obligations under applicable law; *provided* that this **Section 15** shall not impede any party's right to terminate this Equity Rights Offering Backstop Commitment Letter pursuant to **Section 2**.

16. **Specific Performance.**

Each of the Debtors and the Commitment Parties agree that irreparable damage would occur if any provision of this Equity Rights Offering Backstop Commitment Letter were not performed in accordance with the terms hereof, and that each of the parties hereto shall be entitled to an injunction or injunctions without the necessity of posting a bond to prevent breaches of this Equity Rights Offering Backstop Commitment Letter or to enforce specifically the performance of the terms and provisions hereof, in addition to any other remedy to which they are entitled at law or in equity. Unless otherwise expressly stated herein, no right or remedy described or provided in this Equity Rights Offering Backstop Commitment Letter is intended to be exclusive or to preclude a party thereto from pursuing other rights and remedies to the extent available under this Equity Rights Offering Backstop Commitment Letter, at law, or in equity.

17. **Notice.**

Notwithstanding anything to the contrary herein, provision to Glenn Agre Bergman & Fuentes LLP and Seward & Kissel LLP of any notice that may be due or required to any Commitment Party, as set forth herein, shall constitute notice to such Commitment Party. Any notice required hereunder will be deemed given if in writing and delivered, if contemporaneously sent by electronic mail, courier, or by registered or certified mail (return receipt requested) to the following addresses and electronic mail addresses (collectively, the "***Notice Parties***"):

(1) If to the Debtors, to:

Office Properties Income Trust
Two Newton Place, 255 Washington Street, Suite 300
Newton, MA 02458-1634
Attention: Yael Duffy and Brian Donley
E-mail: YDuffy@rmrgroup.com and BDonley@rmrgroup.com

with a copy (which shall not constitute notice) to:

Latham & Watkins LLP
1271 Avenue of the Americas
New York, New York 10020

Attention: Ray C. Schrock (ray.schrock@lw.com)
Andrew M. Parlen (andrew.parlen@lw.com)
Anupama Yerramalli (anu.yerramalli@lw.com)
Keith A. Simon (keith.simon@lw.com)
Christopher J. Clark (christopher.j.clark@lw.com)
Christopher M. Cronin (christopher.cronin@lw.com)

(2) If to ValueWorks Limited Partners LP and Diamond Family Investments LLC, to the addresses or electronic mail addresses set forth below the Commitment Party's signature, with a copy (which shall not constitute notice) to:

Seward & Kissel LLP
One Battery Park Plaza
New York, New York 10004

Attention: Robert J. Gayda (gayda@sewkis.com)

(3) If to the remaining Commitment Parties, to the addresses or electronic mail addresses set forth below the Commitment Party's signature, with a copy (which shall not constitute notice) to:

Glenn Agre Bergman & Fuentes LLP
1185 Avenue of the Americas
New York, New York 10036

Attention: Andrew K. Glenn (aglenn@glennagre.com)
Kurt A. Mayr (kmayr@glennagre.com)
Stacy Tecklin (stecklin@glennagre.com)
Rich Ramirez (rramirez@glennagre.com)
Malak S. Doss (mdoss@glennagre.com)

Any notice given by delivery, mail, or courier will be effective when received. Any notice given by electronic mail will be effective upon confirmation of transmission.

[Signature Pages to Follow]

SCHEDULE I

[On File with the Debtors]

REDLINE

**IN THE UNITED STATES BANKRUPTCY COURT
FOR THE SOUTHERN DISTRICT OF TEXAS
HOUSTON DIVISION**

	X	
	:	
In re:	:	Chapter 11
	:	
OFFICE PROPERTIES INCOME TRUST, <i>et al.</i> ,	:	Case No. 25-90530 (CML)
	:	
Debtors. ¹	:	(Jointly Administered)
	:	
	X	

**ORDER (I) APPROVING EQUITY RIGHTS OFFERING
PROCEDURES AND RELATED FORMS, (II) AUTHORIZING DEBTORS
TO CONDUCT EQUITY RIGHTS OFFERING IN CONNECTION WITH
DEBTORS' PLAN OF REORGANIZATION, (III) AUTHORIZING DEBTORS'
ENTRY INTO, AND PERFORMANCE UNDER, ~~THE~~ EQUITY RIGHTS OFFERING
BACKSTOP
COMMITMENT LETTER, AND (IV) GRANTING RELATED RELIEF**

[Relates to Docket No. ~~—~~ 982]

Upon the motion (the “*Motion*”),² of the above-captioned debtors and debtors in possession (collectively, the “*Debtors*”) for entry of an order (this “*Order*”): (a) approving the Equity Rights Offering Procedures, substantially in the form attached hereto as Exhibit A, and related Subscription ~~and Registration~~ Form, substantially in the form attached hereto as Exhibit B; (b) authorizing the Debtors to conduct the Equity Rights Offering; (c) authorizing the Debtors to enter into and perform under the Equity Rights Offering Backstop Commitment Letter attached hereto as Exhibit C; and (d) granting related relief, all as more fully set forth in the Motion; and upon consideration of the First Day Declaration; and the Court having determined that the relief requested in the Motion is in the best interests of the Debtors, their creditors,

¹ A complete list of the Debtors in the Chapter 11 Cases may be obtained on the website of the Debtors’ claims and noticing agent at <https://restructuring.ra.kroll.com/OPI>. The Debtors’ mailing address is Two Newton Place, 255 Washington Street, Suite 300, Newton, Massachusetts 02458-1634.

² Capitalized terms used but not otherwise defined herein have the meaning assigned to them in the Motion.

estates, and other parties in interest; and this Court having jurisdiction to consider the Motion and the relief requested therein pursuant to 28 U.S.C. § 1334; and the Court having found that this is a core proceeding pursuant to 28 U.S.C. § 157(b)(2) and that this Court may enter a final order consistent with Article III of the United States Constitution; and this Court having found that venue of this proceeding and the Motion in this district is proper pursuant to 28 U.S.C. §§ 1408 and 1409; and this Court having found that the Debtors' notice of the Motion and opportunity for a hearing on the Motion were appropriate under the circumstances and no other notice need be provided; and this Court having heard statements in support of the relief requested therein at a hearing before this Court (the "**Hearing**"); and this Court having determined that the legal and factual bases set forth in the Motion and at the Hearing establish just cause for the relief granted herein; and upon all of the proceedings had before this Court; and after due deliberation and sufficient cause appearing therefor, it is hereby

ORDERED, ADJUDGED, AND DECREED THAT:

1. The Debtors are authorized to commence and conduct the Equity Rights Offering in accordance with the terms and conditions of the Equity Rights Offering Procedures.
2. The Equity Rights Offering Procedures, substantially in the form attached hereto as **Exhibit A**, and the Subscription ~~and Registration~~ Form, substantially in the form attached hereto as **Exhibit B**, are hereby approved. The Equity Rights Offering Procedures provide sufficient information to enable each Unsecured Noteholder to duly participate in the Equity Rights Offering.
3. The Debtors are authorized, but not directed, in consultation with counsel to the Committee, to modify the Equity Rights Offering Procedures or adopt any additional detailed procedures, consistent with the provisions of the Equity Rights Offering Procedures, to effectuate

the Equity Rights Offering and to issue the Subscription Rights. The Debtors are authorized, but not directed, in consultation with counsel to the Committee, to make changes to the Equity Rights Offering Procedures or the Subscription ~~and Registration~~ Form without further order of the Court, including formatting changes, changes to correct typographical and grammatical errors, if any, and conforming changes with respect to the Disclosure Statement, the Plan, and related materials.

4. For the avoidance of doubt, all questions concerning the timeliness, viability, form, and eligibility of any exercise of Subscription Rights shall be determined by the Debtors in accordance with the Equity Rights Offering Procedures. Pursuant to the Equity Rights Offering Procedures, the Debtors are authorized, but not directed, to waive any defect or irregularity, or permit a defect or irregularity to be corrected within such time frames as they may determine, or to reject the purported exercise of rights.

5. The timeline for the Equity Rights Offering as set forth in the Motion is hereby approved. The Subscription Commencement Date is hereby set as **April 323, 2026** (or as soon as reasonably practicable thereafter), and the Subscription ~~and Registration~~ Expiration Deadline is hereby set as **~~April 17~~May 7, 2026 at 5:00 p.m. (prevailing Eastern Time)**, as may be ~~extended~~modified in the Debtors' sole discretion in consultation with ~~the advisors~~counsel to the September 2029 Ad Hoc Group, ~~advisors~~counsel to the Unsecured Notes Ad Hoc Group, and ~~advisors~~counsel to the Committee, or as required by law. The Subscription Period affords a reasonable period of time for Unsecured Noteholders to make an informed decision regarding whether to exercise their Subscription Rights and participate in the Equity Rights Offering.

6. Any Unsecured Noteholder, other than the Equity Rights Offering Backstop Parties, intending to participate in the Equity Rights Offering must affirmatively make a binding

election to exercise its Subscription Rights and make the required payment by **5:00 p.m. prevailing Eastern Time, on ~~April 17~~May 7, 2026,** and must otherwise timely satisfy each of the terms and conditions set forth in the Equity Rights Offering Procedures. Unsecured Noteholders will be deemed to have relinquished and waived all rights to participate in the Equity Rights Offering to the extent such holders fail to timely satisfy each of the terms and conditions set forth in the Equity Rights Offering Procedures.

7. Within **three (3) Business Days following the Subscription ~~and Registration~~ Expiration Deadline**, the Debtors shall send the Funding Notice to each Equity Rights Offering Backstop Party or as soon as reasonably practicable thereafter, in consultation with counsel to the September 2029 Ad Hoc Group, counsel to the Unsecured Notes Ad Hoc Group, and counsel to the Committee. The Equity Rights Offering Backstop Parties must tender their underlying Unsecured Notes in accordance with the Equity Rights Offering Procedures and make the required payment by ~~5:00 p.m. prevailing Eastern Time, three (3) Business Days after the Debtors' sending of the Funding Notice~~the second (2nd) business day before the Effective Date.

8. The Equity Rights Offering Procedures and the provisions of this Order, including all findings herein, shall be effective and binding upon all parties in interest in these Chapter 11 Cases, the Debtors, their estates, and all successors and assigns thereof, including any chapter 11 trustee appointed in any of these cases.

9. The Debtors are authorized to distribute the Equity Rights Offering Procedures to Unsecured Noteholders.

10. The Debtors are authorized to enter into the Equity Rights Offering Backstop Commitment Letter attached hereto as **Exhibit C** and any and all instruments, documents, and

papers contemplated thereunder, to fully perform all of their obligations thereunder, to implement any actions contemplated thereby, and to take any and all actions reasonably necessary or appropriate to perform all obligations provided for in the Equity Rights Offering Backstop Commitment Letter. The Equity Rights Offering Backstop Commitment Letter shall be binding and enforceable against the Debtors and other parties thereto in accordance with its terms.

11. The Equity Rights Offering Backstop Commitment Letter and the terms and provisions included therein are approved in their entirety. The terms and conditions of the Equity Rights Offering Backstop Commitment Letter are fair, reasonable, and the best available to the Debtors under the circumstances, reflect the Debtors' exercise of prudent business judgment consistent with their fiduciary duties, are based on good, sufficient, and sound business purposes and justifications, and are supported by reasonably equivalent value and consideration. The Equity Rights Offering Backstop Commitment Letter was negotiated in good faith and at arm's length among the Debtors, the Equity Rights Offering Backstop Parties, and their respective professional advisors. The failure to describe specifically or include any particular provision of the Equity Rights Offering Backstop Commitment Letter or related documents in the Motion or this Order shall not diminish or impair the effectiveness of such provision, it being the intent of this Court that the Equity Rights Offering Backstop Commitment Letter be approved in its entirety.

12. The Debtors are authorized to execute, deliver, and perform under one or more amendments, waivers, consents, or other modifications to and under the Equity Rights Offering Backstop Commitment Letter, from time to time as necessary, in each case subject to the terms and provisions of the Equity Rights Offering Backstop Commitment Letter and to the extent such

amendments are consistent with the ~~Committee Settlement Term Sheet~~Plan, without further order of this Court.

13. The Equity Rights Offering Backstop Obligations are hereby approved as reasonable, and shall not be subject to any avoidance, reduction, setoff, recoupment, offset, recharacterization, subordination (whether contractual, equitable, or otherwise), counterclaims, cross-claims, defenses, disallowance, impairment, or any other challenges under any applicable law or regulation by any person or entity. The Debtors are authorized to provide and perform their Equity Rights Offering Backstop Obligations set forth in the Equity Rights Offering Backstop Commitment Letter in accordance with the terms and conditions thereof, and without further application to or order of this Court.

14. The Equity Rights Offering Backstop Premium is an actual and necessary cost of preserving the Debtors' estates and shall constitute an allowed administrative expense claim against each of the Debtors under sections 503(b) and 507 of the Bankruptcy Code.

15. The Debtors' designation of Kroll Restructuring Administration, LLC as the Subscription Agent for the Equity Rights Offering is hereby approved.

16. ~~15.~~ Notice of the Motion as provided therein shall be deemed good and sufficient notice of such Motion and the requirements of Bankruptcy Rule 6004(a) and the Bankruptcy Local Rules are satisfied by such notice.

17. ~~16.~~ Notwithstanding the provisions of Bankruptcy Rule 6004(h), this Order shall be immediately effective and enforceable upon its entry.

18. ~~17.~~ This Court shall retain jurisdiction to hear and determine all matters arising from or related to the implementation, interpretation and/or enforcement of this Order.

Signed: _____, 2026
Houston, Texas

UNITED STATES BANKRUPTCY
JUDGE

Exhibit A

Equity Rights Offering Procedures

**OFFICE PROPERTIES INCOME TRUST (“OPI”)
EQUITY RIGHTS OFFERING PROCEDURES¹**

- Each holder of an Allowed Unsecured Notes Claim ~~that is an Unsecured Noteholder (as defined below)~~ is being granted the right (collectively, the “Subscription Rights”) to participate in the Equity Rights Offering (as defined below).
- Holders of Unsecured Notes (the “Unsecured Noteholders”) are *not* required to exercise any of their Subscription Rights, but they may if they wish to do so and they follow the required procedures.
- If you are an Unsecured Noteholder and you exercise your Subscription Rights, you will have to PAY the aggregate Purchase Price (as defined below) for such exercise as described further below.
- If the Equity Rights Offering is consummated, Unsecured Noteholders who have timely and validly exercised their applicable Subscription Rights, including payments therefor, will receive the corresponding number of Equity Rights Offering Shares (as defined below) that were purchased.
- Notwithstanding whether Unsecured Noteholders have exercised any of their Subscription Rights, consummation of the Equity Rights Offering is subject to, among other things, (a) the confirmation of the Plan (as defined below) and (b) the simultaneous occurrence of the Effective Date.
- Additional information is provided in this document and in the Subscription ~~and Registration~~ Form enclosed herewith.²

The Subscription Rights and the Equity Rights Offering Shares ~~(other than the Equity Rights Offering Shares issued to the Equity Rights Offering Backstop Parties)~~ are being distributed and issued by OPI without registration under the U.S. Securities Act of 1933, as amended (the “Securities Act”), in reliance on section 1145 of the Bankruptcy Code (as defined below) to the maximum extent available by law or, if section 1145 of the Bankruptcy Code ~~(as defined below)~~ is not available, then otherwise pursuant to another exemption from registration ~~under the Securities Act and any other applicable securities laws. The Equity Rights Offering Shares issued to the Equity Rights Offering Backstop~~

¹ Capitalized terms used and not defined herein shall have the meaning assigned to them in the Plan (as defined below) or the Motion of Debtors for Order (I) Approving Equity Rights Offering Procedures and Related Forms, (II) Authorizing Debtors to Conduct Equity Rights Offering in Connection with Debtors’ Plan of Reorganization, (III) Authorizing Debtors’ Entry Into, and Performance Under, the Equity Rights Offering Commitment Letter, and (IV) Granting Related Relief [Docket No. 982] (filed ~~contemporaneously herewith on~~ March 6, 2026 and incorporated herein by reference), as applicable.

² ~~Unsecured Noteholders who are not participating in the Equity Rights Offering may also register their information to receive Reorganized Common Equity pursuant to the Plan (the “Plan Distribution Shares”) by completing the applicable portions of the Subscription and Registration Form as described therein.~~

~~Parties are being distributed and issued by OPI without registration pursuant to Section 4(a)(2) of the Securities Act, the safe harbor of Regulation D promulgated thereunder, or such other exemption from registration as may be available~~ under the Securities Act and any other applicable securities laws. None of the Subscription Rights or the Equity Rights Offering Shares have been, nor is it anticipated that they will be, registered under the Securities Act or any state or local law requiring registration for offer and sale of a security.

~~The~~ Except as provided herein, the Subscription Rights will not be detachable or separately transferable from the Allowed Unsecured Notes Claim. Any purported transfer shall be void and without effect, and neither the transferor nor the purported transferee will receive any Equity Rights Offering Shares otherwise purchasable on account of such transferred Subscription Rights.

Each Equity Rights Offering Share issued upon exercise of a Subscription Right ~~(other than the Equity Rights Offering Shares issued to the Equity Rights Offering Backstop Parties)~~ may, unless issued to an entity that is an “underwriter” as that term is defined for purposes of section 1145 of the Bankruptcy Code, be resold in reliance on section 1145 of the Bankruptcy Code and pursuant to Section 4(a)(1) of the Securities Act and shall not be restricted securities under the Securities Act.

~~Equity Rights Offering Shares issued to the Equity Rights Offering Backstop Parties in reliance upon the exemption provided by Section 4(a)(2) of the Securities Act, the safe harbor of Regulation D promulgated thereunder, or such other exemption from registration as may be available under the Securities Act and any other applicable securities laws, shall be imprinted or otherwise associated with a legend in substantially the following form:~~

~~“THE SECURITIES REPRESENTED HEREBY WERE ORIGINALLY ISSUED ON [ISSUANCE DATE], HAVE NOT BEEN REGISTERED UNDER THE UNITED STATES SECURITIES ACT OF 1933, AS AMENDED (THE “SECURITIES ACT”), OR ANY APPLICABLE STATE SECURITIES LAWS, AND MAY NOT BE SOLD OR TRANSFERRED IN THE ABSENCE OF AN EFFECTIVE REGISTRATION STATEMENT UNDER THE SECURITIES ACT OR AN AVAILABLE EXEMPTION FROM REGISTRATION THEREUNDER.”~~

A ~~revised~~ Disclosure Statement (as defined below) ~~will be~~ has been filed and distributed in connection with the Debtors’ solicitation of votes to accept or reject ~~a revised Plan (as defined below) that incorporates the terms of the Committee Settlement Term Sheet (as defined below).~~ The Plan. The Disclosure Statement ~~will set~~ sets forth important information, including risk factors, that should be carefully read and considered by each Unsecured Noteholder prior to making a decision to participate in the Equity Rights Offering. ~~Upon filing and distribution, an~~ An electronic copy of the ~~amended~~ Disclosure Statement ~~will be made~~ is available on the Debtors’ restructuring website at <https://restructuring.ra.kroll.com/OPI> and additional copies of the ~~revised~~ Disclosure Statement ~~will be~~ are available upon request from Kroll Restructuring Administration LLC, the subscription agent for the Equity Rights Offering

(the “*Subscription Agent*”), at the following address:

**OPI Ballot Processing Center
c/o Kroll Restructuring Administration LLC
850 Third Avenue, Suite 412
Brooklyn, New York 11232
(877) 418-2778 (U.S./Canada, toll-free)
+1 (646) 825-3871 (international, toll)
Email: OPIinfo@ra.kroll.com**

The Equity Rights Offering is being conducted by the Debtors in good faith and in compliance with chapter 11 of title 11 of the United States Code (the “*Bankruptcy Code*”). In accordance with section 1125(e) of the Bankruptcy Code, a debtor or any of its agents that participate, in good faith and in compliance with the applicable provisions of the Bankruptcy Code, in the offer, issuance, sale, or purchase of a security offered or sold under the plan of the debtor, of an affiliate participating in a joint plan with the debtor, or of a newly organized successor to the debtor under the plan is not liable, on account of such participation, for violation of any applicable law, rule, or regulation governing the offer, issuance, sale, or purchase of securities.

Unsecured Noteholders should note the following times relating to the Equity Rights Offering:

Date	Calendar Date	Event / Notes
Subscription Commencement Date	April 3 <u>23</u> , 2026 (or as soon as reasonably practicable thereafter)	Commencement of the Equity Rights Offering and the first date on which Unsecured Noteholders are eligible to exercise Subscription Rights.
Subscription and-Registration- Expiration Deadline	5:00 p.m. prevailing Eastern Time on April-17 <u>May 7</u> , 2026	The deadline for Unsecured Noteholders (including Equity Rights Offering Backstop Parties <u>in their capacity as Unsecured Noteholders</u>) to exercise Subscription Rights and subscribe for Equity Rights Offering Shares. <u>Any Subscription Rights not exercised immediately prior to this deadline shall be deemed forfeited to the Equity Rights Offering Backstop Parties as described herein and exercised by the Equity Rights Offering Backstop Parties on a pro rata basis (such rights, “Forfeited Rights”).</u> An Unsecured Noteholder must instruct its Nominees (as defined below) to tender such Unsecured Noteholder’s Unsecured Notes, and its Nominees must tender such Unsecured Noteholder’s Unsecured Notes, via DTC’s ATOP system (each as defined below) by the Subscription and-Registration- Expiration Deadline. An Unsecured Noteholder’s completed Subscription and-Registration- Form with (a) an accompanying IRS Form W-9 or appropriate IRS Form W-8, as applicable, and any other information and materials required to be submitted in accordance with the Subscription and-Registration- Form and (b) the “VOI” reference number generated by the previous tender of the Unsecured Notes into ATOP and applicable supporting documentation must be received by the Subscription Agent by the Subscription and-Registration- Expiration Deadline.
Non-Backstop Funding Deadline	By 5:00 p.m. prevailing Eastern Time on April-17 <u>May</u>	The deadline for Unsecured Noteholders (other than Equity Rights Offering Backstop Parties) to deliver the payment of the

Date	Calendar Date	Event / Notes
	<u>7</u> , 2026	aggregate Purchase Price.
Backstop Funding Deadline	By three <u>the second</u> (3 <u>2nd</u>) Business Days after the date on which the Funding Notice is sent by the Debtors <u>Day before the Effective Date of the Plan</u>	The deadline for Equity Rights Offering Backstop Parties to deliver their aggregate Purchase Price pursuant to the Equity Rights Offering Backstop Commitment Letter. Within three (3) Business Days following the Subscription and Registration Expiration Deadline (or as soon as reasonably practicable thereafter), the Debtors shall send a funding notice (the “ Funding Notice ”) to each Equity Rights Offering Backstop Party pursuant to the Equity Rights Offering Backstop Commitment Letter.
Settlement Date	Effective Date of the Plan	The date by which the Equity Rights Offering is settled.
* The Subscription and Registration Expiration Deadline and any applicable funding deadline may be extended <u>modified</u> in the Debtors’ sole discretion in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law.		

To Unsecured Noteholders and Nominees of Unsecured Noteholders:

On ~~February 23~~ April 21, 2026, the Debtors filed the Fourth Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates [Docket No. ~~850~~ 1223] (as may be amended, modified, or supplemented from time to time, the “**Plan**”) with the United States Bankruptcy Court for the Southern District of Texas, Houston Division (the “**Bankruptcy Court**”), and the ~~Amended~~ Disclosure Statement for Second Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates [Docket No. ~~851~~ 1017] (as may be amended, modified, or supplemented from time to time, the “**Disclosure Statement**”). On ~~February 24~~ April [●], 2026, the ~~Debtors filed that certain Notice of Settlement Term Sheet by and Among the Debtors, Official Committee of Unsecured Creditors, September 2029 Ad Hoc Group and RMR with Regards to the Plan~~ [Docket No. ~~855~~] (the “**Notice of Committee Settlement**”). The term sheet (the “**Committee Settlement Term Sheet**”) attached as Exhibit A to the Notice of Committee Settlement set forth the principal terms of a proposed settlement among the Debtors, the Committee, the September 2029 Ad Hoc Group, and RMR. The terms of the Committee Settlement Term Sheet will be incorporated into a revised Plan and revised Disclosure Statement, both of which the Debtors intend to file with the ~~Bankruptcy Court~~ Bankruptcy Court entered the Order Confirming the Fourth Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates [Docket No. [●]].

Subject to the terms and conditions set forth in these Equity Rights Offering Procedures and ~~to be set forth in the revised Plan~~, each holder of an Allowed Unsecured Notes Claim ~~that is an Unsecured Noteholder both (a) at the time the Subscription Rights are exercised and (b) as of 5:00 p.m. prevailing Eastern Time on the termination date of this Equity Rights Offering (clauses (a) and (b), the “Applicable Times”)~~ is entitled to subscribe for its *pro rata* share of Reorganized Common Equity to be issued as of the Effective Date in an aggregate amount of \$35,000,000 (the “**Equity Rights Offering**,” and the Reorganized Common Equity issued pursuant to the Equity Rights Offering, the “**Equity Rights Offering Shares**”).² Unsecured Noteholders who timely and validly elect to participate in the Equity Rights Offering by exercising their Subscription Rights for their corresponding share of the Equity Rights Offering Shares shall

² For the avoidance of doubt, (a) any unsubscribed Reorganized Common Equity purchased by an Equity Rights Offering Backstop Party pursuant to its Equity Rights Offering Backstop Commitment (as defined in the Equity Rights Offering Backstop Commitment Letter) shall be purchased at \$17.00 per share, (b) the total plan enterprise value shall be in a range between \$2,050,000,000 and \$2,250,000,000 with a midpoint of \$2,150,000,000, (c) the total plan equity value shall be in a range between \$342,680,000 and \$542,680,000 with a midpoint of \$442,680,000, (d) the total plan equity value used to determine the allocation of equity shall be \$427,680,000, and (e) inclusive of the 15% discount to Plan value and the Equity Rights Offering Backstop Commitment Premium, the equity value for the Equity Rights Offering Shares shall be approximately \$43,517,332, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date. For the avoidance of doubt, the Equity Rights Offering Shares shall represent approximately 10.2% of the total Reorganized Common Equity to be issued on the Effective Date, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date.

purchase such shares at a price per share of \$17 (the “*Purchase Price*”), which represents a 15% discount to the plan equity value.

To participate in the Equity Rights Offering ~~or register for the Plan Distribution Shares~~, each Unsecured Noteholder must have instructed its broker, bank, commercial bank, transfer agent, trust company, dealer, or other agent or nominee, as applicable (each, a “*Nominee*”), to tender its Unsecured Notes into the account established by the Subscription Agent at The Depository Trust Company (“*DTC*”) in accordance with each Unsecured ~~Notes~~ Note’s assigned denominations, and such tender must have occurred prior to the Subscription ~~and Registration~~ Expiration Deadline. Each such Unsecured Note tendered shall be frozen from trading unless and until the Equity Rights Offering is terminated.

The amount of time necessary for a Nominee to process and deliver the underlying Unsecured Notes via DTC’s Automated Tender Offer Program (“*ATOP*”) system is variable, and Unsecured Noteholders are urged to consult with their Nominees to determine the necessary deadline to return their beneficial holder subscription instructions. Failure to submit such beneficial holder subscription instructions on a timely basis may result in forfeiture of an Unsecured Noteholder’s rights to participate in the Equity Rights Offering.

No Unsecured Noteholder shall be entitled to participate in the Equity Rights Offering unless the aggregate Purchase Price for the Equity Rights Offering Shares it subscribes for is received by the Subscription Agent (a) in the case of an Unsecured Noteholder that is not an Equity Rights Offering Backstop Party, by the Non-Backstop Funding Deadline, and (b) in the case of the Equity Rights Offering Backstop Parties, by the Backstop Funding Deadline. Each Unsecured Noteholder must deliver the payment of the aggregate Purchase Price at the relevant deadline.

No interest is payable on any advanced funding of the Purchase Price. If the Equity Rights Offering is terminated for any reason, then the applicable Purchase Price previously received by the Subscription Agent will be returned promptly to Unsecured Noteholders as provided in Section 6 hereof. No interest will be paid on any returned Purchase Price.

The rights and obligations of the Equity Rights Offering Backstop Parties in the Equity Rights Offering shall be governed by the Equity Rights Offering Backstop Commitment Letter, including to the extent the rights or obligations set forth therein differ from the rights and obligations set forth in these Equity Rights Offering Procedures.

To participate in the Equity Rights Offering, an Unsecured Noteholder must complete all of the steps outlined below. If an Unsecured Noteholder does not complete all of the steps outlined below by the applicable deadline, such Unsecured Noteholder’s Subscription Rights shall be deemed forfeited to the Equity Rights Offering Backstop Parties, and such Unsecured Noteholder shall be deemed to have forever and irrevocably relinquished and waived its right to participate in the Equity Rights Offering.

1. Equity Rights Offering

Unsecured Noteholders have the right, but not the obligation, to participate in the Equity Rights Offering.

During the period beginning on the Subscription Commencement Date and ending on the Subscription ~~and Registration~~ Expiration Deadline, Unsecured Noteholders are eligible to subscribe for up to their *pro rata* share of the Equity Rights Offering Shares.

Subject to the terms and conditions set forth in the Plan and these Equity Rights Offering Procedures, each Unsecured Noteholder may timely and validly elect to participate in the Equity Rights Offering and to subscribe for up to its *pro rata* share of the Equity Rights Offering Shares. Unsecured Noteholders who timely and validly elect to participate in the Equity Rights Offering by exercising their Subscription Rights for their corresponding Equity Rights Offering Shares shall pay the aggregate Purchase Price for such shares. **For the avoidance of doubt, holders should use the principal amount of their Unsecured Notes when calculating their allotted number of Equity Rights Offering Shares on their Subscription ~~and Registration~~ Form.**

To the extent the aggregate amount subscribed for by ~~the~~all Unsecured Noteholders ~~that are not Equity Rights Offering Backstop Parties~~ through the Equity Rights Offering is less than the total Equity Rights Offering amount of \$35,000,000, all unexercised Subscription Rights as of immediately prior to the Subscription Expiration Deadline shall be deemed forfeited to the Equity Rights Offering Backstop ~~Commitment Parties and exercised by~~ the Equity Rights Offering Backstop Parties ~~have agreed to purchase any unsubscribed Equity Rights Offering Shares up to the Equity Rights Offering Backstop Commitment amount on a pro rata basis,~~ as set forth in the Equity Rights Offering Backstop Commitment Letter.

The Subscription Rights and the corresponding Equity Rights Offering Shares issued in the Equity Rights Offering ~~(other than the Equity Rights Offering Shares issued to the Equity Rights Offering Backstop Parties)~~ will be issued in reliance on section 1145 of the Bankruptcy Code and, unless such Unsecured Noteholder is an “underwriter,” as that term is defined for purposes of section 1145 of the Bankruptcy Code, may be resold in reliance on section 1145 of the Bankruptcy Code and pursuant to Section 4(a)(1) of the Securities Act and shall not be restricted securities under the Securities Act. To ~~any~~the extent any portion is not eligible for section 1145 treatment, such uncovered portion shall be exempted from registration pursuant to Section 4(a)(2) of the Securities Act, the safe harbor of Regulation D promulgated thereunder, or such other exemption from registration as may be available under the Securities Act and any other applicable securities laws. Any Unsecured Noteholder who receives such shares shall be subject to restriction under the Securities Act and other applicable securities laws on its ability to resell those securities.

~~The Equity Rights Offering Shares issued to the Equity Rights Offering Backstop Parties are being distributed and issued by OPI without registration pursuant to Section 4(a)(2) under the Securities Act, the safe harbor of Regulation D promulgated thereunder, or such other exemption from registration as may be available under the Securities Act and any other applicable securities~~

~~laws. Any Unsecured Noteholder who receives such Equity Rights Offering Shares pursuant to Section 4(a)(2) of the Securities Act shall be subject to restriction under the Securities Act on its ability to resell those securities.~~

Resale restrictions and securities law exemptions are discussed in more detail in Article VH5.8 of the Disclosure Statement Plan, entitled “~~TRANSFER RESTRICTIONS AND CONSEQUENCES UNDER FEDERAL SECURITIES LAWS~~Exemption from Registration Under Securities Laws.”

SUBJECT TO THE TERMS AND CONDITIONS OF THESE EQUITY RIGHTS OFFERING PROCEDURES, AND THE EQUITY RIGHTS OFFERING BACKSTOP COMMITMENT LETTER IN THE CASE OF THE EQUITY RIGHTS OFFERING BACKSTOP PARTIES, ALL SUBSCRIPTIONS SET FORTH IN THE SUBSCRIPTION ~~AND REGISTRATION~~ FORM ARE IRREVOCABLE UNLESS APPROVED IN WRITING (EMAIL BEING SUFFICIENT) BY THE DEBTORS SOLELY TO CURE ADMINISTRATIVE DEFECTS OR IN THE CASE OF INPUT ERROR WITHIN DTC’S ATOP PLATFORM.

2. Rights Exercise Period

The Equity Rights Offering will commence, and the Subscription Rights will be deemed to be delivered, on the Subscription Commencement Date and will expire at the Subscription ~~and Registration~~-Expiration Deadline. Each Unsecured Noteholder intending to purchase Equity Rights Offering Shares in the Equity Rights Offering must (a) tender the relevant portion of such Unsecured Noteholder’s Unsecured Notes into DTC’s ATOP system by the Subscription ~~and Registration~~-Expiration Deadline, (b) affirmatively elect to exercise its Subscription Rights in the manner set forth in the applicable Subscription ~~and Registration~~-Form by the Subscription ~~and Registration~~-Expiration Deadline, and (c) pay the aggregate Purchase Price for its Equity Rights Offering Shares, by (i) in the case of an Unsecured Noteholder that is not an Equity Rights Offering Backstop Party, the Non-Backstop Funding Deadline, or (ii) in the case of the Equity Rights Offering Backstop Parties, the Backstop Funding Deadline.

Any exercise of the Subscription Rights to purchase the Equity Rights Offering Shares by an Unsecured Noteholder after the Subscription ~~and Registration~~-Expiration Deadline or payment after the applicable funding deadline will not be allowed and any purported exercise or payment received by the Subscription Agent after such applicable deadline, regardless of when the documents or payment relating to such exercise were sent, will not be honored.

The Subscription ~~and Registration~~-Expiration Deadline and any applicable funding deadline may be ~~extended~~modified in the Debtors’ sole discretion in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law.

3. Delivery of Subscription Documents

In order to facilitate the exercise of the Subscription Rights, beginning on the Subscription Commencement Date, the Subscription ~~and Registration~~-Form and these Equity

Rights Offering Procedures will be sent to each eligible Unsecured Noteholder as of the Subscription Commencement Date, together with appropriate instructions for the proper completion, due execution, and timely delivery of the executed Subscription ~~and Registration~~ Form and the payment of the applicable aggregate Purchase Price for its Equity Rights Offering Shares.

Copies of the Subscription ~~and Registration~~ Form and these Equity Rights Offering Procedures may also be obtained by contacting the Subscription Agent or visiting the Debtors' case website at <https://restructuring.ra.kroll.com/OPI> under the Quick Links section on the left-hand side of the Subscription Agent's website.

4. Exercise of Subscription Rights

- (a) In order for an Unsecured Noteholder to validly exercise its Subscription Rights:
 - i. such Unsecured Noteholder must instruct its Nominee to electronically deliver the Unsecured Notes through DTC's ATOP system and its Nominee's tender of the Unsecured Notes through ATOP must be completed prior to the Subscription ~~and Registration~~ Expiration Deadline;
 - ii. such Unsecured Noteholder must return a duly completed and executed Subscription ~~and Registration~~ Form (with an accompanying IRS Form W-9 or appropriate IRS Form W-8, as applicable, and any other information and materials required to be submitted in accordance with the Subscription ~~and Registration~~ Form) **to its Nominee** (or otherwise follow the directions of its Nominee), and such documents must be actually received by the Subscription Agent by clicking on "Submit Equity Rights Offering Subscription ~~and Registration~~ Form" under the Quick Links section on the left-hand side of their website at <https://restructuring.ra.kroll.com/OPI> by the Subscription ~~and Registration~~ Expiration Deadline. **This is the only method of delivery.** Please do not follow up with hard copies or emailed copies of the documentation; and
 - iii. such Unsecured Noteholder must pay, or arrange for the payment by its Nominee of, the aggregate Purchase Price to the Subscription Agent by wire transfer of immediately available funds in accordance with the instructions included in the Subscription ~~and Registration~~ Form, and such Purchase Price must be actually received by the Subscription Agent by, (1) in the case of an Unsecured Noteholder that is not an Equity Rights Offering Backstop Party, the Non-Backstop Funding Deadline, or (2) in the case of the Equity Rights Offering Backstop Parties, the Backstop Funding Deadline.
- (b) ~~In the~~ Except with respect to the Equity Rights Offering Backstop Parties, in the event that the funds received by the Subscription Agent from any Unsecured Noteholder do not correspond to the aggregate Purchase Price payable for the Equity Rights Offering Shares elected to be purchased by such Unsecured

Noteholder, the number of the Equity Rights Offering Shares deemed to be purchased by such Unsecured Noteholder will be the lesser of (1) the number of the Equity Rights Offering Shares elected to be purchased by such Unsecured Noteholder as evidenced by the relevant ATOP submission(s) and (2) a number of the Equity Rights Offering Shares determined by dividing the amount of the funds received by the Purchase Price, in each case up to such Unsecured Noteholder's *pro rata* share of Equity Rights Offering Shares. In the event any excess funds remain following the adjustment described in the foregoing sentence, such amounts will be returned, without interest, to the applicable Unsecured Noteholder (or its Nominee, as applicable) as soon as reasonably practicable.

- (c) The cash paid to the Subscription Agent in accordance with these Equity Rights Offering Procedures will be deposited and held by the Subscription Agent in a segregated account until released to the Debtors in connection with the settlement of the Equity Rights Offering on the Effective Date or in accordance with the Plan. The Subscription Agent may not use such cash for any other purpose prior to the Effective Date and may not encumber or permit such cash to be encumbered with any lien or similar encumbrance. The cash held by the Subscription Agent hereunder shall not be deemed part of the Debtors' bankruptcy estates.
- (d) Each Unsecured Noteholder that participates in the Equity Rights Offering is deemed to have made the following representations and acknowledgments:
 - i. Each Unsecured Noteholder recognizes and understands that, except as described herein, the Subscription Rights are not transferrable and that the benefits of the Subscription Rights are not separable from the claim or securities with respect to which the Subscription Rights have been granted.
 - ii. Each Unsecured Noteholder represents and warrants that it will not accept a distribution of Equity Rights Offering Shares if at such time it does not hold all of the Unsecured Notes associated with its Subscription Rights (or, in the case of each Equity Rights Offering Backstop Party, represents and warrants that it will not accept a distribution of Equity Rights Offering Shares if at such time it does not hold the Forfeited Rights) and, by accepting a distribution of Equity Rights Offering Shares, such Unsecured Noteholder will be deemed to be the owner thereof.
 - iii. Each Unsecured Noteholder represents and warrants that it is the beneficial owner of, or the authorized signatory of such beneficial owner of, the Unsecured Notes as of the date such Unsecured Noteholder exercises its Subscription Rights.

5. Transfer Restriction

Once an Unsecured Noteholder has tendered its Unsecured Notes through DTC's ATOP, such Unsecured Notes shall be frozen from trading unless and until the Equity Rights Offering is terminated.

~~The~~ Except as described herein, the Subscription Rights are not detachable or separately transferable from the Allowed Unsecured Notes Claim. Any purported transfer of the Subscription Rights (other than as described herein) shall be void and without effect, and the purported transferee will not receive any Equity Rights Offering Shares otherwise purchasable on account of such purported transfer of Subscription Rights.

Once an Unsecured Noteholder has properly exercised its Subscription Rights, subject to the terms and conditions contained in these Equity Rights Offering Procedures, and the Equity Rights Offering Backstop Commitment Letter in the case of the Equity Rights Offering Backstop Parties, such exercise will be irrevocable, unless in the case of an input error within DTC's ATOP platform. In such cases, Unsecured Noteholders must coordinate with their Nominee to submit an electronic withdrawal in accordance with DTC's withdrawal procedures.

6. Termination/Return of Payment

Unless the Effective Date has occurred, the Equity Rights Offering will be deemed automatically terminated without any action of any party upon the earliest date and time when the Debtors revoke or withdraw the Plan. In the event the Equity Rights Offering is terminated, any payments received pursuant to these Equity Rights Offering Procedures will be returned, without interest, to the applicable Unsecured Noteholder as soon as reasonably practicable, which is expected to be no later than the later of the date that is ten (10) Business Days after the date on which the Equity Rights Offering is terminated and the date the Subscription Agent receives the applicable refund information.

7. Settlement of the Equity Rights Offering and Distribution of the Equity Rights Offering Shares

The settlement of the Equity Rights Offering is conditioned on (a) confirmation of the Plan by the Bankruptcy Court and (b) the simultaneous occurrence of the Effective Date. The Equity Rights Offering Shares will be issued ~~directly to the Unsecured Noteholder~~ in book-entry form through DTC or, if not DTC-eligible, directly on the books and records of Reorganized Parent or its transfer agent.

8. Fractional Shares

No fractional Equity Rights Offering Shares will be issued in the Equity Rights Offering. All share allocations will be calculated and rounded down to the nearest whole share, at the beneficial holder level. The total number of Equity Rights Offering Shares that may be purchased pursuant to the Equity Rights Offering shall be adjusted as necessary to account for the rounding described in this **Section 8**. No compensation shall be paid, whether in cash or otherwise, in respect of any rounded-down amounts.

9. Registration Details

The Debtors intend that, to the extent practicable, the Equity Rights Offering Shares will be DTC-eligible and issued in book-entry form in accordance with the practices and procedures of DTC, and that DTC, or its nominee, will be the holder of record of such Equity Rights Offering Shares. Pursuant to the Plan, DTC and any participants and intermediaries shall fully cooperate and take all actions to facilitate DTC book-entry delivery, settlement, and depository services for the Equity Rights Offering Shares. If for any reason the Equity Rights Offering Shares are not ~~expected to be made~~ DTC-eligible or ~~allocated through~~ cannot be issued in book-entry form in accordance with the practices and procedures of DTC; rather, the Debtors will coordinate the issuance of the Equity Rights Offering Shares directly on the books and records of Reorganized Parent or its transfer agent. To that end, as part of completing a subscription, each Unsecured Noteholder will be required to provide the information needed for the registration of such Unsecured Noteholder's Equity Rights Offering Shares and the applicable tax form.

10. Validity of Exercise of Subscription Rights

All questions concerning the timeliness, viability, form, and eligibility of any exercise of Subscription Rights will be determined in good faith by the Debtors, in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law, and, if necessary, subject to a final and binding determination by the Bankruptcy Court. The Debtors may waive or reject any defect or irregularity in, or permit such defect or irregularity to be corrected within such time as they may determine in good faith, the purported exercise of any Subscription Rights. Subscriptions will be deemed not to have been received or accepted until all irregularities have been waived or cured within such time as the Debtors determine in good faith. In addition, the Subscription Agent shall have no obligation to notify parties of or cure any defects to the forms returned in exercising the Subscription Rights.

Before exercising any Subscription Rights, Unsecured Noteholders should read the Disclosure Statement and the Plan for information relating to the Debtors and the risk factors to be considered.

All calculations shall be made in good faith by the Debtors and in accordance with any Allowed Unsecured Notes Claim amounts included in the Plan, and any disputes regarding such calculations shall be subject to a final and binding determination by the Bankruptcy Court.

11. Modification of Procedures

The Debtors reserve the right to modify these Equity Rights Offering Procedures, or adopt additional procedures consistent with these Equity Rights Offering Procedures to effectuate the Equity Rights Offering and to issue the Equity Rights Offering Shares, each in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law; *provided, however*, to the extent that any modification to these Equity Rights Offering Procedures or adoption of additional procedures is made after the Subscription Commencement Date and such modification

directly, adversely, and materially impacts the Unsecured Noteholders, the Debtors shall provide prompt written notice to each Unsecured Noteholder by posting a notice with respect to such material modification or adoption of additional procedures on the Debtors' case website at <https://restructuring.ra.kroll.com/OPI/>. In so doing, the Debtors, in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law, may execute and enter into agreements and take further action that the Debtors determine in good faith is necessary and appropriate to effectuate and implement the Equity Rights Offering and the issuance of the Equity Rights Offering Shares. The Debtors are not obligated to deliver any notice to the Unsecured Noteholders in connection with any reduction in the size of the Equity Rights Offering, other than to the Equity Rights Offering Backstop Parties.

12. Inquiries and Transmittal of Documents; Subscription Agent

The Equity Rights Offering Instructions for Unsecured Noteholders attached hereto should be carefully read and strictly followed by the Unsecured Noteholders.

Questions relating to the Equity Rights Offering should be directed to the Subscription Agent via email to: OPIIssuerServices@is.kroll.com (with "***OPI Equity Rights Offering Inquiry***" in the subject line); or at the following phone number: (877) 418-2778 (U.S./Canada, toll-free) or +1 (646) 825-3871 (international, toll). Please note that the Subscription Agent is only able to respond to procedural questions regarding the Equity Rights Offering, and cannot provide any information beyond that included in these Equity Rights Offering Procedures and the Subscription ~~and-Registration~~ Form. An Unsecured Noteholder must follow the directions included herein with respect to providing instructions in connection with the Equity Rights Offering.

The risk of non-delivery of any instructions, documents, and payments to the Subscription Agent is on the Unsecured Noteholder electing to exercise its Subscription Rights and not the Debtors or the Subscription Agent.

13. Failure to Exercise Subscription Rights

Subscription Rights that are not properly and timely exercised in accordance with these Equity Rights Offering Procedures ~~will~~ shall be deemed forfeited to the Equity Rights Offering Backstop Parties and shall be forever and irrevocably relinquished ~~and waived, and none~~ by the applicable Unsecured Noteholder. None of the Debtors, Reorganized Debtors, or any of their respective employees, Affiliates, or professionals shall have any liability for any failure ~~to~~ by an Unsecured Noteholder to properly and timely exercise its Subscription Rights. Any attempt to exercise Subscription Rights other than in accordance with these Equity Rights Offering Procedures (including after the Subscription ~~and-Registration~~ Expiration Deadline) shall be null and void and the Debtors shall not be obligated to honor any such purported exercise received by the Subscription Agent.

The method of delivery of the Subscription ~~and-Registration~~ Form or any other required documents is at each Unsecured Noteholder's option and sole risk. In all cases, you should allow sufficient time to ensure timely delivery of (a) your Unsecured Notes by ATOP

and (b) your Subscription ~~and Registration~~ Form, the accompanying applicable IRS Form, and any other information and materials required to be submitted in accordance with the Subscription ~~and Registration~~ Form, in each case, at or prior to the Subscription ~~and Registration~~ Expiration Deadline.

**OFFICE PROPERTIES INCOME TRUST
EQUITY RIGHTS OFFERING INSTRUCTIONS FOR UNSECURED NOTEHOLDERS**

Terms used and not defined herein shall have the meaning assigned to them in the Plan.

To elect to participate in the Equity Rights Offering, you must follow the instructions set out below:

- **Provide your instructions to your Nominee** to submit the applicable portion of your Unsecured Notes via ATOP such that the tender of your Unsecured Notes is **completed** at or prior to the Subscription ~~and Registration~~ Expiration Deadline. **Review** the worksheets in Items 1a and 1b of your Subscription ~~and Registration~~ Form, which calculates the amount of Unsecured Notes your Nominee has delivered electronically via ATOP and the maximum number of Equity Rights Offering Shares available for you to purchase, respectively. Such number of Equity Rights Offering Shares must be rounded down to the nearest whole share.
- **Review and complete** the worksheet in Item 2 of your Subscription ~~and Registration~~ Form to specify the number of Equity Rights Offering Shares you elect to purchase.
- **Review** Item 3 of your Subscription ~~and Registration~~ Form to determine the aggregate Purchase Price for such Equity Rights Offering Shares you have elected to purchase.
- **Review** the payment instructions in Item 4 for such Equity Rights Offering Shares you have elected to purchase.
- **Read, complete, and sign** the certification in Item 5 of your Subscription ~~and Registration~~ Form. Participation shall indicate your acceptance and approval of the terms and conditions set forth in these Equity Rights Offering Procedures.
- **Review and/or complete, as applicable**, Sections A, B, and C of Exhibit A of your Subscription ~~and Registration Form in order~~ Form (in the case of Section C, such information will be used to properly register the Equity Rights Offering Shares on the books of Reorganized Parent or its transfer agent if the Equity Rights Offering Shares are not DTC-eligible).
- **Return** your completed and signed Subscription ~~and Registration~~ Form and the accompanying applicable IRS Form (and any other information and materials required to be submitted in accordance with the Subscription ~~and Registration~~ Form) **to your Nominee** (or as otherwise directed by your Nominee). **Do not return your Subscription ~~and Registration~~ Form or any of the related documents to the Subscription Agent** (unless otherwise directed to do so by your Nominee). Nominees (or Unsecured Noteholders that are instructed by their Nominees to return the completed and signed Subscription ~~and Registration~~ Form directly to the Subscription Agent) must return the completed and signed Subscription ~~and Registration~~ Form and the appropriate IRS tax form such that the Subscription ~~and Registration~~ Form and the appropriate IRS tax form (and any other information and materials required to be submitted in accordance

with the Subscription ~~and Registration~~-Form) are actually received by the Subscription Agent by clicking on “Submit Equity Rights Offering Subscription ~~and Registration~~-Form” under the Quick Links section on the left-hand side of their website at <https://restructuring.ra.kroll.com/OPI> by the Subscription ~~and Registration~~-Expiration Deadline. **This is the only method of delivery.** Please do not follow up with hard copies or emailed copies of the documentation.

- **Arrange for full payment** by wire transfer of immediately available funds of the aggregate Purchase Price, calculated in accordance with Item 3 of your Subscription ~~and Registration~~-Form by (a) the Non-Backstop Funding Deadline (in the case of an Unsecured Noteholder that is not an Equity Rights Offering Backstop Party) or (b) the Backstop Funding Deadline (in the case of the Equity Rights Offering Backstop Parties), in each case, such that the payment is actually received by the Subscription Agent by no later than the Non-Backstop Funding Deadline or the Backstop Funding Deadline, as applicable.
- Timely submission of (a) your Unsecured Notes via ATOP and (b) your duly completed and executed Subscription ~~and Registration~~-Form (with the accompanying applicable IRS form and any other information and materials required to be submitted in accordance with the Subscription ~~and Registration~~-Form) is the only valid method to participate in the Equity Rights Offering.

The Subscription ~~and Registration~~-Expiration Deadline and the Non-Backstop Funding Deadline are 5:00 p.m. prevailing Eastern Time on ~~April 17~~ May 7, 2026, as may be ~~extended~~ modified in the Debtors’ sole discretion in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law.

Please note that (a) the tender of your Unsecured Notes via ATOP must be completed by the Subscription ~~and Registration~~-Expiration Deadline, (b) your Subscription ~~and Registration~~-Form (with the accompanying applicable IRS form and any other information and materials required to be submitted in accordance with the Subscription ~~and Registration~~-Form) must be received by the Subscription Agent at the Subscription ~~and Registration~~-Expiration Deadline, and (c) your payment of the aggregate Purchase Price must be received by the Subscription Agent no later than (i) in the case of an Unsecured Noteholder that is not an Equity Rights Offering Backstop Party, the Non-Backstop Funding Deadline, or (ii) in the case of the Equity Rights Offering Backstop Parties, the Backstop Funding Deadline.

If your Subscription ~~and Registration~~-Form (with the accompanying applicable IRS form and any other information and materials required to be submitted in accordance with the Subscription ~~and Registration~~-Form) is not received by the Subscription ~~and Registration~~-Expiration Deadline or your payment of the aggregate Purchase Price is not received by the Non-Backstop Funding Deadline or Backstop Funding Deadline, as applicable, your Subscription ~~and Registration~~-Form will not be processed, and you will your Subscription Rights shall be deemed forfeited to the Equity Rights Offering Backstop Parties and

forever and irrevocably ~~to have relinquished and waived your~~. As a result, you will lose
the right to participate in the Equity Rights Offering.

Exhibit B

Subscription ~~and Registration~~ Form

OFFICE PROPERTIES INCOME TRUST (“*OPI*”)
SUBSCRIPTION ~~AND PLAN DISTRIBUTION REGISTRATION~~ FORM
IN CONNECTION WITH ~~DEBTORS’ DISCLOSURE~~ DEBTORS’ DISCLOSURE STATEMENT

SUBSCRIPTION ~~AND REGISTRATION~~ EXPIRATION DEADLINE

The Subscription ~~and Registration~~ Expiration Deadline is 5:00 p.m. prevailing Eastern Time on ~~April 17~~ May 7, 2026, as may be ~~extended~~ modified in the Debtors’ sole discretion in consultation with the advisors to the September 2029 Ad Hoc Group, advisors to the Unsecured Notes Ad Hoc Group, and advisors to the Committee, or as required by law (the “*Subscription and Registration Expiration Deadline*”).

Capitalized terms used but not defined herein shall have the meaning assigned to them in the Equity Rights Offering Procedures enclosed herewith (the “*Equity Rights Offering Procedures*”) or the Fourth Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates [Docket No. 8501223], dated ~~February 23~~ April 21, 2026 (as may be amended, modified, or supplemented from time to time, the “*Plan*”), as applicable.

This Subscription ~~and Registration~~ Form is used ~~both~~ for Unsecured Noteholders who wish to participate in the Equity Rights Offering ~~and for Unsecured Noteholders who do not wish to participate in the Equity Rights Offering but wish to register their information to receive their Reorganized Common Equity pursuant to the Plan (the “Plan Distribution Shares”).~~

Please note that (a) your broker, bank, commercial bank, transfer agent, trust company, dealer, or other agent or nominee, as applicable, that holds your Unsecured Notes in “street name” (each, a “*Nominee*”) must tender your applicable Unsecured Notes via the Automated Tender Offer Program (“*ATOP*”) of the Depository Trust Company (“*DTC*”) prior to the Subscription ~~and Registration~~ Expiration Deadline, (b) your duly completed and executed Subscription ~~and Registration~~ Form and accompanying IRS Form W-9 or appropriate IRS Form W-8, as applicable, must be received by the Subscription Agent no later than the Subscription ~~and Registration~~ Expiration Deadline via their E-Portal, and (c) for Unsecured Noteholders participating in the Equity Rights Offering the payment of the aggregate Purchase Price must be received by the Subscription Agent no later than either (i) in the case of Unsecured Noteholders that are not Equity Rights Offering Backstop Parties, the Subscription ~~and Registration~~ Expiration Deadline (the “*Non-Backstop Funding Deadline*”), or (ii) in the case of Unsecured Noteholders that are Equity Rights Offering Backstop Parties, ~~three~~ the second (32nd) Business Days ~~after the date on which the Funding Notice is sent by the Debtors~~ Day prior to the Effective Date (the “*Backstop Funding Deadline*”).

If you wish to participate in the Equity Rights Offering and you do not comply with all of the Subscription ~~and Registration~~ Steps (as defined below) by the applicable deadlines, your Subscription Rights shall be deemed forfeited to the Equity Rights Offering Backstop Parties, and you shall be deemed to have forever and irrevocably relinquished and waived your right to participate in the Equity Rights Offering.

~~If you are an Unsecured Noteholder who does not wish to participate in the Equity Rights Offering but wishes to register for your Plan Distribution Shares, you need only complete the applicable portions of this Subscription and Registration Form as described herein.~~

Please allot sufficient time to coordinate with your Nominee, so that your completed Subscription ~~and Registration~~ Form includes the applicable ATOP numbers and wire detail and is actually received by the Subscription Agent on or before the Subscription ~~and Registration~~ Expiration Deadline. Please note your Nominee may establish their own cut-off date and time for the tender of your applicable Unsecured Notes.

The Subscription Rights and the Equity Rights Offering Shares ~~(other than the Equity Rights Offering Shares issued to the Equity Rights Offering Backstop Parties)~~ are being distributed and issued by OPI without registration under the U.S. Securities Act of 1933, as amended (the “*Securities Act*”), in reliance on section 1145 of the Bankruptcy Code to the maximum extent available by law or, if section 1145 of the Bankruptcy Code is not available, then otherwise pursuant to another exemption from registration under the Securities Act and any other applicable securities laws. ~~The Equity Rights Offering Shares issued to the Equity Rights Offering Backstop Parties are being distributed and issued by OPI without registration pursuant to Section 4(a)(2) of the Securities Act, the safe harbor of Regulation D promulgated thereunder, or such other exemption from registration as may be available under the Securities Act and any other applicable securities laws.~~ None of the Subscription Rights or the Equity Rights Offering Shares have been, nor is it anticipated that they will be, registered under the Securities Act or any state or local law requiring registration for offer and sale of a security.

Please consult the Plan, the Disclosure Statement, and the Equity Rights Offering Procedures (including the Equity Rights Offering Instructions for Unsecured Noteholders attached thereto) for additional information with respect to this Subscription ~~and Registration~~ Form.

If you have any questions, please contact the Subscription Agent via email at OPIIssuerServices@is.krroll.com (with “*OPI Equity Rights Offering Inquiry*” in the subject line), or at one of the following phone numbers: (877) 418-2778 (U.S./Canada, toll-free) or +1 (646) 825-3871 (international, toll).

Subscription ~~and Registration~~ Steps

In order to exercise the Subscription Rights and subscribe for the Equity Rights Offering Shares ~~and/or register for your Plan Distribution Shares~~, you must follow the subscription ~~and registration~~ steps listed below (the “*Subscription and Registration Steps*”):

1. **Submit your Unsecured Notes via ATOP:** You must instruct your Nominee to electronically deliver any Unsecured Notes you wish your Nominee to deliver via DTC’s ATOP platform, and, to the extent you are participating in the Equity Rights Offering, the Nominee’s delivery of the Unsecured Notes through ATOP must be completed by the Subscription ~~and Registration~~ Expiration Deadline. In order to complete Step 2 below, you must retrieve the Voluntary Offer Instruction number(s) from the Nominee that tendered your Unsecured Notes for inclusion on this Subscription ~~and Registration~~ Form.
2. **Provide Registration Details and Other Required Information:** You must return a duly completed and executed Subscription ~~and Registration~~ Form with all relevant details (including those listed on Exhibit A hereto) and the IRS Form W-9 or appropriate IRS Form W-8, as

applicable (these forms may be obtained from www.irs.gov), to your Nominee (or otherwise follow the directions of your Nominee), and such documents must be **actually received** by the Subscription Agent by clicking on “Submit Equity Rights Offering Subscription ~~and Registration~~ Form” under the Quick Links section on the left-hand side of their website at <https://restructuring.ra.kroll.com/OPI> by the Subscription ~~and Registration~~ Expiration Deadline. **This is the only method of delivery.** Please do not follow up with hard copies or emailed copies of the documentation.

3. **Deliver Payment of the Aggregate Purchase Price (for Unsecured Noteholders Participating in the Equity Rights Offering Only):**

- a. Unsecured Noteholders who are not Equity Rights Offering Backstop Parties must deliver full payment of the aggregate Purchase Price no later than the Non-Backstop Funding Deadline, in accordance with the wire instructions provided in **Item 4** below; and
- b. Unsecured Noteholders who are Equity Rights Offering Backstop Parties must deliver full payment of the aggregate Purchase Price pursuant to the Equity Rights Offering Backstop Commitment Letter no later than the Backstop Funding Deadline, in accordance with the wire instructions provided in **Item 4** below.

Payment of the aggregate Purchase Price must be **actually received** by the Subscription Agent by no later than the Non-Backstop Funding Deadline or the Backstop Funding Deadline, as applicable.

~~Are you Participating in the Equity Rights Offering?~~

☐ ~~Yes~~

☐ ~~No~~

~~Equity Rights Offering~~ Backstop Party Status:

☐ Check this box if you are an “Equity Rights Offering Backstop Party” pursuant to the Equity Rights Offering Backstop Commitment Letter.

If checked, please provide the name of the ~~Commitment~~Equity Rights Offering Backstop Party as it appears in Schedule I to the Equity Rights Offering Backstop Commitment Letter: _____

(ONLY CHECK THE ABOVE BOX IF YOU ARE CERTAIN THIS APPLIES TO YOU. IF YOU ARE UNSURE, DO NOT CHECK THIS BOX AND PLEASE CONTACT THE SUBSCRIPTION AGENT.)

BY FILLING IN THE DETAILS IN ITEM 1, YOU ARE INDICATING THAT THE UNSECURED NOTEHOLDER IS THE BENEFICIAL HOLDER OF THE UNSECURED NOTES.

Item 1. Nominee Instructions and Subscription Rights Calculation Worksheet.

IMPORTANT NOTE: YOU MUST COMPLETE THE TABLE IN ITEM 1A BELOW TO ESTABLISH YOUR UNSECURED NOTES HOLDINGS, ~~REGARDLESS OF WHETHER YOU ARE PARTICIPATING IN THE EQUITY RIGHTS OFFERING~~. THIS INFORMATION IS REQUIRED TO CALCULATE YOUR ~~PLAN DISTRIBUTION~~EQUITY RIGHTS OFFERING SHARES.

~~IF YOU ARE NOT PARTICIPATING IN THE EQUITY RIGHTS OFFERING, YOU MAY SKIP THE SUBSCRIPTION RIGHTS CALCULATION WORKSHEET IN ITEM 1B AND PROCEED DIRECTLY TO ITEM 5 (CERTIFICATIONS) AND EXHIBIT A, SECTION C TO REGISTER YOUR INFORMATION TO RECEIVE YOUR PLAN DISTRIBUTION SHARES.~~

1a. Nominee Instructions.

In order to exercise your Subscription Rights and subscribe for the Equity Rights Offering Shares ~~and/or register for your Plan Distribution Shares~~, you must have instructed your Nominee to electronically deliver your Unsecured Notes into ATOP and, in the case of Unsecured Noteholders participating in the Equity Rights Offering, such tender must have occurred prior to the Subscription ~~and Registration~~ Expiration Deadline.

By tendering (or causing to be tendered) the Unsecured Notes into ATOP, the Unsecured Noteholder is certifying that it holds the Unsecured Notes as of the Subscription ~~and Registration~~ Expiration Deadline, and, if participating in the Equity Rights Offering: (x) that it is eligible to participate in the Equity Rights

Offering and (y) that it agrees to be bound by the terms of the Equity Rights Offering. Nominees must submit instructions on account of each of their Unsecured Noteholder clients separately. “Bulk tenders” into ATOP will not be permitted.

IMPORTANT NOTE: IF YOU HOLD YOUR UNSECURED NOTES THROUGH MORE THAN ONE NOMINEE, YOU MUST GIVE INSTRUCTIONS TO EACH APPLICABLE NOMINEE BY SUBMITTING SEPARATE SUBSCRIPTION ~~AND REGISTRATION~~ FORMS.

Use the worksheet below to list the amount of Unsecured Notes your Nominee has delivered electronically via ATOP. Please include the principal (face) amount of your Unsecured Notes only—do not include any accrued or unmatured interest. If you do not know the principal amount of your Unsecured Notes held, please contact your Nominee immediately. **The Subscription Agent will not deliver any of your Unsecured Notes via ATOP. Only your Nominee can deliver your Unsecured Notes via ATOP on your behalf.**

<i>Description of Unsecured Notes:</i>	<i>CUSIP/ISIN</i>	<i>Principal Amount Tendered into DTC ATOP</i>	<i>DTC ATOP Confirmation Number (VOI or Euroclear/Clearstream Reference Number) (one ATOP Confirmation Number per CUSIP)</i>	<i>DTC Participant Number</i>	<i>DTC Participant Name</i>
2.650% Senior Notes due 2026	67623CAD1 / US67623CAD11				
2.400% Senior Notes due 2027	67623CAE9 / US67623CAE93				
3.450% Senior Notes due 2031	67623CAF6 / US67623CAF68				

<u><i>Description of Unsecured Notes:</i></u>	<u><i>CUSIP/ISIN</i></u>	<u><i>Number of Notes Tendered into DTC ATOP*</i></u>	<u><i>DTC ATOP Confirmation Number (VOI or Euroclear/Clearstream Reference Number) (one ATOP Confirmation Number per CUSIP)</i></u>	<u><i>DTC Participant Number</i></u>	<u><i>DTC Participant Name</i></u>
6.375% Senior Notes due 2050	67623C208 / US67623C2089				

1b. Subscription Calculation Worksheet.

Use the worksheet below to determine the number of Equity Rights Offering Shares which you may subscribe for based on the principal amount of your Unsecured Notes electronically delivered through ATOP. Please include the principal (face) amount of your Unsecured Notes only—do not include any accrued or unmatured interest. If you do not know the principal amount of your Unsecured Notes held, please contact your Nominee immediately.

The principal amount of Unsecured Notes you instruct your Nominee to deliver via ATOP and (if calculated correctly) the corresponding number of Equity Rights Offering Shares for which you wish to subscribe are shown below and should be used to calculate the aggregate Purchase Price in **Item 3** below.

If there is a discrepancy between the amount set forth in this **Item 1** below and the amount(s) delivered via ATOP, the amount delivered through ATOP shall control. Moreover, please note that if your calculations are incorrect, the amount of Unsecured Notes tendered into ATOP will control the amount of Equity Rights Offering Shares that you are committed to purchase pursuant to this Equity Rights Offering.

Each Unsecured Noteholder is entitled to subscribe for: (a) ~~73.334.313~~ 73.044.296 Equity Rights Offering Shares per \$1,000 amount of 2.650% Senior Notes due 2026; (b) ~~73.044.296~~ 73.974.350 Equity Rights Offering Shares per \$1,000 amount of 2.400% Senior Notes due 2027; (c) ~~73.974.350~~ 73.374.315 Equity Rights Offering Shares per \$1,000 amount of 3.450% Senior Notes due 2031; and (d) ~~73.374.315~~ 73.374.315 Equity Rights Offering Shares per \$1,000 amount of 6.375% Senior Notes due 2050, in each case subject to dilution by the (i) Initial Equity Compensation, (ii) the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares,¹ and (iii) exercise of the New Warrants.

IMPORTANT NOTE: You must instruct your Nominee to deliver your Unsecured Notes via ATOP to exercise your Subscription Rights. You may exercise any portion of your principal amount of Unsecured Notes, up to the total amount you hold. If you do not wish to exercise 100% of your Subscription Rights, you should instruct your Nominee to only submit the principal amount of Unsecured Notes associated with the number of Subscription Rights you wish to exercise. For example, if you only wish to exercise 50% of your Subscription Rights, you should instruct your Nominee to only deliver 50% of your principal amount of Unsecured Notes via ATOP. Once your Nominee has tendered your Unsecured Notes through ATOP, such Unsecured Notes shall be frozen from trading unless and until the Equity Rights Offering is terminated.

The maximum number of Equity Rights Offering Shares for which you may subscribe, based on the principal amount shown below, is calculated as follows:

¹ “Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares” means an aggregate amount of Reorganized Common Equity to be issued to Holders of Allowed September 2029 Senior Secured Notes Claims as shall be necessary so that, after giving effect to the issuance of both the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares pursuant to the Plan, the aggregate Reorganized Common Equity to be held by Holders of Allowed September 2029 Senior Secured Notes Claims shall equal the same percentage of the total issued and outstanding Reorganized Common Equity, on a fully diluted basis, as such Holders would have held immediately prior to giving effect to the issuance of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares.

<i>Description of Unsecured Notes:</i>	<i>CUSIP/ISIN</i>	<i>Principal Amount*</i>	<i>Price Per Notes</i>	<i>Subscription Rate**</i>	<i>The maximum Equity Rights Offering Shares based on your Unsecured Notes (the "Maximum Participation Amount") is:</i>
2.650% Senior Notes due 2026	67623CAD1 / US67623CAD11	\$ _____ (Taken from the above table)	/ <u>1,000</u>	x 0.07333 <u>4.313518</u>	= 1a. _____ (Round down to nearest whole share)
2.400% Senior Notes due 2027	67623CAE9 / US67623CAE93	\$ _____ (Taken from the above table)	/ <u>1,000</u>	x 0.07304 <u>4.296416</u>	= 1b. _____ (Round down to nearest whole share)
3.450% Senior Notes due 2031	67623CAF6 / US67623CAF68	\$ _____ (Taken from the above table)	/ <u>1,000</u>	x 0.07397 <u>4.35089</u>	= 1c. _____ (Round down to nearest whole share)

* For a holder with \$4,000,000 of principal outstanding, the number of notes held is determined by dividing the principal amount by \$1,000, resulting in 4,000 notes. Applying the applicable series-specific ratio for the 2.650% Senior Notes due 2026 (i.e., 4.313518), for example, yields 17,254.072 Equity Rights Offering Shares (i.e., 4,000 × 4.313518). This figure is rounded down to the nearest whole share resulting in 17,254 Equity Rights Offering Shares.

** Rate to convert the principal amount into the number of Equity Rights Offering Shares (includes accrued interest where applicable), subject to dilution by the (a) Initial Equity Compensation, (b) the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares, and (c) exercise of the New Warrants.

<i>Description of Unsecured Notes:</i>	<i>CUSIP/ISIN</i>	<i>Number of Notes Tendered*</i>	<i>Subscription Rate**</i>	<i>The maximum Equity Rights Offering Shares based on your Unsecured Notes (the "Maximum Participation Amount") is:</i>
6.375% Senior Notes due 2050	<u>67623C208 / US67623C2089</u>	<u>67623C208 / US67623C2089</u> (Taken from the above table)	<u>*0.107892</u>	<u>0.07333</u> 1d. _____ (Round down to nearest whole share)

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* For a holder with \$4,000,000 of principal outstanding, the number of notes held is determined by dividing the principal amount by \$25, resulting in 160,000 notes. Applying the applicable series-specific ratio for the 6.375% Senior Notes due 2050 (i.e., 0.107892) yields 17,262.720 Equity Rights Offering Shares (i.e., 160,000 × 0.107892). This figure is rounded down to the nearest whole share resulting in 17,262 Equity Rights Offering Shares.

** Rate to convert the principal amount into the number of Equity Rights Offering Shares (includes accrued interest where applicable), subject to dilution by the (a) Initial Equity Compensation, (b) the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares, and (c) exercise of the New Warrants.

Item 2. Subscription Rights Exercise

Please note that the amount shown in this **Item 2** must be no greater than the Maximum Participation Amount of Unsecured Notes as calculated in **Item 1**.

Description of Unsecured Notes:	CUSIP/ISIN	Number of Equity Rights Offering Shares you are electing to subscribe for
2.650% Senior Notes due 2026	67623CAD1 / US67623CAD11	2a _____ (Round down to nearest whole share) (Insert into Item 3a below)
2.400% Senior Notes due 2027	67623CAE9 / US67623CAE93	2b _____ (Round down to nearest whole share) (Insert into Item 3b below)
3.450% Senior Notes due 2031	67623CAF6 / US67623CAF68	2c _____ (Round down to nearest whole share) (Insert into Item 3c below)
6.375% Senior Notes due 2050	67623C208 / US67623C2089	2d _____ (Round down to nearest whole share) (Insert into Item 3d below)

Item 3. Calculation of Aggregate Purchase Price for Equity Rights Offering Shares

By filling in the following blanks, you are indicating that the Unsecured Noteholder is interested in purchasing the number of Equity Rights Offering Shares specified in **Item 2** above (which does not exceed the Maximum Participation Amount calculated in **Item 1**), on the terms and subject to the conditions set forth in the Equity Rights Offering Procedures.

	<i>Equity Rights Offering Shares</i>		<i>Price per share of Equity Rights Offering Shares²</i>		<i>Aggregate Purchase Price</i>
3a.	Total number of shares of Equity Rights Offering Shares you elect to purchase from 2a above	X	\$17	=	3a. Total Amount (rounded down to nearest cent)
3b.	Total number of shares of Equity Rights Offering Shares you elect to purchase from 2b above	X	\$17	=	3b. Total Amount (rounded down to nearest cent)
3c.	Total number of shares of Equity Rights Offering Shares you elect to purchase from 2c above	X	\$17	=	3c. Total Amount (rounded down to nearest cent)
3d.	Total number of shares of Equity Rights Offering Shares you elect to purchase from 2d above	X	\$17	=	3d. Total Amount (rounded down to nearest cent)
	Total number of shares of Equity Rights Offering Shares you elect to purchase (sum of 3a – 3d above)	X	\$17	=	Total Amount (sum of 3a – 3d above)

For the avoidance of doubt, the exercise of your Subscription Rights will be based solely on the principal amount of Unsecured Notes tendered through ATOP and for which payment of the aggregate Purchase Price must be received.

² For the avoidance of doubt, (a) any unsubscribed Reorganized Common Equity purchased by an Equity Rights Offering Backstop Party pursuant to its Equity Rights Offering Backstop Commitment (as defined in the Equity Rights Offering Backstop Commitment Letter) shall be purchased at \$17.00 per share, (b) the total plan enterprise value shall be in a range between \$2,050,000,000 and \$2,250,000,000 with a midpoint of \$2,150,000,000, (c) the total plan equity value shall be in a range between \$342,680,000 and \$542,680,000 with a midpoint of \$442,680,000, (d) the total plan equity value used to determine the allocation of equity shall be \$427,680,000, and (e) inclusive of the 15% discount to Plan value and the Equity Rights Offering Backstop Commitment Premium, the equity value for the Equity Rights Offering Shares shall be approximately \$43,517,332, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date. For the avoidance of doubt, the Equity Rights Offering Shares shall represent approximately 10.2% of the total Reorganized Common Equity to be issued on the Effective Date, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date.

Item 4. Payment Instructions

Payment of the aggregate Purchase Price calculated pursuant to **Item 3** above shall be made by wire transfer of immediately available funds. Unsecured Noteholders who are not Equity Rights Offering Backstop Parties must deliver full payment of the aggregate Purchase Price by the Non-Backstop Funding Deadline. Equity Rights Offering Backstop Parties must deliver full payment of the aggregate Purchase Price pursuant to the Equity Rights Offering Backstop Commitment Letter by the Backstop Funding Deadline.

Any Unsecured Noteholder that is submitting payment via its Nominee must coordinate such payment with its Nominee in sufficient time to ensure such payment is ***actually received*** by the Subscription Agent on or prior to the Non-Backstop Funding Deadline (in the case of Unsecured Noteholders that are not Equity Rights Offering Backstop Parties), or the Backstop Funding Deadline (in the case of Unsecured Noteholders that are Equity Rights Offering Backstop Parties).

Participating Unsecured Noteholders must comply with all the Subscription Steps.

Wire Instructions:

Account Name:	<i>Kroll Restructuring Administration LLC as Subscription Agent for OPI Trust Subscription Account</i>
Bank Account No.:	[●]
ABA/Routing No.:	<i>021000089</i>
SWIFT:	<i>CITIUS33</i>
Bank Name:	<i>Citibank NA</i>
Bank Address:	<i>153 East 53rd Street, 23rd Floor, New York, New York 10022</i>
Reference:	<i>[Please reference the Unsecured Noteholder name and/or the confirmation number you received when you submitted your e-form to Kroll]</i>

Item 5. Certification.

The following Certifications are automatically incorporated into any ATOP instruction, regardless of how the Unsecured Noteholder requested to submit its instructions to its Nominee. By electing to subscribe for the amount of Equity Rights Offering Shares ~~or register for the Plan Distribution Shares~~, the Unsecured Noteholder hereby certifies that (a) the Unsecured Noteholder is the beneficial owner of the Unsecured Notes set forth in **Item 1** above, or the authorized signatory (the “***Authorized Signatory***”) of such Unsecured Noteholder acting on behalf of the Unsecured Noteholder, (b) the Unsecured Noteholder has reviewed the Plan, the Disclosure Statement, and, if participating in the Equity Rights Offering, the Equity Rights Offering Procedures (including the Equity Rights Offering Instructions for Unsecured Noteholders attached thereto) and other applicable materials, and (c) if participating in the Equity Rights Offering, the Unsecured Noteholder understands that the exercise of the rights under the Equity Rights Offering is subject to all the terms and conditions set forth in the Plan and the Equity Rights Offering

Procedures.

For participants in the Equity Rights Offering, by electing to subscribe for the amount of Equity Rights Offering Shares shown in **Item 2** above, the Unsecured Noteholder (or the Authorized Signatory on behalf of the Unsecured Noteholder) acknowledges that payment of the aggregate Purchase Price associated with such election must be made by the Non-Backstop Funding Deadline (in the case of Unsecured Noteholders that are not Equity Rights Offering Backstop Parties), or the Backstop Funding Deadline (in the case of Unsecured Noteholders that are Equity Rights Offering Backstop Parties).

The Unsecured Noteholder (or the Authorized Signatory on behalf of such Unsecured Noteholder) participating in the Equity Rights Offering acknowledges that, by executing this Subscription ~~and Registration~~ Form, the Unsecured Noteholder named below: (i) has elected to subscribe for the number of Equity Rights Offering Shares shown in Items 2 and 3 above, (ii) will be bound to pay the aggregate Purchase Price for the Equity Rights Offering Shares, and (iii) ~~that it~~ may be liable to the Debtors to the extent of any nonpayment.

Exhibit A

A. Unsecured Noteholder Certification:

Name of Unsecured Noteholder: _____

Signature: _____

Name of Signatory: _____

Title: _____

Address: _____

Telephone Number: _____

Fax: _____

Email: _____

B. Wire Information in the Event a Refund is Needed:

Domestic Account:

Account Name: _____

Beneficiary Address: _____

Bank Account No.: _____

ABA/Routing No.: _____

Bank Name: _____

Bank Address: _____

Reference: _____

International Account:

Intermediary Account Name: _____

Intermediary Beneficiary Address: _____

Intermediary Bank SWIFT Code/BIC: _____

Beneficiary Bank Name: _____

Beneficiary Bank Address: _____

Beneficiary Bank SWIFT Code/BIC: _____

Beneficiary Bank IBAN/Account Number: _____

Reference: _____

C. Registration Details for all Equity Rights Offering Shares ~~(Including Those Issued to the Equity Rights Offering Backstop Parties) and/or Plan Distribution Shares~~ to Be Issued ~~(Given In the event that the Equity Rights Offering Shares and Plan Distribution Shares Are Not are not~~ DTC-Eligible):³

Name of Registered Party: _____

Address 1: _____

Address 2: _____

City/State/Zip: _____

Contact Name: _____

Telephone Number: _____

Email: _____

U.S. Federal Tax EIN/SSN: _____

If Non-U.S. person, check here and attach appropriate IRS Form W-8 ☐

If U.S. person, check here and attach IRS Form W-9 ☐

Account Type:

Please indicate the “account type” into which the Unsecured Noteholder will have its ~~non-DTC eligible~~ entitlements issued in the event such entitlements are not DTC-eligible. Below are the options for “account types” that may be used in connection with registration of your non-DTC eligible entitlements.

Please check only one box:

☐ INDIVIDUAL ACCOUNT ~~;~~

☐ INDIVIDUAL IRA ACCOUNT OR 401K ACCOUNT ~~;~~

☐ INDIVIDUAL FIDUCIARY/TRUST ACCOUNT

☐ JOINT TENANTS IN COMMON

³ In the event the Equity Rights Offering Shares are not made DTC eligible, we will use the provided registration information to issue your Equity Rights Offering Shares on the books and records of the transfer agent.

☐ JOINT TENANTS WROS

☐ COMMUNITY PROPERTY

☐ PARTNERSHIP

☐ S-CORPORATION

☐ BANK

☐ BROKER

☐ NOMINEE

☐ CORPORATION

☐ NON-PROFIT ORGANIZATION

For Backstop Parties to receive Equity Rights Offering Shares on account of the Forfeited Rights:⁴

DTC Participant Name: _____

DTC Participant Number: _____

Beneficial Holder Account Number: _____

DTC Participant Contact Name: _____

DTC Participant Contact Telephone: _____

DTC Participant Contact Email: _____

Signature: _____

Name of Signatory: _____

Title: _____

Address: _____

Telephone Number: _____

⁴ To be used in the event that the Equity Rights Offering Shares, on account of the Forfeited Rights, cannot be allocated via the tendered positions at DTC.

Email: _____

Exhibit C

Equity Rights Offering Backstop Commitment Letter

~~March~~April [●], 2026

Office Properties Income Trust
Two Newton Place, 255 Washington Street, Suite 300
Newton, MA 02458-1634

Re: Equity Rights Offering Backstop Commitment Letter

Ladies and Gentlemen:

Office Properties Income Trust (“**OPI**”) and its debtor affiliates (together with OPI, the “**Debtors**”) have filed for relief under chapter 11 of title 11 of the United States Code (the “**Bankruptcy Code**”) in the United States Bankruptcy Court for the Southern District of Texas (the “**Bankruptcy Court**”) (collectively, the “**Chapter 11 Cases**”). Capitalized terms used and not otherwise defined herein have the meaning set forth in the Fourth Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and Its Debtor Affiliates [Docket No. ~~850~~1223], dated as of ~~February 23~~April 21, 2026 (including all exhibits, annexes, schedules, and supplements thereto, as may be amended, supplemented, or modified from time to time in accordance with the terms thereof, the “**Plan**”).

The equity rights offering (the “**Equity Rights Offering**” and, such Reorganized Common Equity issued pursuant to the Equity Rights Offering, including pursuant to Forfeited Rights and the Equity Rights Offering Backstop Commitment Premium (each as defined below), the “Equity Rights Offering Shares”) shall be implemented consistent with the terms of this backstop commitment letter (this “**Equity Rights Offering Backstop Commitment Letter**”), the terms of the Plan, and the terms contained in that certain term sheet attached to the *Notice of Settlement Term Sheet by and among the Debtors, Official Committee of Unsecured Creditors, September 2029 Ad Hoc Group, and RMR with Regards to the Plan* [Docket No. 855], dated as of February 24, 2026 (the “**Committee Settlement Term Sheet**”), which sets forth, among other things, certain terms and conditions of the Equity Rights Offering. For the avoidance of doubt, the Committee Settlement Term Sheet is incorporated by reference as if set forth fully herein.

This Equity Rights Offering Backstop Commitment Letter shall be effective upon the execution and delivery by the Debtors and each party hereto listed as a “Commitment Party” on the signature pages hereto (each, a “**Commitment Party**”) ~~of the signature pages attached hereto~~ and collectively, the “Commitment Parties”, which Commitment Parties shall provide an aggregate commitment ~~to purchase, pursuant to Forfeited Rights (as defined in Section 1(b) hereof) or otherwise,~~ \$35.0 million of Reorganized Common Equity less the amount to be subscribed for by the Commitment Parties in the Equity Rights Offering in accordance with Section 1(b)(ii) hereof in their ~~capacity~~respective capacities as Unsecured Noteholders (as defined below in Section 1(a) hereof) and not as Commitment Parties (the “**Equity Rights Offering Backstop Commitment**”), subject to entry of an order of the Bankruptcy Court authorizing the Debtors to, among other things, enter into and perform under this Equity Rights Offering Backstop Commitment Letter (the “**Equity Rights Offering Backstop Order**”). As used herein, the term “**Required Commitment Parties**” means the Commitment Parties representing at least ~~a~~ seventy-five percent (75%) of the aggregate Equity Rights Offering Backstop Commitment

~~Percentages~~Percentage (as defined in [Section 1\(b\)](#) hereof) at such time (excluding any Defaulting Commitment Party (as defined in [Section 9\(a\)](#) hereof) or Breaching Commitment Party (~~each~~ as defined ~~herein~~ in [Section 2\(b\)](#) hereof) and their respective Equity Rights Offering Backstop Commitments).

1. Equity Rights Offering and Equity Rights Offering Backstop Commitment.

(a) Subject to the terms and conditions set forth herein, in the Committee Settlement Term Sheet, and pursuant to the Plan, among other things, the Debtors shall conduct the Equity Rights Offering by providing each holder of Unsecured Notes (including the Commitment Parties) (collectively, the “*Unsecured Noteholders*”) subscription rights to purchase Reorganized Common Equity issued pursuant to the Plan and available to be purchased in connection with the Equity Rights Offering, in an aggregate amount consistent with the Committee Settlement Term Sheet. All Unsecured Noteholders shall have the right to participate in the Equity Rights Offering.

(b) Subject to the terms and conditions set forth herein and in the Committee Settlement Term Sheet, each Commitment Party hereby severally, and not jointly, commits to: (i) not sell its Unsecured Notes (other than as provided herein); (ii) exercise in full the subscription rights it receives in its capacity as Unsecured Noteholder pursuant to the Plan; (iii) exercise in full the subscription rights forfeited to such Commitment Party by Unsecured Noteholders that do not exercise such rights by the Subscription Expiration Deadline (as defined in the Equity Rights Offering Procedures) (the “*Forfeited Rights*”) or otherwise purchase, in each case, on the Effective Date, such Commitment Party’s percentage (its “*Equity Rights Offering Backstop Commitment Percentage*”), as set forth on [Schedule I](#) hereto opposite such Commitment Party’s name, as such percentage may be adjusted from time to time pursuant to [Section 2\(b\)\(i\)](#) or [Section 9](#) hereof, of any unsubscribed Reorganized Common Equity in an amount consistent with the Committee Settlement Term Sheet;¹ (iv) timely vote, or cause to be voted, all of its Claims entitled to vote on the Plan to accept the Plan and not change or withdraw (or cause to be changed or withdrawn) any such vote or not opt out of the releases set forth in

¹ For the avoidance of doubt, (a) any unsubscribed Reorganized Common Equity purchased by a Commitment Party pursuant to its Equity Rights Offering Backstop Commitment shall be purchased at \$~~47~~17.00 per share, (b) the total plan enterprise value shall be in a range between \$2,050,000,000 and \$2,250,000,000 with a midpoint of \$2,150,000,000, (c) the total plan equity value shall be in a range between \$342,680,000 and \$542,680,000 with a midpoint of \$442,680,000, (d) the total plan equity value used to determine the allocation of equity shall be \$427,680,000, and (e) inclusive of the 15% discount to Plan value and the Equity Rights Offering Backstop Commitment Premium (as defined in [Section 3\(a\)](#) hereof), the equity value for the Equity Rights Offering Shares shall be approximately \$43,517,332, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date (the “*Equity Rights Offering Equity Value*”). For the avoidance of doubt, the Equity Rights Offering Shares shall represent approximately 10.2% of the total Reorganized Common Equity to be issued on the Effective Date, after accounting for dilution on account of the Initial Equity Compensation and the Allowed September 2029 Senior Secured Notes Claim Anti-Dilution Shares issued on the Effective Date (the “*Equity Rights Offering Share Percentage*”).

[Different first page setting changed from off in original to on in modified.].

Article 10.6(b) of the Plan; and (v) not take any action that would, or would reasonably be expected to, delay, prevent, or impede the solicitation, confirmation, or consummation of the Plan.

(c) Within three (3) business days following the Subscription Expiration Deadline ~~(as defined in the Equity Rights Offering Procedures)~~, the Debtors shall send to each Commitment Party a funding notice (the “**Funding Notice**”) providing: (i) the aggregate number of shares of Reorganized Common Equity subscribed for in the Equity Rights Offering and the aggregate Purchase Price (as defined in the Equity Rights Offering Procedures) therefor; (ii) the aggregate number of unsubscribed shares of Reorganized Common Equity in the Equity Rights Offering, if any, pursuant to the Forfeited Rights and the aggregate Purchase Price therefor; (iii) each Commitment Party’s Equity Rights Offering Backstop Commitment Percentage and number of shares of Reorganized Common Equity to be issued and sold to such Commitment Party, if any, forfeited to the Commitment Parties pursuant to its Equity Rights Offering Backstop Commitment, and the aggregate Purchase Price therefor; and (iv) the number of shares of Reorganized Common Equity such Commitment Party subscribed for in the Equity Rights Offering, if any, that such Commitment Party had not yet funded, and the aggregate Purchase Price therefor; *provided* that any Commitment Party shall be entitled to request backup calculations for the figures enclosed in the Funding Notice, and the Debtors shall provide such backup calculations promptly and, in any event, not less than ~~one~~four (~~1~~4) business days before the Funding Date (as defined below). ~~Within three~~On or by the second (~~3~~2) business ~~days of the date on which the Funding Notice is sent by the Debtors to the Commitment Parties~~day before the Effective Date (the “**Funding Date**”), each Commitment Party shall fund to an escrow account (the “**Escrow Account**”) (1) the amount that each Commitment Party is required to fund pursuant to its Equity Rights Offering Backstop Commitment, including pursuant to Forfeited Rights (the “**Equity Rights Offering Backstop Funding Amount**”), as set forth in the Funding Notice, and (2) without duplication, the amount each Commitment Party is required to fund pursuant to the exercise of its subscription rights in the Equity Rights Offering, excluding pursuant to Forfeited Rights (the “**Subscription Rights Funding Amount**”). If (i) the Equity Rights Offering is terminated or is not consummated for any reason other than a breach of this Equity Rights Offering Backstop Commitment Letter by any Commitment Party ~~or if, (ii) any of the conditions precedent in Section 7 hereof have not been satisfied or waived within one (1) week following the Funding Date, or (iii) any portion of the Equity Rights Offering Backstop Commitments are unused, each Commitment Party’s Subscription Rights Funding Amount and Equity Rights Offering Backstop Funding Amount that have been funded, if any, shall be refunded to the applicable Commitment Party in full, in the case of termination, or in full or in part, in the case of unused Equity Rights Offering Backstop Commitments, in each case, without interest, as soon as practicable, but no later than three (3) business days following such termination, failure to satisfy all conditions precedent,~~ or completion of the Equity Rights Offering, as applicable.

(d) The Equity Rights Offering will be made, ~~and the Reorganized Common Equity issued thereunder~~ pursuant to, and the Equity Rights Offering Shares will be issued and sold ~~(other than the Reorganized Common Equity issued in respect of the Equity Rights Offering~~
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~~Backstop Commitments~~ in reliance upon, an exemption from registration under the U.S. Securities Act of 1933, as amended (the “**Securities Act**”), as a result of section 1145 of the Bankruptcy Code to the maximum extent available by law or, if section 1145 of the Bankruptcy Code ~~(as defined below)~~ is not available, then otherwise pursuant to another exemption from registration under the Securities Act and any other applicable securities laws. ~~All Reorganized Common Equity issued in respect of, and~~ the Equity Rights Offering ~~Backstop Commitments will be issued and sold in reliance upon the exemption from registration as a private placement provided by Section 4(a)(2) of the Securities Act or, in each case, such other exemption as may be available from any applicable registration requirements under the Securities Act.~~ Procedures, the Equity Rights Offering Subscription Form, and the further amended Plan shall provide or continue to provide, as applicable, for such treatment.

2. Termination.

(a) This Equity Rights Offering Backstop Commitment Letter may be terminated at any time prior to the Effective Date by mutual written consent of the Debtors and the Required Commitment Parties.

(b) The Debtors may terminate this Equity Rights Offering Backstop Commitment Letter as to any Commitment Party by written notice to the Commitment Parties if any Commitment Party ~~(i)~~ materially breaches any representation, warranty, covenant, or other agreement made by such Commitment Party in this Equity Rights Offering Backstop Commitment Letter, other than pursuant to **Section 9** hereof, ~~(ii) fails to timely vote, or cause to be voted, all of its Claims entitled to vote on the Plan to accept the Plan and not change or withdraw (or cause to be changed or withdrawn) any such vote, or (iii) opts out of the releases set forth in Article 10.6(b) of the Plan~~ (any such event, a “**Commitment Party Breach**” and, such Commitment Party, a “**Breaching Commitment Party**”), and such breach (if susceptible to cure) remains uncured for a period of five (5) business days after the receipt by such Commitment Party of written notice of such breach; *provided* that, upon the occurrence of a Commitment Party Breach, the non-breaching Commitment Parties shall have the right, but not the obligation, within three (3) business days after receipt of written notice from the Debtors to all Commitment Parties of such Commitment Party Breach, which notice shall be given as promptly as practicable following the occurrence of such Commitment Party Breach, to elect, by written notice to the Debtors, to make arrangements for one or more of the non-breaching Commitment Parties to subscribe for (or, as applicable, assume such Breaching Commitment Party’s obligation to subscribe for) all or any portion of the Breaching Commitment Party’s Equity Rights Offering Backstop Commitment in accordance with the Replacement Procedures (as defined and set forth in **Section 9** ~~hereto~~ hereof); *provided further* that, in the event of a Commitment Party Breach followed by an Optional Replacement Purchase (as defined in Section 9(a) hereof) election, this Equity Rights Offering Backstop Commitment Letter shall terminate solely with respect to such Breaching Commitment Party, in which case (1) this Equity Rights Offering Backstop Commitment Letter shall continue in full force and effect with respect to the Debtors and any non-breaching Commitment Parties, and (2) such Breaching Commitment Party shall have no further rights or obligations under this Equity Rights Offering Backstop

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Commitment Letter (other than those that expressly survive termination), ~~and (3) the Equity Rights Offering Backstop Commitment of such Breaching Commitment Party shall be reallocated to the remaining Commitment Parties pro rata in accordance with their respective Equity Rights Offering Backstop Commitment Percentages (as recalculated to exclude such Breaching Commitment Party), and each such remaining Commitment Party's Equity Rights Offering Backstop Commitment Percentage shall be adjusted accordingly.~~

(c) The Debtors may terminate this Equity Rights Offering Backstop Commitment Letter in its entirety by written notice to the Commitment Parties upon the occurrence of any of the following:

- (i) a Commitment Party Breach occurs and the remaining Equity Rights Offering Backstop Commitments, including any Optional Replacement Purchase(s) are equal to or less than 90% of the aggregate Equity Rights Offering Backstop Commitments as of the execution of this Equity Rights Offering Backstop Commitment Letter;
- (ii) the issuance by any governmental authority, including any regulatory authority or court of competent jurisdiction, of any ruling, judgment, or order enjoining the consummation of, or rendering illegal, the Equity Rights Offering or the transactions contemplated by this Equity Rights Offering Backstop Commitment Letter;
- (iii) the Bankruptcy Court denies entry of the Equity Rights Offering Backstop Order or the Confirmation Order;
- (iv) the board of trustees, directors, or similar governing body of the Debtors reasonably determines in good faith, after consulting with, and receiving written advice from, outside counsel, that taking or failing to take any action required under this Equity Rights Offering Backstop Commitment Letter would be inconsistent with the exercise of its fiduciary duties under applicable law;
- (v) the Equity Rights Offering Backstop Order or the Confirmation Order is reversed, dismissed, or vacated; or
- (vi) the Chapter 11 Cases are dismissed or converted to cases under chapter 7 of the Bankruptcy Code, or a trustee or examiner with expanded powers (beyond those set forth in sections 1106(a)(3) and (4) of the Bankruptcy Code) is appointed with respect to all or substantially all of the Debtors, or any Commitment Party files a motion requesting any of the foregoing.

(d) The Required Commitment Parties may terminate this Equity Rights Offering Backstop Commitment Letter by written notice to the Debtors upon the occurrence of any of the following (the “Required Commitment Party Termination Events”):

- (i) any Debtor shall have materially breached any representation, warranty, covenant, or other agreement made by the Debtors in this Equity Rights Offering Backstop Commitment Letter, and such breach (if susceptible to cure) remains uncured for a period of five (5) business days after receipt by the Debtors of written notice of such breach; *provided* that the Required Commitment Parties shall not have the right to terminate this Equity Rights Offering Backstop Commitment Letter pursuant to this **Section 2(d)(i)** if ~~the any~~ Required Commitment ~~Parties are~~ Party is then in material breach of this Equity Rights Offering Backstop Commitment Letter unless ~~the such~~ Required Commitment ~~Parties’~~ Party’s material breach results from the Debtors’ material breach, in which case the Required Commitment Parties shall have the right to terminate this Equity Rights Offering Backstop Commitment Letter pursuant to this **Section 2(d)(i)**;
- (ii) the Debtors amend the Plan, file a Plan Supplement, enter into a settlement, or perform any act, in each case, that (1) is in any material respect inconsistent with the terms of the Committee Settlement Term Sheet or this Equity Rights Offering Backstop Commitment Letter or (2) will result in a non-de minimis decrease to the Equity Rights Offering Share Percentage;
- (iii) the Debtors amend the Plan, file a Plan Supplement, enter into a settlement, or perform any act in a manner that (1) materially and adversely affects the recoveries of holders of Unsecured Notes taken as a whole or (2) will result in a non-de minimis decrease to the Equity Rights Offering Equity Value;
- (iv) any Debtor takes actions, or fails to take actions required by the Committee Settlement Term Sheet, ~~that are~~ in any manner inconsistent with the terms of the Committee Settlement Term Sheet in any material respect (or declares an intention to do so);
- (v) the Bankruptcy Court denies entry of the Equity Rights Offering Backstop Order or the Confirmation Order;
- (vi) the Equity Rights Offering Backstop Order or the Confirmation Order is reversed, dismissed, or vacated; ~~or~~

(vii) there is an acceleration hereafter of all or any portion of the Debtors' funded indebtedness with a principal amount exceeding \$20 million; or

(viii) ~~(vii)~~ the Chapter 11 Cases are dismissed or converted to cases under chapter 7 of the Bankruptcy Code, ~~or~~ a trustee or examiner with expanded powers (beyond those set forth in sections 1106(a)(3) and (4) of the Bankruptcy Code) is appointed with respect to all or substantially all of the Debtors, or the Debtors file a motion requesting any of the foregoing.

(e) Unless waived or extended pursuant to the terms hereof, this Equity Rights Offering Backstop Commitment Letter shall terminate automatically upon the earlier of (i) the Maturity Date (as defined in, and as may be extended in accordance with, the DIP Credit Agreement) and (ii) July 2, 2026 (the "Outside Date").

(f) ~~(e)~~ Upon termination of this Equity Rights Offering Backstop Commitment Letter pursuant to this **Section 2**, this Equity Rights Offering Backstop Commitment Letter shall forthwith become void and of no further force or effect and there shall be no further obligations or liabilities on the part of the parties hereto; *provided* that (i) the obligations of the Debtors to satisfy their indemnification obligations pursuant to **Section 5** hereof shall survive the termination of this Equity Rights Offering Backstop Commitment Letter and shall remain in full force and effect until such obligations have been satisfied, (ii) this **Section 2**~~(ef)~~, **Section 12**, **Section 13**~~13~~, and **Section 16** shall survive the termination of this Equity Rights Offering Backstop Commitment Letter in accordance with their terms, and (iii) no such termination shall relieve any party from liability for its willful breach of this Equity Rights Offering Backstop Commitment Letter prior to such termination.

3. Equity Rights Offering Backstop Commitment Premium.

(a) The Debtors shall pay to the Commitment Parties on the Effective Date a premium in an aggregate amount equal to \$3.5 million, payable in Reorganized Common Equity valued at a price per share of \$20.00 (the "**Equity Rights Offering Backstop Commitment Premium**")~~in accordance with the Committee Settlement Term Sheet~~, pursuant to the allocations set forth on **Schedule I** hereto and subject to the terms hereof; *provided* that such amount may be reduced to the extent that a Defaulting Commitment Party fails to fund its Equity Rights Offering Backstop Funding Amount, and the remaining Commitment Parties elect not to make an Optional Replacement Purchase in the full amount of the Defaulting Commitment Party's Equity Rights Offering Backstop Funding Amount, but any such reduction to the Equity Rights Offering Backstop Commitment Premium shall only apply to the Defaulting Commitment Party's share of the Equity Rights Offering Backstop Commitment Premium, as set forth on **Schedule I** hereto, and shall not have the effect of reducing the respective amounts of the Equity Rights Offering Backstop Commitment Premium to be allocated to non-Defaulting Commitment Parties. The Equity Rights Offering Backstop Commitment Premium shall be deemed fully earned by the Commitment Parties upon entry of the Equity Rights Offering Backstop Order~~;~~, and shall be payable on the Effective Date and allocated among the Commitment Parties in an

amount as adjusted pursuant to the immediately preceding sentence and based on each non-Defaulting Commitment Party's Equity Rights Offering Backstop Commitment allocation as provided on Schedule I hereto, which allocation may be increased with respect to any Optional Replacement Purchase by any Optional Replacing Commitment Party. The payment of the Equity Rights Offering Backstop Commitment Premium is an integral part of the transactions contemplated by this Equity Rights Offering Backstop Commitment Letter and, without the Equity Rights Offering Backstop Commitment Premium, the Commitment Parties would not have entered into this Equity Rights Offering Backstop Commitment Letter. ~~For the avoidance of doubt, no Equity Rights Offering Backstop Commitment Premium shall be payable with respect to any Reorganized Common Equity subject to the subscription rights issued to the Commitment Parties in the Equity Rights Offering in their capacity as Unsecured Noteholders and not as Commitment Parties.~~

(b) The Equity Rights Offering Backstop Commitment Premium, to the extent earned and not paid (except to the extent subject to forfeiture pursuant to Section 9 hereof), is intended to and shall constitute an allowed administrative expense of the Debtors' estates under sections 503(b) and 507 of the Bankruptcy Code and under the Equity Rights Offering Backstop Order. If, following the entry of the Equity Rights Offering Backstop Order, this Equity Rights Offering Backstop Commitment Letter is terminated, nothing contained herein shall limit or restrict the Commitment Parties (other than any Defaulting Commitment Party or Breaching Commitment Party) from seeking allowance and payment of any unpaid Equity Rights Offering Backstop Commitment Premium, to the extent earned and not paid (except to the extent subject to forfeiture pursuant to Section 9 hereof), as an administrative expense of the Debtors' estates under the Bankruptcy Code, including under sections 503(b) and 507 thereof.

4. Expense Reimbursement.

Subject to any applicable fee letters acceptable to the Debtors and the September 2029 Ad Hoc Group (each such letter, a "**Fee Letter**"), whether or not the transactions contemplated under this Equity Rights Offering Backstop Commitment Letter are consummated, the Debtors agree to pay all of the reasonable and documented fees and ~~out-of-pocket~~out-of-pocket expenses incurred by the Commitment Parties, before, on, or after the date hereof until the termination of this Equity Rights Offering Backstop Commitment Letter, including the reasonable and documented fees and expenses of Glenn Agre Bergman & Fuentes LLP, Seward & Kissel LLP, and Province, LLC, as advisors to the Commitment Parties, incurred in connection with the transactions contemplated by this Equity Rights Offering Backstop Commitment Letter. Subject to any applicable Fee Letters, such expense reimbursement shall be paid on the Effective Date. In the event that this Equity Rights Offering Backstop Commitment Letter is terminated for any reason prior to the Effective Date, each of Glenn Agre Bergman & Fuentes LLP, Seward & Kissel LLP, and Province, LLC reserve its rights to file applications seeking allowance of administrative expense claims under section 503(b) of the Bankruptcy Code on account of substantial contributions made to the Debtors¹ Chapter 11 Cases in connection with the transactions contemplated by this Equity Rights Offering Backstop Commitment Letter.

5. Indemnification.

(a) Subject to entry of the Equity Rights Offering Backstop Order, the Debtors, including as reorganized pursuant to the Plan (each, an “**Indemnifying Party**”), shall jointly and severally indemnify, defend, and hold harmless each Commitment Party and each Commitment Party’s affiliates and each of its respective officers, directors, managers, partners, stockholders, members, employees, advisors, agents, and other representatives and any affiliate of the foregoing, and each of their respective successors and assigns (each, an “**Indemnified Party**”) from and against, and shall promptly reimburse each Indemnified Party for, all losses, damages, liabilities, and reasonable and documented out-of-pocket costs and expenses (other than taxes of the Commitment Parties) (collectively, “**Losses**”), including, without limitation, reasonable and documented out-of-pocket attorneys’ fees and expenses and, solely in the case of a conflict of interest, one additional counsel in each applicable jurisdiction to each group of affected Indemnified Parties similarly situated (taken as a whole), arising or resulting from or in connection with any action, suit, proceeding, claim, challenge, litigation, investigation, or demand (collectively, “**Claims**”), in each case, brought by a third-party, related to or arising from this Equity Rights Offering Backstop Commitment Letter (the “**Indemnification Obligations**”), up to the dollar amount of each Commitment Party’s Equity Rights Offering Backstop Commitment (as may be decreased with respect to any Defaulting Commitment Party or increased with respect to any Optional Replacing Commitment Party), which shall be no more than \$35.0 million in the aggregate for all Commitment Parties ~~less the amount subscribed for by the Commitment Parties in the Equity Rights Offering in their capacity as Unsecured Noteholders~~; *provided* that the Indemnification Obligations shall exclude any Losses found by a final judgment of a court of competent jurisdiction to arise from an Indemnified Party’s bad faith, gross negligence, fraud, willful misconduct, or a material breach of the obligations of such Commitment Party under this Equity Rights Offering Backstop Commitment Letter. In addition, the Indemnification Obligations shall exclude any Claim by (i) one Commitment Party against another Commitment Party and (ii) a Defaulting Commitment Party or its respective officers, directors, managers, partners, stockholders, members, employees, advisors, agents, and other representatives or any affiliate of the foregoing.

(b) Each Indemnified Party entitled to indemnification hereunder shall (i) give prompt written notice to the Indemnifying Party of any Claim with respect to which it intends to seek indemnification or contribution pursuant to this Equity Rights Offering Backstop Commitment Letter and (ii) permit such Indemnifying Party to assume the defense of such Claim with counsel selected by the Indemnified Party and reasonably satisfactory to the Indemnifying Party; *provided* that the failure to so notify any Indemnifying Party will not relieve any Indemnifying Party from any liability that any Indemnifying Party may have hereunder except to the extent such Indemnifying Party has been materially prejudiced by such failure; *provided further* that, any Indemnified Party entitled to indemnification hereunder shall have the right to employ separate counsel and to participate in the defense of such Claim, but the fees and expenses of such counsel shall be at the expense of such Indemnified Party unless (x) the Indemnifying Party has agreed in writing to pay such fees and expenses, (y) the Indemnifying Party shall have failed to assume the defense of such Claim within a reasonable time following delivery of the written notice of the

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Indemnified Party with respect to such Claim or failed to employ counsel reasonably satisfactory to such Indemnified Party or (z) in the reasonable judgment of such Indemnified Party, based upon advice of its counsel, a conflict of interest may exist between such Indemnified Party and the Indemnifying Party with respect to such Claim (in which case, if the Indemnified Party notifies the Indemnifying Party in writing that it elects to employ separate counsel at the expense of the Indemnifying Party, the Indemnifying Party shall not have the right to assume the defense of such Claim on behalf of such Indemnified Party). In connection with any settlement negotiated by an Indemnifying Party, no Indemnifying Party shall, and no Indemnified Party shall be required by an Indemnifying Party to, (i) enter into any settlement which does not include as an unconditional term thereof the giving by the claimant or plaintiff to the Indemnified Party of a full and unconditional release from all liability in respect to such Claim or litigation, (ii) enter into any settlement that attributes or admits liability or fault to the Indemnified Party, or (iii) consent to the entry of any judgment that does not include as a term thereof a full dismissal of the litigation or proceeding with prejudice. In addition, without the consent of the Indemnified Party, no Indemnifying Party shall be permitted to consent to entry of any judgment or enter into any settlement which provides for any action or restriction on the part of the Indemnified Party other than the payment of money damages which are to be paid in full by the Indemnifying Party. If an Indemnifying Party fails (following the delivery of the written notice described below) or elects not to assume the defense of a Claim or is not entitled to assume or continue the defense of such Claim pursuant to the foregoing, the Indemnified Party shall have the right (without prejudice to its right of indemnification hereunder), in its discretion, to contest, defend, and litigate such Claim and may settle such Claim, either before or after the initiation of litigation, at such time and upon such terms as the Indemnified Party deems fair and reasonable; *provided* that, at least thirty (30) business days prior to any settlement, written notice of its intention to settle is given to the Indemnifying Party. If requested by the Indemnifying Party, the Indemnified Party agrees (at the expense of the Indemnifying Party) to reasonably cooperate with the Indemnifying Party and its counsel in contesting any Claim that the Indemnifying Party elects to contest; *provided further* that, such cooperation shall not include the provision of any information to the extent that the provision thereof would violate any attorney-client privilege, law, rule, or regulation, or any obligation of confidentiality binding on such Indemnified Party. If such indemnification is for any reason not available or is insufficient to hold an Indemnified Party harmless, each Indemnifying Party agrees to contribute the ~~Indemnified~~Indemnification Obligations to which the Indemnified Party may be subject in such proportion as is appropriate to reflect the relative benefits received (or anticipated to be received) by each Indemnifying Party and each Indemnified Party with respect to the Equity Rights Offering Backstop Commitments or, if such allocation is judicially determined to be unavailable, in such proportion as is appropriate to reflect other equitable considerations such as the relative fault of each Indemnifying Party on the one hand and of each Indemnified Party on the other hand. Relative benefits to an Indemnifying Party, on the one hand, and an Indemnified Party, on the other hand, with respect to the Equity Rights Offering Backstop Commitments shall be deemed to be in the same proportion as (1) the total value paid or received or proposed to be paid or received by the Indemnifying Party pursuant to the issuance and sale of the Reorganized Common Equity contemplated by this Equity Rights Offering Backstop Commitment Letter bears to (2) the value of the Reorganized Common Equity and all premiums and fees actually received by the Indemnified Parties in connection with the

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Equity Rights Offering Backstop Commitments, including, without limitation, the Equity Rights Offering Backstop Commitment Premium. Subject to entry of the Equity Rights Offering Backstop Order, the terms set forth in this **Section 5** shall survive termination of this Equity Rights Offering Backstop Commitment Letter and shall remain in full force and effect regardless of whether the transactions contemplated hereby are consummated.

6. Representations and Warranties.

(a) The Debtors hereby represent and warrant to the Commitment Parties, subject to any limitations or approvals arising from or required in connection with the Chapter 11 Cases, as set forth below:

- (i) the Debtors are validly existing and in good standing under the laws of their respective jurisdiction of incorporation or organization, and have all requisite organizational power and authority to execute this Equity Rights Offering Backstop Commitment Letter, carry out the transactions contemplated hereby and perform the obligations contemplated hereunder, and the execution and delivery of this Equity Rights Offering Backstop Commitment Letter and the performance of the Debtors' obligations hereunder have been duly authorized by the Debtors;
- (ii) the execution and delivery of and performance under this Equity Rights Offering Backstop Commitment Letter does not and will not (1) violate any provision of law, rule or regulation applicable to the Debtors, (2) violate any of the Debtors' charter or bylaws (or other similar governing documents), (3) conflict with, result in a breach of, or constitute (with due notice or lapse of time or both) a default under any material contractual obligation to which the Debtors are a party, or (4) require any consent, approval, or similar authorization by any federal, state, or governmental authority or regulatory body, except (A) such filings that may be necessary in connection with the Chapter 11 Cases and (B) such filings as may be necessary or required for disclosure by the U.S. Securities and Exchange Commission ("**SEC**") or other securities regulatory authorities under applicable securities laws, except, with respect to clauses (1), (3), and (4) above, as would not, individually or in the aggregate, reasonably be expected to (x) be materially adverse to the Debtors, taken as a whole, and (y) adversely affect in any material respect the Debtors' ability to perform their obligations under this Equity Rights Offering Backstop Commitment Letter;
- (iii) this Equity Rights Offering Backstop Commitment Letter is the legally valid and binding obligation of the Debtors, enforceable against the Debtors in accordance with its terms, except as enforcement may be limited by bankruptcy, insolvency, reorganization, moratorium, or other similar laws

relating to or limiting creditors' rights generally or by equitable principles relating to enforceability or a ruling of a court;

- (iv) the Reorganized Common Equity to be issued to the Commitment Parties in connection with the Equity Rights Offering and the Equity Rights Offering Backstop Commitment will, when delivered, be duly and validly authorized, issued, and delivered;
- (v) the Debtors acknowledge and agree that the transactions contemplated hereunder are arm's-length and each Commitment Party is acting solely in the capacity of an arm's-length contractual counterparty to the Debtors in respect thereof;

~~(vi) the Debtors have filed all required reports with the SEC since January 1, 2025 (the "**SEC Filed Documents**"), except, in each case, as would not, individually or in the aggregate, reasonably be expected to (1) be materially adverse to the Debtors, taken as a whole, and (2) adversely affect in any material respect the Debtors' ability to perform their obligations under this Equity Rights Offering Backstop Commitment Letter;~~

(vi) ~~(vii)~~ none of the Debtors is an "investment company" as defined in the Investment Company Act of 1940;

(vii) ~~(viii)~~ none of the Debtors are party to any contract with any person that would give rise to a valid claim against the Commitment Parties for a brokerage commission, finder's fee, or like payment in connection with the Equity Rights Offering;

(viii) ~~(ix)~~ except as disclosed in the required reports filed with the SEC (the "**SEC Filed Documents**") and other than the Chapter 11 Cases and any adversary proceedings or contested matters commenced in connection therewith or related thereto, none of the Debtors are party to, nor their property the subject of, any pending or threatened material legal, governmental, administrative, judicial, or regulatory investigations, actions, claims, or similar proceedings, which, if adversely determined, would be reasonably expected to have, individually or in the aggregate, a material adverse effect on the business, operations, financial condition or prospects of the Debtors;

(ix) ~~(x)~~ in each case solely to the extent that the failure of the following such representation to be true would result in a material liability of the Debtors for taxes following the Effective Date, the Debtors (1) have filed or caused to be filed all material tax returns required to have been filed and each such tax return is true and correct in all material respects, (2) have timely paid or caused to be timely paid all material taxes or assessments due and payable

with respect to all periods or portions thereof ending on or before the date hereof, (3) have complied in all material respects with all applicable laws, rules, and regulations relating to the payment and withholding of taxes, and (4) other than in connection with the Chapter 11 Cases or to the extent the Debtors are sufficiently reserved in accordance with U.S. generally accepted accounting principles (“*GAAP*”), are not subject to any asserted claims with respect to any material taxes, no presently effective waivers or extensions of statutes of limitation with respect to material taxes have been given or requested, and no material tax returns are being audited or examined by a taxing authority;

(x) ~~(xi)~~ except as disclosed in the SEC Filed Documents, the Debtors have established and maintain a system of internal controls over financial reporting (as such term is defined in Rule 13a-15(f) under the Securities Exchange Act of 1934, as amended (the “*Exchange Act*”)) that (1) complies with the requirements of the Exchange Act and (2) has been designed by the Debtors’ principal executive officer and principal financial officer, or under their supervision, to provide reasonable assurance regarding the reliability of financial reporting and the preparation of financial statements for external purposes in accordance with GAAP, and the Debtors are not aware of any material weaknesses in the Debtors’ internal control over financial reporting as of the date hereof; and

(xi) ~~(xii)~~ except as disclosed in the SEC Filed Documents, the Debtors have established and maintain disclosure controls and procedures (as such term is defined in Rule 13a-15(e) under the Exchange Act) designed to ensure that material information relating to the Debtors and their subsidiaries is made known to the Debtors’ principal executive officer and principal financial officer by others within those entities.

(b) Each Commitment Party, severally and not jointly, represents and warrants as to itself only as set forth below:

(i) such Commitment Party is validly existing and in good standing under the laws of its jurisdiction of incorporation or organization, and has all requisite organizational power and authority to execute this Equity Rights Offering Backstop Commitment Letter, carry out the transactions contemplated hereby and perform the obligations contemplated hereunder, and the execution and delivery of this Equity Rights Offering Backstop Commitment Letter and the performance of such Commitment Party’s obligations hereunder have been duly authorized;

- (ii) the execution and delivery of and performance under this Equity Rights Offering Backstop Commitment Letter does not and will not (1) violate any provision of law, rule or regulation applicable to such Commitment Party, (2) violate such Commitment Party's charter or bylaws (or other similar governing documents), (3) conflict with, result in a breach of or constitute (with due notice or lapse of time or both) a default under any material contractual obligation to which such Commitment Party is a party, or (4) require any consent, approval or similar authorization by any federal, state, or governmental authority or regulatory body, except, with respect to clauses (1), (3), and (4) above, as would not, individually or in the aggregate, reasonably be expected to adversely affect in any material respect such Commitment Party's ability to perform its obligations under this Equity Rights Offering Backstop Commitment Letter;
- (iii) this Equity Rights Offering Backstop Commitment Letter is the legally valid and binding obligation of such Commitment Party, enforceable in accordance with its terms, except as enforcement may be limited by bankruptcy, insolvency, reorganization, moratorium, or other similar laws relating to or limiting creditors' rights generally or by equitable principles relating to enforceability or a ruling of a court;
- (iv) such Commitment Party understands that (1) the issuance of the Reorganized Common Equity issued on account of the Equity Rights Offering Backstop Commitments has not been registered under the Securities Act by reason of a specific exemption from the registration provisions of the Securities Act and (2) such Reorganized Common Equity cannot be sold unless subsequently registered under the Securities Act or an exemption from registration is available;
- (v) such Commitment Party is acquiring Reorganized Common Equity in respect of its Equity Rights Offering Backstop Commitment for its own account or accounts or funds over which it holds voting discretion, not otherwise as a nominee or agent, and not otherwise with the view to, or for resale in connection with, any distribution thereof not in compliance with applicable securities laws, and such Commitment Party has no present intention of selling, granting any other participation in, or otherwise distributing the same, except in compliance with applicable securities laws;
- (vi) such Commitment Party is either (1) a "qualified institutional buyer," as such term is defined in Rule 144A under the Securities Act or (2) an "accredited investor" within the meaning of Rule 501 of the Securities Act;

- (vii) such Commitment Party (1) has independently evaluated the merits and risks of its investment in the Reorganized Common Equity attributable to its Equity Rights Offering Backstop Commitment and (2) acknowledges that it (A) has been furnished with or has had full access to all the information that it considers necessary or appropriate to make an informed investment decision with respect to the unsubscribed Reorganized Common Equity and (B) has had an opportunity to discuss with management of the Debtors the intended business and financial affairs of the Debtors and to obtain information necessary to verify any information furnished to it or to which it had access;
- (viii) such Commitment Party will have sufficient immediately available funds to perform all of its obligations under this Equity Rights Offering Backstop Commitment Letter, including the ability to timely make and complete the payment of the aggregate Purchase Price for such Commitment Party's Equity Rights Offering Backstop Commitment; and
- (ix) no such Commitment Party, its affiliates, or any person acting on its or any of their behalf has engaged, or will engage, in any form of general solicitation or general advertising (within the meaning of Rule 502(c) of the Securities Act) in connection with the offering of the Reorganized Common Equity.

7. Conditions Precedent to [Funding and](#) Release of Funds from the Escrow Account.

The [Commitment Parties' obligation to fund all or any portion of their obligations under the Equity Rights Offering and their respective Equity Rights Offering Backstop Commitments and the](#) release of funds held in the Escrow Account shall be subject to the [following conditions precedent, provided that any of the following conditions precedent may be waived by the Required Commitment Parties:](#)

[\(a\) no Required Commitment Party Termination Events shall have occurred regardless of whether any termination notice has been delivered;](#)

[\(b\) the](#) satisfaction (or waiver ~~by the Debtors~~ [or removal](#)) of each of the conditions precedent to the Effective Date as set forth in the Plan (other than any condition precedent relating to the Equity Rights Offering Backstop Commitment or consummation of the Equity Rights Offering or any condition that by its nature can be satisfied only by deliveries made on the Effective Date);

[\(c\) the Confirmation Order providing for treatment under section 1145 of the Bankruptcy Code as provided for in **Section 1\(d\)** hereof in respect of the Equity Rights Offering Shares;](#)

(d) the Confirmation Order shall have been entered, and such Confirmation Order shall approve the Plan without any material changes and with terms and conditions (i) consistent in all material respects with the terms of this Equity Rights Offering Backstop Commitment Letter (including the terms set forth in the Committee Settlement Term Sheet), the Equity Rights Offering Equity Value and the Equity Rights Offering Share Percentage (subject to *de minimis* changes), and (ii) providing that the Equity Rights Offering Shares shall be validly issued and outstanding, and free and clear of all taxes, liens, preemptive rights, rights of first refusal, subscription, and similar rights, except as set forth herein and other than transfer restrictions pursuant to applicable securities and tax laws, as of the Effective Date;

(e) the Debtors shall have delivered a Funding Notice to the Commitment Parties;

(f) no judgment, injunction, decree or other legal restraint or applicable law shall be in effect that prohibits the consummation of the Plan, the Equity Rights Offering, or related documents;

(g) the only legal restrictions on trading of the Equity Rights Offering Shares are described herein and in the Disclosure Statement for Second Amended Joint Chapter 11 Plan of Reorganization of Office Properties Income Trust and its Debtor Affiliates [Docket No. 1017], dated March 16, 2026; and

(h) the Plan shall provide that, on and following the Effective Date, the Reorganized Debtors will use commercially reasonable efforts to comply with all reporting requirements of the Securities Exchange Act of 1934, as amended, applicable to the Reorganized Debtors, including, but not limited to, any such requirements presently outstanding.

8. Transfer and Assignment; Third-Party Beneficiaries.

No Debtor may assign its rights, interests or obligations hereunder without the prior written consent of the Required Commitment Parties and any purported assignment by the Debtors in violation of this **Section 8** shall be void *ab initio*. Prior to delivery of the Funding Notice, each Commitment Party may transfer or assign all or any portion of its respective Equity Rights Offering Backstop Commitment hereunder, and its respective Unsecured Notes proportionate to such transferred or assigned Equity Rights Offering Backstop Commitment; to: (a) any other Commitment Party; (b) ~~to~~ any of its Affiliates, *provided* that such Affiliate executes a joinder to this Equity Rights Offering Backstop Commitment Letter in form and substance acceptable to the Debtors; or (c) ~~to~~ any other person approved in advance in writing by the Debtors; *provided* that such person executes a joinder to this Equity Rights Offering Backstop Commitment Letter in form and substance reasonably acceptable to the Debtors; *provided further* that any transfer or assignment of all or any portion of a Commitment Party's obligation to fund the Subscription Rights Funding Amount shall require the prior written consent of ~~OP~~the Debtors (any such transferee, a "Permitted Transferee"); *provided further* that such transferee and the transferring Commitment Party shall have delivered to the Notice Parties (as defined ~~below~~in Section 17 hereof) written notice of such transfer; *provided further* that the transferor shall remain liable for

(and shall continue to have the financial wherewithal to satisfy) the full amount of its Equity Rights Offering Backstop Commitment (including the portion so transferred in the event that the transferee defaults on its obligation) until the transferee's funding of the transferred Equity Rights Offering Backstop Commitment. Upon the effectiveness of any transfer of all or a portion of an Equity Rights Offering Backstop Commitment following the ~~transferee's~~Permitted Transferee's funding of the transferred Equity Rights Offering Backstop Commitment: (i) the transferor shall be deemed to relinquish its rights under this Equity Rights Offering Backstop Commitment Letter to the extent of such transferred rights and obligations; (ii) the ~~transferee~~Permitted Transferee shall be fully bound with respect to the transferred Equity Rights Offering Backstop Commitment; ~~and~~ (iii) the transferor shall have no right to receive its Equity Rights Offering Backstop Commitment Premium with respect to the transferred Equity Rights Offering Backstop Commitment; ~~and~~ (iv) the Debtors shall update **Schedule I** hereto to reflect such transfer, and such update(s) shall not constitute an amendment to this Equity Rights Offering Backstop Commitment Letter. Except as provided in **Section 5** hereof with respect to the Indemnified Parties, this Equity Rights Offering Backstop Commitment Letter is not intended to and does not confer upon any person other than the parties hereto (including any Permitted Transferee who has funded the transferred Equity Rights Offering Backstop Commitment) any rights or remedies under this Equity Rights Offering Backstop Commitment Letter.

9. Funding Default.

(a) Upon the occurrence of the failure by any Commitment Party to timely pay the applicable Purchase Price in respect of its Equity Rights Offering Backstop Commitment (such failure, a "**Funding Default**") in accordance with **Section 1(c)** herein: ~~(i) if the amount of the Funding Default does not exceed 10% of the aggregate Equity Rights Offering Backstop Commitments, the Commitment Parties (other than any Commitment Party that causes a Funding Default (a "**Defaulting Commitment Party**") shall have the right, but not the obligation, within three (3) business days after receipt of written notice from the Debtors to all Commitment Parties of such Funding Default, which notice shall be given as promptly as practicable following the occurrence of such Funding Default (such three (3) business day period, the "**Replacement Period**"), purchase their pro rata portion of the Reorganized Common Equity attributable to such Defaulting Commitment Party's Equity Rights Offering Backstop Commitment, including such Defaulting Commitment Party's Equity Rights Offering Backstop Commitment Premium (such purchase, a "**Required Replacement Purchase**") on the terms and subject to the conditions set forth in this Equity Rights Offering Backstop Commitment Letter (such Commitment Parties, the "**Required Replacing Commitment Parties**"); provided that, notwithstanding the Required Replacement Purchase, the Defaulting Commitment Party shall immediately forfeit its Equity Rights Offering Backstop Commitment Premium in full upon the occurrence of the Funding Default, and, for the avoidance of doubt, such forfeited Equity Rights Offering Backstop Commitment Premium shall be transferred to the Required Replacing Commitment Parties pursuant to this subsection (i); and (ii) if the amount of the Funding Default exceeds 10% of the aggregate Equity Rights Offering Backstop Commitments, the Commitment Parties (other than any Defaulting Commitment Party) shall have the right, but not the obligation, during the Replacement Period, to elect, by written notice to the Debtors, to purchase all or any portion of~~

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the Reorganized Common Equity attributable to such Defaulting Commitment Party's Equity Rights Offering Backstop Commitment, including such Defaulting Commitment Party's Equity Rights Offering Backstop Commitment Premium (such purchase, an "***Optional Replacement Purchase***" ~~and, each of an Optional Replacement Purchase and a Required Replacement Purchase, a "*Replacement Purchase*"~~), on the terms and subject to the conditions set forth in this Equity Rights Offering Backstop Commitment Letter (such Commitment Parties, the "***Optional Replacing Commitment Parties***" ~~and, each of an Optional Replacing Commitment Party and a Required Replacing Commitment Party, a "*Replacing Commitment Party*"~~ and, the procedures outlined in this **Section 9**, the "***Replacement Procedures***"; *provided* that, notwithstanding any Optional Replacement Purchase, the Defaulting Commitment Party shall immediately forfeit its Equity Rights Offering Backstop Commitment Premium in full upon the occurrence of the Funding Default, and, for the avoidance of doubt, such forfeited Equity Rights Offering Backstop Commitment Premium shall be transferred pro rata to the Optional Replacing Commitment Party(ies) pursuant to this ~~subsection (ii)~~ paragraph. If the Debtors receive more than one (1) written notice of an Optional Replacement Purchase election, the Debtors will accept such Optional Replacement Purchases on a *pro rata* basis to the Commitment Parties' original Equity Rights Offering Backstop Commitment Percentages until the Funding Default is replaced in whole or such Optional Replacement Purchases are otherwise exhausted, subject to **paragraph (d)** of this **Section 9**. The purchase price paid by any Optional Replacing Commitment Party in connection with ~~an Optional~~ Replacement Purchase shall be equal to the applicable Purchase Price in respect of such Defaulting Commitment Party's Equity Rights Offering Backstop Commitment.

(b) If a Commitment Party is a Defaulting Commitment Party, or is otherwise in breach of its obligations hereunder, it shall not be entitled to any of the Equity Rights Offering Backstop Commitment Premium hereunder (in which case, for the avoidance of doubt, such Equity Rights Offering Backstop Commitment Premium shall be forfeited and shall not be payable to any other Commitment Parties other than Optional Replacing Commitment Parties making a corresponding Optional Replacement Purchase), even if such Defaulting Commitment Party subsequently funds the applicable Purchase Price with respect to its Equity Rights Offering Backstop Commitment, nor shall it qualify for an Optional Replacement Purchase hereunder; *provided* that, for the avoidance of doubt, this **Section 9(b)** shall not be deemed to limit any Commitment Party's obligations under **Section 1(b)(iii)**.

(c) ~~Other than in the case of a Required Replacement Purchase, nothing~~ Nothing in this Equity Rights Offering Backstop Commitment Letter shall require any Commitment Party to fund more than its Equity Rights Offering Backstop Commitment; *provided* that, upon a Commitment Party electing to make an Optional Replacement Purchase, such election shall be binding, and failure to fund any such cover amount in accordance with this **Section 9** shall constitute a Funding Default.

(d) Notwithstanding anything to the contrary set forth in **Section 2** but subject to **Section 12**, no provision of this Equity Rights Offering Backstop Commitment Letter shall relieve any Defaulting Commitment Party from liability hereunder, including for liability for the

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consequences of its breach, or limit the availability of the remedies available to the Debtors or ~~non-defaulting~~non-Defaulting Commitment Parties hereto, and the Debtors and such ~~non-defaulting~~non-Defaulting Commitment Parties can enforce rights or damages and/or specific performance upon the failure to timely fund by the Defaulting Commitment Party.

(e) Upon a Funding Default, the Debtors may seek emergency relief from the Bankruptcy Court seeking an order compelling any ~~other party to fund its~~and all Defaulting Commitment Parties to fund their respective Equity Rights Offering Backstop Funding ~~Amount~~Amounts, as required herein, and the Commitment Parties, including any Defaulting Commitment Party, shall not object to such relief being heard on an emergency basis.

(f) The remedies available to the Debtors to enforce performance of any Defaulting Commitment Party are not mutually exclusive and the Debtors may utilize any and all remedies available to them to enforce this Equity Rights Offering Backstop Commitment Letter against any Defaulting Commitment Party.

10. Registration Rights.

~~To the extent the Debtors or the Reorganized Debtors, as applicable, provide registration rights to any holder of Reorganized Common Equity in connection with the Plan or an amendment or supplement thereto, each Commitment Party shall be entitled to receive piggyback registration rights with respect to shares of Reorganized Common Equity then held by such Commitment Party that were received on account of its Equity Rights Offering Backstop Commitment hereunder (including shares received on account of the Equity Rights Offering Backstop Commitment Premium). Such registration rights shall be on terms that are customary for a transaction of this nature and taking into account the number of registrable securities held by such Commitment Party relative to the other parties receiving registration rights.~~

If applicable, the Debtors shall agree to use commercially reasonable efforts to register, as soon as reasonably practicable following the Effective Date, the resale of any restricted shares of Reorganized Common Equity received by such Commitment Party on the Effective Date.

11. Tax Forms.

Each Commitment Party shall deliver to the Debtors a properly completed and duly executed IRS Form W-9 or appropriate Form W-8, as applicable.

12. Governing Law; Jurisdiction.

This Equity Rights Offering Backstop Commitment Letter shall be governed and construed in accordance with the laws of the State of New York, without giving effect to any rules, policies or principles that would compel the application of a jurisdiction other than the State of New York. The parties hereto consent and agree that any action to enforce this Equity Rights Offering Backstop Commitment Letter or any dispute, whether such dispute arises in law or equity, arising out of or relating to this Equity Rights Offering Backstop Commitment Letter and the agreements,

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instruments, and documents contemplated hereby and thereby shall be brought exclusively in the Bankruptcy Court, or if the Bankruptcy Court does not have jurisdiction to hear such action or dispute, any state or federal court located in the City and County of New York (the “***Chosen Courts***”). Each of the parties hereto (a) irrevocably submits to the exclusive jurisdiction of the Chosen Courts; (b) waives any objection to laying venue in any such action or proceeding in the Chosen Courts; and (c) waives any objection that the Chosen Courts are an inconvenient forum or do not have jurisdiction over any party hereto or constitutional authority to finally adjudicate the matter. Without limiting the rights of any party hereto, each party acknowledges and agrees that the Debtors are entitled to seek damages from any Commitment Party that breaches its obligations under this Equity Rights Offering Backstop Commitment Letter; *provided* that, each party hereto hereby waives, to the maximum extent not prohibited by law, any right it may have to claim or recover in any legal action or proceeding any special, exemplary, punitive, or consequential damages. EACH PARTY HERETO IRREVOCABLY WAIVES ANY AND ALL RIGHT TO TRIAL BY JURY IN ANY LEGAL PROCEEDING ARISING OUT OF OR RELATING TO THIS EQUITY RIGHTS OFFERING BACKSTOP COMMITMENT LETTER OR THE TRANSACTIONS CONTEMPLATED HEREBY OR THEREBY.

13. Amendments.

This Equity Rights Offering Backstop Commitment Letter ~~(including the terms incorporated herein from and~~ the Committee Settlement Term Sheet) ~~represents~~ incorporated herein represent the final agreement and the entire understanding among the parties hereto with respect to the subject matter hereof and may not be contradicted by evidence of prior or contemporaneous agreements and understandings of the parties hereto. There are no unwritten oral agreements or understandings between the parties hereto relating to the subject matter hereof. This Equity Rights Offering Backstop Commitment Letter may only be modified, amended, or supplemented by an agreement signed by the Debtors and the Required Commitment Parties; *provided* that: (a) the prior written consent of each Commitment Party adversely affected thereby shall be required for any amendment that would (i) modify such Commitment Party’s Equity Rights Offering Backstop Commitment Percentage, (ii) alter the pricing terms set forth in the Committee Settlement Term Sheet and/or this Equity Rights Offering Backstop Commitment Letter with respect to such Commitment Party, or (iii) have a material, adverse, and disproportionate effect on such Commitment Party; (b) each Commitment Party’s prior written consent shall be required for any amendment that would increase its or the aggregate Equity Rights Offering Backstop Commitment amount; and (c) each Commitment Party’s prior written consent shall be required to amend this proviso with respect to itself. Notwithstanding the foregoing, the Committee Settlement Term Sheet shall be revised as necessary without requiring a written instrument signed by the Debtors and the Required Commitment Parties to reflect changes in the composition of the Commitment Parties and Equity Rights Offering Backstop Commitment Percentages as a result of transfers permitted in accordance with the terms and conditions of this Equity Rights Offering Backstop Commitment Letter.

14. Counterparts.

This Equity Rights Offering Backstop Commitment Letter may be executed in several counterparts, each of which will be deemed to be an original, and all of which together will be deemed to be one and the same agreement. Execution copies of this Equity Rights Offering Backstop Commitment Letter may be delivered by electronic mail or DocuSign, which will be deemed to be an original for the purposes of this **Section 14**.

15. No Fiduciary Duties.

Notwithstanding anything to the contrary herein, the entry into this Equity Rights Offering Backstop Commitment Letter and the transactions contemplated hereby shall not create any fiduciary duties between and among the Commitment Parties or other duties or responsibilities to each other, the Debtors, or any of the Debtor's creditors or other stakeholders. Nothing in this Equity Rights Offering Backstop Commitment Letter shall require the Debtors, nor the Debtors' directors, managers, or officers, to take or refrain from taking any action (including terminating this Equity Rights Offering Backstop Commitment Letter under **Section 2**), to the extent such person or persons determines, based on the advice of counsel, that taking, or refraining from taking, such action, as applicable, would be inconsistent with applicable law or its fiduciary obligations under applicable law; *provided* that this **Section 15** shall not impede any party's right to terminate this Equity Rights Offering Backstop Commitment Letter pursuant to **Section 2**.

16. Specific Performance.

Each of the Debtors and the Commitment Parties agree that irreparable damage would occur if any provision of this Equity Rights Offering Backstop Commitment Letter were not performed in accordance with the terms hereof, and that each of the parties hereto shall be entitled to an injunction or injunctions without the necessity of posting a bond to prevent breaches of this Equity Rights Offering Backstop Commitment Letter or to enforce specifically the performance of the terms and provisions hereof, in addition to any other remedy to which they are entitled at law or in equity. Unless otherwise expressly stated herein, no right or remedy described or provided in this Equity Rights Offering Backstop Commitment Letter is intended to be exclusive or to preclude a party thereto from pursuing other rights and remedies to the extent available under this Equity Rights Offering Backstop Commitment Letter, at law, or in equity.

17. Notice.

Notwithstanding anything to the contrary herein, provision to Glenn Agre Bergman & Fuentes LLP and Seward & Kissel LLP of any notice that may be due or required to any Commitment Party, as set forth herein, shall constitute notice to such Commitment Party. Any notice required hereunder will be deemed given if in writing and delivered, if contemporaneously sent by electronic mail, courier, or by registered or certified mail (return receipt requested) to the following addresses and electronic mail addresses (collectively, the "***Notice Parties***"):

(1) If to the Debtors, to:

Office Properties Income Trust
Two Newton Place, 255 Washington Street, Suite 300
Newton, MA 02458-1634
Attention: Yael Duffy and Brian Donley
E-mail: YDuffy@rmrgroup.com and BDonley@rmrgroup.com

with a copy (which shall not constitute notice) to:

Latham & Watkins LLP
1271 Avenue of the Americas
New York, New York 10020

Attention: Ray C. Schrock (ray.schrock@lw.com)
Andrew M. Parlen (andrew.parlen@lw.com)
Anupama Yerramalli (anu.yerramalli@lw.com)
Keith A. Simon (keith.simon@lw.com)
Christopher J. Clark (christopher.j.clark@lw.com)
Christopher M. Cronin (christopher.cronin@lw.com)

(2) If to ValueWorks Limited Partners LP and Diamond Family Investments LLC, to the addresses or electronic mail addresses set forth below the Commitment Party's signature, with a copy (which shall not constitute notice) to:

Seward & Kissel LLP
One Battery Park Plaza
New York, New York 10004

Attention: Robert J. Gayda (gayda@sewkis.com)

(3) If to the remaining Commitment Parties, to the addresses or electronic mail addresses set forth below the Commitment Party's signature, with a copy (which shall not constitute notice) to:

Glenn Agre Bergman & Fuentes LLP
1185 Avenue of the Americas
New York, New York 10036

Attention: Andrew K. Glenn (aglenn@glennagre.com)
Kurt A. Mayr (kmayr@glennagre.com)
Stacy Tecklin (stecklin@glennagre.com)
Rich Ramirez (rramirez@glennagre.com)
Malak S. Doss (mdoss@glennagre.com)

Any notice given by delivery, mail, or courier will be effective when received. Any notice given by electronic mail will be effective upon confirmation of transmission.

[Signature Pages to Follow]

SCHEDULE I

[~~To be Attached~~ On File with the Debtors]

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